Chapter 7. Nuisance*

I. Introduction

7:1. Generally

The law of nuisance is concerned with injuries to land and with unreasonable interferences with the use and enjoyment of land. The harm may be physical as with a flood, or it may be more intangible as with noise or offensive odours. It may be the result of an isolated event as with a blocked sewer, or it may be continuing as with factory emissions or noise. A trespass which causes injury to land is not a nuisance; that is why it is often said that in nuisance the inference must be "indirect".[1] While most nuisance cases pit neighbouring land owners against one another, the parties need not be *owners*, and need not be neighbours.[2] Occupation of the land typically confers standing to sue, and harms caused by land uses which are geographically distant are actionable, as in the case of noisy airports[3] or polluting factories.[4]

Nuisance is a quasi-strict liability tort. It is strict in the sense that liability is driven by the nature of the harm, not the level of fault.[5] Even if the utmost care has been taken in the

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By Andrew D. Gay K.C., partner at Gudmundseth Mickelson LLP and Natasha E. John, associate at Gudmundseth Mickelson LLP.

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MVL Leasing Limited v. CCI Group Inc., 2018 ONSC 1800, 2018 CarswellOnt 4760~~, 18 C.E.L.R. (4th) 155~~ (Ont. S.C.J.); Dodsworth v. Madill, 2019 BCSC 898, 2019 CarswellBC 1625~~, 306 A.C.W.S. (3d) 646~~ (B.C. S.C.), at para. 57; Halifax County Condominium Corporation No. 277 v. Halifax Regional Water Commission, 2024 NSCA 1 (N.S. C.A.), at paras. 17, 43 and 46-48.

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In the sense that the lands of the litigants need not be contiguous. See, for example, Morguard Real Estate Investment Trust v. ERM Canada Corp.~~ (2012), 68 C.E.L.R. (3d) 175, 2012 CarswellOnt 8875~~, 2012 ONSC 4195 (Ont. S.C.J.), at para. 52.

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Sutherland v. Canada (Attorney General)~~ (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479~~, 2002 BCCA 416 (C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi~~, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*~~.

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For example, Canada Paper Co. v. Brown (1922), 63 S.C.R. 243, 66 D.L.R. 287.

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Baker v. Rendle, 2017 BCCA 72~~, 412 D.L.R. (4th) 173, [2017] 5 W.W.R. 534, 94 B.C.L.R. (5th) 96, 97 C.P.C. (7th) 44~~, 2017 CarswellBC 370~~, 275 A.C.W.S. (3d) 254~~ (B.C. C.A.) at paras. 39-

construction and maintenance of a pipe system, a rupture which floods one's neighbour is actionable in nuisance and negligence need not be proved.[6] However, a defendant will not be liable for harm caused by a hazard or condition upon his or her land of which he or she had no knowledge, nor will the defendant be liable for harm caused by someone else using his or her land in a manner not authorized or anticipated to likely result in a nuisance. In cases of physical injury to land, the requirement that the harm be foreseeable has also entered the law of nuisance in modern times.[7]

In Canada, the Crown[8] is by far the nation's largest landowner. It is also a frequent licensor, landlord, and grantor of various other interests in land. The Crown participates in many sectors of the economy and is largely responsible for public works in Canada. It is not surprising then that the Crown has been sued in nuisance on many occasions.[9] Likewise, other public

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41; Krieser v. Garber, 2020 ONCA 699~~, 70 C.C.L.T. (4th) 40 (Ont. C.A.),~~ at para. 29.

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This is not to say that the defendant's conduct is irrelevant, as is discussed below in §7:9.

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See §7:21.

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His Majesty in right of the provinces and His Majesty in right of Canada.

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Examples include: Connery v. Manitoba (1971), 21 D.L.R. (3d) 234, [1971] 4 W.W.R. 156 (Man. C.A.); Acciaroli v. Canada, [1988] F.C. 389, 39 L.C.R. 318, 49 R.P.R. 277, 10 A.C.W.S. (3d) 103 (T.D.); W.A. Grandel v. G.W. Mason, [1953] 1 S.C.R. 459, [1953] 3 D.L.R. 65 (involving Crown agents); Sutherland v. Canada (Attorney General)~~ (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479~~, 2002 BCCA 416 (C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi~~, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*~~; Osler Developments Ltd. v. British Columbia, ~~[2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453,~~ 2001 BCSC 129 (S.C.); Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd 15 D.L.R. (4th) 320*n*, 49 O.R. (2d) 556*n* (C.A.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317; Tsawwassen First Nation v. Vancouver Port Authority, ~~[2004] 3 C.N.L.R. 339, 130 A.C.W.S. (3d) 283,~~ 2004 BCSC 515 (B.C. S.C.); Staats v. British Columbia, ~~[2005] B.C.J. No. 1327, 140 A.C.W.S. (3d) 595,~~ 2005 BCSC 841 (S.C.); Bradshaw v. North Cowichan (District), ~~[2004] B.C.J. No. 2310, 135 A.C.W.S. (3d) 1038,~~ 2004 BCSC 1435 (S.C.); Mart Steel Corp. v. Canada, [1974] 1 F.C. 45 (T.D.); Alton v. Canada, [1985] F.C.J. No. 619 (T.D.); Markesteyn v. Canada, [2001] 1 F.C. 345, 192 F.T.R. 186, 99 A.C.W.S. (3d) 603 (T.D.); Waste Not Wanted Inc. v. Canada, [1988] 1 F.C. 239, 2 C.E.L.R. (N.S.) 24, 6 A.C.W.S. (3d) 59, [1987] F.C.J. No. 531 (T.D.); Nerbas v. Manitoba, 2017 MBQB 206, 2017 CarswellMan 604 (Man. Q.B.); Chiasson v. Nalcor Energy, 2019 NLSC 133, 2019 CarswellNfld 280~~, 307 A.C.W.S. (3d) 469 (N.L. S.C.)~~.

authorities such as municipalities and Crown corporations are frequently sued in nuisance.[10]

A nuisance suit is a contest between two competing uses of land.[11] Particularly in cases of a continuing nuisance, such as noise or factory emissions, the court must make what are, in many ways, policy decisions as one land use is forced to give way to another. This has been aptly termed by some observers as the "zoning function" of nuisance law.[12]

In cases between private parties, this zoning function tends, it is submitted, to be exercised in favour of protecting the existing character of neighbourhoods.[13] In other words,

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Examples include: Vancouver (City) v. Robinson ~~(2013), 12 M.P.L.R. (5th) 99~~, 2013 BCSC 1224 (B.C. S.C.), 2013 CarswellBC 2109~~, 231 A.C.W.S. (3d) 526, 2013 BCSC 1224 (B.C. S.C.)~~; Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.); Tock v. St. John's Metropolitan Area Board, [1989] 2 S.C.R. 1181, 64 D.L.R. (4th) 620, 82 Nfld. & P.E.I.R. 181, 1 C.C.L.T. (2d) 113, 47 M.P.L.R. 113, 104 N.R. 241, 18 A.C.W.S. (3d) 531; Edwards v. Rural Municipality of Scott, [1934] S.C.R. 332, [1934] 3 D.L.R. 793; Peace Portal Properties Ltd. v. Surrey (District), [1989] B.C.J. No. 533, 14 A.C.W.S. (3d) 410 (S.C.), vard 70 D.L.R. (4th) 525, 50 M.P.L.R. 34, 21 A.C.W.S. (3d) 9 (B.C. C.A.); Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.); Nor-Video Services Ltd. v. Ontario Hydro (1978), 84 D.L.R. (3d) 221, 19 O.R. (2d) 107, 4 C.C.L.T. 244 (H.C.J.); J.A. Angus Investments Ltd. v. Edmonton (City) (1977), 3 A.R. 116, [1977] A.J. No. 577 (S.C.), revd 6 A.R. 625 (S.C.C.); Willis v. Halifax (Regional Municipality) ~~(2009), 893 A.P.R. 345, 281 N.S.R. (2d) 345, [2009] N.S.J. No. 376 (QL), 179 A.C.W.S. (3d) 979~~, 2009 NSSC 244 (S.C.), vard 2010 NSCA 76.

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The exceptions are public nuisance cases involving accidents causing "special damage", discussed below.

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 34, and at p. 167, citing J.H. Beuscher and J.W. Morrison, "Judicial Zoning Through Recent Nuisance Cases", [1955] Wis. L. Rev. 440.

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Recognizing that there are cases to the contrary. But consider for example the rule in noise cases that the addition of a "fresh" noise to a neighbourhood militates strongly in favour of a finding of nuisance if it is a noise capable of causing disturbance: Rushmer v. Polsue & Alfieri Ltd., [1906] 1 Ch. 234 (C.A.), affd [1907] A.C. 121 (H.L.); 340909 Ontario Ltd. v. Huron Steel Products (Windsor) Ltd. (1990), 73 O.R. (2d) 641, 21 A.C.W.S. (3d) 1242, [1990] O.J. No. 997 (H.C.J.), affd 9 O.R. (3d) 305*n*, 35 A.C.W.S. (3d) 309 (C.A.); Ward v. Magna International Inc. (1994), 28 C.P.C. (3d) 327, 48 A.C.W.S. (3d) 236, [1994] O.J. No. 1123 (Ont. Ct. (Gen. Div.)), supp. reasons 21 C.C.L.T. (2d) 178, 28 C.P.C. (3d) 327at p. 346, 49 A.C.W.S. (3d) 414 (Ont. Ct. (Gen. Div.)). See also Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at pp. 420-21.

those who introduce a new or fresh annoyance to a neighbourhood in which such disturbance had previously been unknown face difficult litigation unless the fresh annoyance, viewed objectively, is minor or trivial. However, in cases against public authorities, the exercise of the zoning function is necessarily more difficult as the defendant will raise in its defence the "public interest" which may take on regional, provincial or national scope, thereby introducing a factor which is foreign to localized zoning.

The "public interest", often termed "social utility" in nuisance cases, has long been recognized in the jurisprudence as a factor to be weighed in the balance between competing uses of land.[14] It is clear both in law and in fact that public authorities have no monopoly over the public interest, but because infrastructure is typically owned and operated by public authorities in Canada, governments are the most frequent proponents of arguments based on "social utility".[15] An understanding of nuisance law in the Crown context requires an understanding of the concept of "social utility" as that term is used and applied in the cases. While some courts have cited the public interest as a key factor in denying the existence of an actionable nuisance, others have cautioned that private citizens must not themselves have to bear the full cost of social advancements.

This balancing of public interests and private rights also plays out in the context of the defence of statutory authority. This defence provides that, where the nuisance is the "inevitable

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Though typically not in cases where the conduct of the defendant causes physical injury to land, as opposed to interference with the use and enjoyment of land: see Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, at p. 761, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.). See also Smith v. Inco Ltd. (2010), 76 C.C.L.T. (3d) 92, 52 C.E.L.R. (3d) 74, 191 A.C.W.S. (3d) 623, 2010 ONSC 3790 (Ont. S.C.J.), revd but not on this point 2011 ONCA 628, [2011] O.J. No. 4386, leave to appeal to S.C.C. refused 2012 CarswellOnt 4932, 2012 CarswellOnt 4933, [2011] S.C.C.A. No. 539. But see Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.), in which the Court held that the balancing exercise used to determine whether the interference was unreasonable should be undertaken in all cases.

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This has been seen in cases involving transportation infrastructure, such as St. Pierre v. Ontario (Minister of Transportation & Communications), [1987] 1 S.C.R. 906, 39 D.L.R. (4th) 10, 22 O.A.C. 63, 40 C.C.L.T. 200, 45 R.P.R. 298, 38 L.C.R. 1, 75 N.R. 291, 4 A.C.W.S. (3d) 343; Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.); and Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.). [Note however, as discussed below, that the public interest in transportation infrastructure does not always trump private rights: see Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused [2011] S.C.C.A. No. 175; and Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.).

consequence" of the exercise of a statutory power or duty, there can be no liability. As shall be discussed, the courts have narrowly confined the scope of this defence.

Another issue explored in this chapter concerns nuisances caused by natural phenomena -- first, the flow of water, and second, the presence of dangerous natural conditions upon land (*e.g.* fire, dangerous trees, sloughing slopes). These are issues of importance to the Crown owing to the nature and extent of the Crown's landholdings. Liability for nuisances caused by the flow of water and by natural hazards upon land has largely been governed by sets of rules which differ in certain respects from the "conventional" law of nuisance. These rules are explored and the rationale for the different treatment of these cases is examined. In the case of natural hazards upon land, the law in England, and likely Canada too, imposes a duty of abatement if the hazardous condition is known to the landowner and if it is foreseeable that harm will befall one's neighbour absent abatement measures.[16] As shall be seen, the courts' articulation of this duty of abatement is very similar to the articulation given of duties in negligence law.

The chapter concludes with a review of the law of defences and remedies. The defences of statutory authority and contributory negligence are examined, as is the question of whether the Crown is immune to liability in nuisance for harm caused by government policy decisions as is the case in negligence law. As to remedies, while injunctions are typical in nuisance cases, and indeed vital to the protection of property rights, they are not available against the Crown owing to the immunity against injunctive relief preserved by the various Crown liability statutes in Canada. Accordingly, the main remedy in an action against the Crown will be damages.

The inability to obtain injunctive relief against the Crown, combined with the uncertainty of litigating when "social utility" is to be expressly considered by the court, will make nuisance actions against government unappealing in many cases, particularly if there has been no physical injury to land.[17] In addition, if it appears that the nuisance is the inevitable result of the exercise of some statutory power or duty, litigation will be particularly risky. Counsel must take care to thoroughly advise would-be plaintiffs of the special position occupied by the Crown as a defendant in cases of nuisance.

The chapter starts with a review of who may sue and be sued in nuisance, a matter of significance in the Crown context owing to the frequency with which the Crown is not in occupation of its lands and the frequency with which others are.

II. Standing

A. Standing to Sue

7:2. Introduction

Not everyone who suffers an interference with the use and enjoyment of land may sue in nuisance. In a leading English case, it was observed that "the term 'nuisance' is properly applied

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As shall be seen, the content of the duty varies with the facts of the case. In some cases, there may be an obligation to physically remove the hazard; in other cases the duty may be limited to warning one's neighbour and allowing him or her access to the land to remove the hazard.

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See footnote 14.

only to such actionable user of land as interferes with the enjoyment by the plaintiff of *rights in land*".[1]

It follows that invitees have no standing to sue. A user of a provincial park, for example, could not be heard to complain in nuisance that a nearby factory is fouling the air. In *Cuff v. Canadian National Railway Co.*,[2] it was held that recreational boat users who did not own lakefront property could not sue in nuisance for contamination of the lake caused by a train derailment.

Likewise, not every owner of land may sue in nuisance. For example, an owner of a reversionary interest has no standing to sue for interferences which occur while he is not in possession.[3] The exception would be a case of permanent interference, as in a case of physical injury to land, because the reversioner will ultimately suffer the consequence of such a nuisance.[4]

The key to standing in nuisance is rights of possession or occupation of land. Yet the authorities are difficult to reconcile. For example, a man whose foreshore oyster beds were fouled by the discharge of sewage by a local public authority was allowed to sue in nuisance on the strength of his evidence of long and exclusive occupation, notwithstanding that he could not prove title.[5] Yet a spouse occupying the family home, though not on title, has been held to have no standing to sue.[6]

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Emphasis added. Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.), *per* Lord Goff of Chieveley, adopting this language from Professor Newark's "*The Boundaries of Nuisance*" (1949), 65 L.Q.R. 480.

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Cuff v. Canadian National Railway Co. (2007), 162 A.C.W.S. (3d) 887, 2007 ABQB 761.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at pp. 474-5.

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Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.), at p. 5. Bilson argues that there is growing authority for the proposition that a reversioner could sue in nuisance for non-physical invasions of land, though the cases she cites pre-date *Hunter v. Canary Wharf Ltd.*

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Foster v. Warblington (Urban District Council), [1906] 1 K.B. 648 (C.A.). It was not a case of prescription.

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Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.). In Canada, the case of Motherwell v. Motherwell (1976), 73 D.L.R. (3d) 62, [1976] 6 W.W.R. 550, 1 A.R. 47, 1976 CarswellAlta 129, [1976] A.J. No. 555 (Alta. C.A.), stands for the proposition that a spouse not on the title who occupies the matrimonial home has standing to sue. However, in Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, 2001 BCSC 1024, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 2001

7:3. Tenants of the Crown in Possession of Crown Property

Tenants for a term in actual possession may sue in nuisance.[1] This principle is applied liberally so that, for example, when a company operating on land leased by one of its principals suffered damage resulting from the conduct of a local public authority, it was held to be entitled to sue.[2] In that case, the company occupied the land, carried on business there, and paid the rent.[3]

7:4. Holders of *Profits à Prendre*, Licences and Rights of Way

A *profit à prendre* is a right to enter upon the land of another and take therefrom a profit of the soil, such as minerals, oil, timber, fish or game.[1] The owner of a *profit à prendre* may sue

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CarswellBC 1470, [2001] B.C.J. No. 1450 (B.C. S.C.), additional reasons 212 D.L.R. (4th) 378, 2002 BCSC 661, 2002 CarswellBC 1010 (B.C. S.C.), reversed 215 D.L.R. (4th) 1, 2002 BCCA 416, [2002] 10 W.W.R. 1, 279 W.A.C. 233, 4 B.C.L.R. (4th) 205, 170 B.C.A.C. 233, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 2002 CarswellBC 1531, [2002] B.C.J. No. 1479 (B.C. C.A.), additional reasons 2003 CarswellBC 288, 2003 BCCA 14, [2003] B.C.J. No. 26 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi (note), 323 W.A.C.159 (note), 197 B.C.A.C. 159 (note), 319 N.R. 199 (note), 2003 CarswellBC 1102, 2003 CarswellBC 1103, [2002] S.C.C.A. No. 385 (S.C.C.), the court held that children occupying a family home did not have standing.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 475; Ball v. Imperial Oil Resources Ltd. (2008), 21 Alta. L.R. (5th) 169, 64 C.C.L.T. (3d) 275, 174 A.C.W.S. (3d) 716, [2008] A.J. No. 1467 (QL), 200 N8 ABQB 765 (Q.B.), affd 483 W.A.C. 251, 22 Alta. L.R. (5th) 1, 477 A.R. 251, 73 C.C.L.T. (3d) 70, 50 C.E.L.R. (3d) 1, 188 A.C.W.S. (3d) 304, 2010 ABCA 111 (C.A.); Susan Heyes Inc. v. Vancouver (City) (2009), 43 C.E.L.R. (3d) 94, 58 M.P.L.R. (4th) 191, 178 A.C.W.S. (3d) 888, 2009 BCSC 651 (B.C. S.C.), at para. 133, revd but not on this point 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A), leave to appeal to S.C.C. refused [2011] 336 D.L.R. (4th) iv, S.C.C.A. No. 175.

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Phillips v. Brockville (City) (1999), 5 M.P.L.R. (3d) 173, 90 A.C.W.S. (3d) 989, [1999] O.J. No. 3213 (Ont. S.C.J.), at paras. 110-111.

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Phillips v. Brockville (City) (1999), 5 M.P.L.R. (3d) 173, 90 A.C.W.S. (3d) 989, [1999] O.J. No. 3213 (Ont. S.C.J.).

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See British Columbia v. Tener, [1985] 1 S.C.R. 533, at pp. 690-91, 17 D.L.R. (4th) 1, [1985] 3 W.W.R. 673, 28 B.C.L.R. (2d) 241, 36 R.P.R. 291, 32 L.C.R. 340, 59 N.R. 82.

in nuisance.[2] It has been held that a grantee of any incorporeal hereditament can sue in nuisance.[3]

A person who has title to an easement or right of way may sue in nuisance if the interference with the interest in question is substantial.[4] Mere possession of land subject to an easement does not confer standing on the possessor to sue in nuisance.[5]

A licence is not a hereditament. A licensee without possession has been held to have no right of action in nuisance.[6] Accordingly, where a car parked in a lot owned by another was damaged by the painting operations of a neighbouring public authority, the car's owner had no standing to sue in nuisance.[7] However, a licensee with exclusive possession of land has standing to sue.[8] A licensee with non-exclusive possession, including a spouse not on title living in the

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Bolton v. Forest Pest Management Institute (1985), 21 D.L.R. (4th) 242, [1985] 6 W.W.R. 562, [1985] B.C.J. No. 2052 (B.C. C.A.); Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6, 2021 CarswellYukon 99 (Y.T. C.A.), at para. 104, leave to appeal refused Government of Yukon, Department of Energy, Mines and Resources (Oil and Gas Branch), et al. v. Northern Cross (Yukon) Ltd., 2022 CarswellYukon 52, [2022] S.C.C.A. No. 32 (S.C.C.); Nicholls v. Ely Beet Sugar Factory, [1931] 2 Ch. 84. See also Chingee v. British Columbia, 2016 BCSC 760, 2016 CarswellBC 1177, 267 A.C.W.S. (3d) 308 (B.C. S.C.), at para. 46, affirmed Chingee v. British Columbia, 2017 BCCA 250, 100 B.C.L.R. (5th) 96, 39 C.C.L.T. (4th) 216, 2017 CarswellBC 1729, 281 A.C.W.S. (3d) 237 (B.C. C.A.).

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Fitzgerald v. Firbank, [1897] 2 Ch. 96 (C.A.), involving a grant of a fishery.

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Chester v. Roch (1975), 20 N.S.R. (2d) 536, [1975] N.S.J. No. 524 (S.C.); Trans Mountain Pipeline Co. v. Nicola Valley Sawmills Ltd. (1975), 62 D.L.R. (3d) 279, [1975] 6 W.W.R. 234, [1975] B.C.J. No. 524 (B.C. S.C.).

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Chester v. Roch (1975), 20 N.S.R. (2d) 536, [1975] N.S.J. No. 524 (S.C.).

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Vaughn v. Halifax-Dartmouth Bridge Commission (1961), 29 D.L.R. (2d) 523, 46 M.P.R. 14 (N.S.S.C. App. Div.).

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Vaughn v. Halifax-Dartmouth Bridge Commission (1961), 29 D.L.R. (2d) 523, 46 M.P.R. 14 (N.S.S.C. App. Div.). But see Gagnier v. Canadian Forest Products Ltd. (1990), 51 B.C.L.R. (2d) 218, 23 A.C.W.S. (3d) 1040, [1990] B.C.J. No. 2359 (S.C.), in which the court refused to strike out a claim of public nuisance by a licenced crab fisher who had lost his livelihood after the Federal Government closed the fishery in the area due to the discharge of noxious chemicals into the water by Canadian Forest Products Ltd.

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Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.), citing

matrimonial home, has been held in England not to have standing.[9] An Alberta decision reached the opposite result, holding that a wife not on title had standing to sue on the basis of "occupancy of a substantial nature" and that any other result in such a case would be "absurd".[10]

In Canada, much Crown land is occupied and worked by licensees of one form or another, including forest companies, mining companies, trappers, guide outfitters, anglers, tour guide operators and others. Many of the activities of such licensees, or profit holders as the case may be, take place at such great geographic distance from any competing industrial enterprise or any competing landowner that it will be rare for such licensees to suffer invasions of their use and enjoyment of the Crown's land, leaving aside the question of their standing to sue. And indeed, there are very few cases in which such licensees have sued.

It is suggested that the question of standing in such cases should turn on the degree of use and possession by the licensee. For example, it is most doubtful that someone with a licence to guide anglers within a defined geographic area could sue for the contamination of a river within that area to which he rarely, if ever, took his clients. It may be very different, however, if the licensee had, with the Crown's permission, erected a camp on the riverbank and for years the river had been the mainstay of his business. If these were the facts, there would be little to distinguish the case from that of the oyster beds that were fouled in *Foster v. Warblington*, above.[11] In *Boucher v. Miramichi (City)*,[12] the parties to the litigation agreed that the plaintiff's licence to fish in the river gave him a right to sue in nuisance in relation to pollution which allegedly harmed the fishery.

Likewise, if fire emanating from neighbouring land were to burn down trees scheduled to be harvested by a forest licensee ten years hence, in an area not currently in occupation, it is

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Newcastle-under-Lyme Corp. v. Wolstanton, Ltd., [1947] Ch. 92, at pp. 106-108. But technically one would think a licensee could never have *exclusive* possession in the sense that a licensor's right of possession can typically be revoked by the licensor.

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Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.), at pp. 7-8.

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Motherwell v. Motherwell (1976), 73 D.L.R. (3d) 62, [1976] 6 W.W.R. 550, 1 A.R. 47 (C.A.) (which Lord Goff of Chieveley suggested is not good law: see Hunter v. Canary Wharf Ltd., [1997] H.L.J. No. 13, at p. 5, [1997] A.C. 655 (H.L.), at p. 7). The result reached in *Motherwell* was also reached in Forest Protection Ltd. v. Lewis (1980), 29 N.B.R. (2d) 167, [1980] N.B.J. No. 45 (Q.B.), revd 34 N.B.R. (2d) 508 *sub nom.* Lewis v. St. Stephen (Town) (C.A.), though *Motherwell* was not cited in the decision.

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Foster v. Warblington (Urban District Council), [1906] 1 K.B. 648.

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Boucher v. Miramichi (City) (2007), 827 A.P.R. 324, 321 N.B.R. (2d) 324, 39 M.P.L.R. (4th) 211, 161 A.C.W.S. (3d) 174, 2007 NBQB 341 (Q.B.).

unlikely the licensee would have standing to sue in nuisance.[13] However, if the fire destroyed the licensee's logging camp and equipment in an area under long occupation the claim to standing would be compelling.[14]

In what is perhaps Canada's best-known forest sector legal dispute, the battle over Clayoquot Sound, it was held that the holder of a Tree Farm Licence[15] had standing to sue in nuisance and seek injunctive relief against protestors blocking access to the licence area on the basis that its right to harvest timber in the area was akin to a *profit à prendre.*[16] The matter was appealed to the British Columbia Court of Appeal and the Supreme Court of Canada[17] and, though this issue was not under appeal in either court, MacFarlane J.A. made a point of

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If indeed there was any loss in the hands of the licensee -- assuming the trees were owned by the Crown.

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An example of a case in which a forest licensee had standing to sue in nuisance for the destruction of property is Cons. Mining, Smelting & Power Co. v. Murdoch, [1929] S.C.R. 141, [1929] 1 D.L.R. 913, though it is not clear from the decision what the nature of the licence was, nor how long the licensee had been in occupation.

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A “tenure” granted under the *Forest Act*, R.S.B.C. 1996, c. 157, pursuant to which the licensee is responsible for the harvesting of timber within a defined area and is under an obligation, *inter alia*, to pay the Crown stumpage for harvested timber.

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MacMillan Bloedel Ltd. v. Simpson (1993), 106 D.L.R. (4th) 556, 42 A.C.W.S. (3d) 592, [1993] B.C.J. No. 1798 (B.C. S.C.), affd 118 D.L.R. (4th) 1, [1994] 10 W.W.R. 705, 96 B.C.L.R. (2d) 201, 93 C.C.C. (3d) 289, 32 C.P.C. (3d) 11, 82 W.A.C. 100 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 50 A.C.W.S. (3d) 663, [1994] B.C.J. No. 2148 (C.A.), affd [1996] 2 S.C.R. 1048, 137 D.L.R. (4th) 633, [1996] 8 W.W.R. 305, 22 B.C.L.R. (3d) 201, 109 C.C.C. (3d) 259, 22 C.E.L.R. (N.S.) 1, 2 C.P.C. (4th) 161, 199 N.R. 279, 129 W.A.C. 135 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 65 A.C.W.S. (3d) 79, 31 W.C.B. (2d) 543. It is to be noted that some of the land within the Tree Farm Licence was actually owned in fee simple by the plaintiff, and the fee simple parcels were amongst those to which access had been blocked by the protestors who had occupied the only road into the licence area.

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MacMillan Bloedel Ltd. v. Simpson (1993), 106 D.L.R. (4th) 556, 42 A.C.W.S. (3d) 592, [1993] B.C.J. No. 1798 (B.C. S.C.), affd 118 D.L.R. (4th) 1, [1994] 10 W.W.R. 705, 96 B.C.L.R. (2d) 201, 93 C.C.C. (3d) 289, 32 C.P.C. (3d) 11, 82 W.A.C. 100 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 50 A.C.W.S. (3d) 663, [1994] B.C.J. No. 2148 (C.A.), affd [1996] 2 S.C.R. 1048, 137 D.L.R. (4th) 633, [1996] 8 W.W.R. 305, 22 B.C.L.R. (3d) 201, 109 C.C.C. (3d) 259, 22 C.E.L.R. (N.S.) 1, 2 C.P.C. (4th) 161, 199 N.R. 279, 129 W.A.C. 135 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 65 A.C.W.S. (3d) 79, 31 W.C.B. (2d) 543 (S.C.C.).

expressing agreement with the conclusion of the chambers judge that the plaintiff had a sufficient interest in the land to warrant standing.[18]

7:5. Interference with Indian Lands

In *Thomas v. Rio Tinto Alcan Inc.*,[1] two First Nations complained that the defendant's operation of a dam, and consequent diversion and alteration of water flowing in the river, constituted, amongst other things, a private and public nuisance. They alleged that the defendant's conduct had significant impacts on the river, including alterations in the timing and quantity of water flow, impacts on water temperature, bank erosion, unnatural sedimentation and interference with surrounding ecology, all of which had a negative impact on fish resources within the river system. The plaintiffs pleaded that they suffered an interference with their ability to utilize the river's fisheries over which they claimed an Aboriginal right, and an interference with the use and enjoyment of lands over which they claimed Aboriginal title, some of which were already reserve lands.

The chambers judge struck out the plaintiffs' nuisance claim, holding that it had no reasonable prospect of success. The chambers judge relied in part on cases which provide that persons occupying a home who are not on title do not have standing to sue, and implied that the Aboriginal interest in reserve lands was equivalent. The court viewed the alleged nuisance as essentially a claim of riparian rights, which rights were extinguished by statute prior to the creation of the reserves, and in this context concluded there was no standing to sue. The chambers judge also held that *unproven* claims of Aboriginal title or Aboriginal rights were insufficient to confer standing to sue in nuisance.

The British Columbia Court of Appeal allowed the appeal. First, the Court of Appeal held that a claim of Aboriginal title is a claim of exclusive occupation which leads to a right of possession. In this context, it is not plain and obvious that the plaintiffs do not have sufficient occupancy to sue for private nuisance. The court observed that the case law concerning the degree of occupancy necessary to confer standing to sue is in a state of uncertainty which militates against an application to strike. Second, the Court of Appeal held that the Aboriginal right to fish is akin to a *profit a prendre* which has previously been held to be a sufficient interest in land to ground a right to sue in nuisance.

As for the fact that the claims of Aboriginal title and Aboriginal rights were not yet

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MacMillan Bloedel Ltd. v. Simpson (1993), 106 D.L.R. (4th) 556, 42 A.C.W.S. (3d) 592, [1993] B.C.J. No. 1798 (B.C. S.C.), affd 118 D.L.R. (4th) 1, [1994] 10 W.W.R. 705, 96 B.C.L.R. (2d) 201, 93 C.C.C. (3d) 289, 32 C.P.C. (3d) 11, 82 W.A.C. 100 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 50 A.C.W.S. (3d) 663, [1994] B.C.J. No. 2148 (C.A.), affd [1996] 2 S.C.R. 1048, 137 D.L.R. (4th) 633, [1996] 8 W.W.R. 305, 22 B.C.L.R. (3d) 201, 109 C.C.C. (3d) 259, 22 C.E.L.R. (N.S.) 1, 2 C.P.C. (4th) 161, 199 N.R. 279, 129 W.A.C. 135 *sub nom.* MacMillan Bloedel Ltd. v. Greenpeace Canada, 65 A.C.W.S. (3d) 79, 31 W.C.B. (2d) 543 (C.A.), at para. 10.

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Thomas v. Rio Tinto Alcan Inc., 2015 BCCA 154, 2015 CarswellBC 925 (B.C. C.A.), leave to appeal refused 2015 CarswellBC 2965, 2015 CarswellBC 2966, [2015] S.C.C.A. No. 235 (S.C.C.).

proven, the Court of Appeal rejected the notion that these claims must be resolved as "pre-requisites" to a tort action. This approach was based on the conclusion that Aboriginal title and rights exist independent of any declaration or recognition. The role of a court declaration or Crown acceptance is simply to identify the exact nature and extent of the title or rights. It is open to the plaintiffs to prove their claims of Aboriginal title and rights within the tort action itself. The court did not accept that because it is only the Crown which has a duty to consult and accommodate Aboriginal interests that it is plain and obvious that a private third party such as Alcan owes no duties under the law of tort until Aboriginal title or rights are proved or recognized.

Concerning the plaintiffs' interest in the reserve lands, the Court of Appeal held that the First Nations had exclusive possession to these lands and that accordingly it is not plain and obvious that they do not have standing to sue interference with the use and enjoyment of those lands under the law of nuisance. The court pointed to its earlier decision in *Joe v. Findlay*,[2] in which it upheld a finding of trespass on reserve lands. It concluded that if the possession of reserve lands is sufficient to support a claim in trespass, it cannot be plain and obvious that it should not also support a claim in private nuisance.

The *Thomas* case proceeded to trial, and the trial judge concluded that interference with Aboriginal rights to fish can serve as a basis for a common law action against non-governmental agencies,[3] and that occupancy of reserve lands,[4] and Aboriginal title to land,[5] are interests which confer standing to sue for private nuisance.

The Court of Appeal upheld the trial judge's findings on standing.[5.10] The court observed that the issue of whether a s. 35 Aboriginal right could ground a claim in nuisance of and by itself, without any connection to the land, did not need to be decided in this case in light of the trial judge's finding of a connection between the Aboriginal right to fish and the reserve lands and waterbeds in question. However, the court went on to hold that even if the trial judge's conclusions were considered an extension of the common law, such an "incremental extension"

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Joe v. Findlay, (1981), 122 D.L.R. (3d) 377, [1981] 3 W.W.R. 60, 26 B.C.L.R. 376, [1981] 3 C.N.L.R. 58, 1981 CarswellBC 35, [1981] B.C.J. No. 366, 7 A.C.W.S. (2d) 439 (B.C. C.A.).

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at paras. 359 and 377.

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 366.

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 367.

5.10

Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.) at paras. 60-87.

would be appropriate because it will not result in indeterminate liability, protects unique constitutional rights, and is justified to prevent "yet another ... challenge to Indigenous cultural security and continuity".[5.20]

It is suggested that the case for standing in the context of reserve lands is clear. We know from other contexts that a licensee in exclusive possession has standing to sue for nuisance,[6] as does a tenant and a profit holder. As bands have exclusive possession of reserve lands, it would seem untenable that they would not have standing to sue for interference with those lands.

Outside the law of nuisance, harm to reserve lands has grounded standing to challenge government decisions.[7] Likewise, just as a strata council may sue in nuisance for harm to common property, there should be no reason why a Band Council could not do the same, though the proper procedure may be to bring the action as a representative one on behalf of the members of the band. The absence of a market for reserve lands should be immaterial.

Concerning public nuisance, the B.C. Court of Appeal in *Thomas v. Rio Tinto Alcan Inc.*[8] held that it is arguable that the alleged interference with the public's interest in harvesting fish is protected by the tort of public nuisance, and that the plaintiffs' claim of an Aboriginal right to harvest fish from the river may be sufficient to establish "special damage", thereby conferring upon the plaintiffs standing to sue for public nuisance. The case was ultimately decided on the law applicable to private nuisance rather than the alternative claim in public nuisance.[8.10]

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.) at paras. 85-86, leave to appeal refused, 2024 CarswellBC 2987 (S.C.C.).

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See above at note 29. See also note 17.

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Support for this assertion is found in Mathias Colomb Band of Indians v. Saskatchewan Power Corp., [1993] 6 W.W.R. 153, 87 Man. R. (2d) 81, 11 C.E.L.R. (N.S.) 153, 40 A.C.W.S. (3d) 692, [1993] M.J. No. 291 (Q.B.), affd 111 D.L.R. (4th) 83, [1994] 2 W.W.R. 457, 92 Man. R. (2d) 105, 13 C.E.L.R. (N.S.) 245, [1994] 4 C.N.L.R. 50 *sub nom.* Mathias Colomb Band of Indians v. Saskatchewan Power Corp., 61 W.A.C. 105, 45 A.C.W.S. (3d) 637 (Man. C.A.), leave to appeal to S.C.C. refused 111 D.L.R. (4th) vii, 100 Man. R. (2d) 299*n*, 174 N.R. 235, 91 W.A.C. 299*n*, in which it was held that a band had capacity to sue for declaratory relief relating to flooding of reserve lands allegedly caused by an extra-provincial dam on the basis that the band had a "special interest" beyond that of the public generally.

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Thomas v. Rio Tinto Alcan Inc., 2015 BCCA 154, 2015 CarswellBC 925 (B.C. C.A.) at para. 57, leave to appeal refused *Rio Tinto Alcan Inc. v. Thomas*, 2015 CarswellBC 2965, 2015 CarswellBC 2966, [2015] S.C.C.A. No. 235 (S.C.C.).

8.10

Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.) at para. 8, leave to appeal refused, 2024 CarswellBC 2987 (S.C.C.).

Mere use of lands, off reserve and outside the treaty and title contexts, has been held insufficient to ground an application for an injunction in a nuisance case aimed at stopping the spraying of a herbicide as part of a forest silviculture project.[9] In that case, one applicant held a trap line on Crown land, another held a food fishing licence conferring rights to fish part of the Skeena River, and the third applicant, the Band, adduced evidence of extensive food gathering from the lands scheduled to be sprayed. The court held that the trap line and fishing licence were not *profits à prendre* but were "mere licences" which could not ground an action in nuisance. As for the food gathering of the band, the court observed that the land in question was Crown land and that the band had, at best, no more than an "implied licence" revocable by the Crown which was an insufficient interest in land to confer rights to sue in nuisance.

B. Who Can be Sued

7:6. The Defendant Need Not Be an Immediate Neighbour

It is clear that a distant "neighbour" may be sued in nuisance. Thus in *Sutherland v. Canada (Attorney General)*,[1] homeowners some distance from the Vancouver International Airport were entitled to sue in nuisance for the noise created by planes using the airport's new second runway. Pollution cases offer other examples of this principle.[2]

7:7. When the Crown Owns the Land But Does Not Create the Nuisance

The circumstances in which an owner not in occupation can be sued has been a matter of some controversy. Bilson[1] describes the confusion caused by the "entanglement" of the concepts of liability for creation of the nuisance and liability for the ownership or control of the land from which the nuisance emanates. Bilson argues that the creator of a nuisance should be subject to suit notwithstanding that the creator may not have been in occupation of land at any material

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Bolton v. Forest Pest Management Institute, [1985] B.C.J. No. 694 (S.C.).

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Sutherland v. Canada (Attorney General) ~~(2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450~~, 2001 BCSC 1024 (B.C. S.C.), supp. reasons 2002 BCSC 661 (B.C. S. C.)~~212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.)~~, revd on other grounds ~~215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479,~~ 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi~~, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*~~.

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See, for example, Canada Paper Co. v. Brown (1922), 63 S.C.R. 243, 66 D.L.R. 287, in which an entire neighbourhood was affected by pulp mill emissions but where one party sued as he had suffered damages "sufficiently distinct" from the population at large.

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 11-14.

time, while those who merely own or occupy the land should be liable only in certain circumstances. While the former proposition remains an open question,[2] it is the latter proposition which is examined here owing to the frequency with which the Crown is not in occupation of its lands and the infrequency with which the Crown creates nuisances on lands other than its own.

One can imagine all manner of potential nuisances which could emanate from Crown lands at the hands of others. Users of parks could foul a stream used by a downstream owner for drinking water; the felling of trees on Crown land could result in a mudslide; tailings from a mine could pollute neighbouring land; mineral extraction could alter the flow of surface water in some damaging way; garbage dumped on Crown land could attract bears to a neighbourhood; an occupier of Crown land could ignite a fire which spreads to private land; and so forth.

However, it is suggested that absolute liability has no place in the law of nuisance and no absentee owner, particularly one in ownership of such vast tracts of land as the Crown in Canada, should be faulted for nuisances which he or she did not commit or permit and of which he or she could not reasonably have been aware.[3]

The fault doctrine manifests through two concepts which govern potential liability in this context. First, if the landowner authorizes or permits a use of its land by another which can be expected to cause the alleged nuisance, the landowner may be sued if harm to another results.[4] Second, where the landowner knows, or reasonably ought to know, of a nuisance and allows it to continue, or "adopts" it, the landowner may be sued.[5]

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Indeed Bilson notes that a trial decision of Devlin J., as he then was, which she cites in support of her position, was overturned by the English Court of Appeal: Southport Corp. v. Esso Petroleum Co., [1953] 2 All E.R. 1204 (Q.B.D.), revd [1954] 2 All E.R. 561 (C.A.).

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As Fleming points out, "... the pervasive fault doctrine no more by-passed the law of nuisance during the 19th century than it did trespass ... in most situations there is no longer any liability [for nuisance] without some measure of fault". See Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at pp. 475-6. See also Talarico v. Northern Rockies (Regional District) (2008), 47 M.P.L.R. (4th) 242, [2008] B.C.J. No. 1252 (QL) (S.C.).

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Durling v. Sunrise Propane Energy Group Inc., 2013 CarswellOnt 13731, 2013 ONSC 5830 (Ont. Div. Ct.). But also see Huang v. Fraser Hillary's Ltd., 2017 ONSC 1500, 9 C.E.L.R. (4th) 282, 2017 CarswellOnt 3227, 278 A.C.W.S. (3d) 219 (Ont. S.C.J.) at paras. 144-155, additional reasons 2017 ONSC 1836, 9 C.E.L.R. (4th) 335, 2017 CarswellOnt 4124, 277 A.C.W.S. (3d) 329 (Ont. S.C.J.), additional reasons *Huang v. Fraser Hillary's Limited*, 2017 ONSC 5313, 2017 CarswellOnt 14034, 283 A.C.W.S. (3d) 34 (Ont. S.C.J.) at para. 144-155, affirmed *Huang v. Fraser Hillary's Limited*, 2018 ONCA 527, 47 C.C.L.T. (4th) 70, 16 C.E.L.R. (4th) 202, 2018 CarswellOnt 9105, 293 A.C.W.S. (3d) 84 (Ont. C.A.).

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Mynott v. British Columbia (Minister of Transportation), (2011), 199 A.C.W.S. (3d) 327, 2011 BCSC 258, [2011] B.C.J. No. 336; and see also Susan Heyes Inc. v. Vancouver (City) (2009), 43

With respect to “authorization” cases, Fleming argues that the basis for liability is the landowner's “ability to control whom to admit [to his land] and on what terms”. However, in the Crown context, a distinction should be drawn between those cases in which the Crown allows the occupation of its land by a single person as through a licence, a lease or a contract for services, and those cases in which the Crown permits the public at large to occupy its land as with parks. In the former class of cases, the conduct of the occupier and its likely effects will typically be foreseeable. In the latter class, this is unlikely to be the case absent repetitive conduct of an occupier of which the Crown becomes aware.[6] Public authorities are in a special position owing to the fact that they are typically the only landowners who allow the general public access to their lands. In this context, even if permission to use the land is express, as with occupying a campsite in a provincial park, there should be no liability for nuisances created by others, absent evidence that the public authority ought to have foreseen that the nuisance in question would result from allowing access to its lands.[7]

The difficulty imposing responsibility upon public authorities for the actions of park users was expressed in *Hall v. Beckenham Corp.*,[8] in which a local authority successfully defended a nuisance action relating to the noise emitted from model airplanes flown by members of the public in a local park owned by the authority.[9]

C.E.L.R. (3d) 94, 58 M.P.L.R. (4th) 191, 178 A.C.W.S. (3d) 888, 2009 BCSC 651 at para. 171 (B.C. S.C.), revd but not on this point 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

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For example, Mynott v. British Columbia (Minister of Transportation), (2011), 199 A.C.W.S. (3d) 327, 2011 BCSC 258, [2011] B.C.J. No. 336.

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There are strong public policy reasons for promoting continued public access to Crown lands, and it is suggested that these considerations should at least factor into the analysis of the degree of fault required of the Crown before it is found liable in nuisance for the conduct of members of the public using its lands.

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Hall v. Beckenham Corp., [1949] 1 K.B. 716.

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The court observed that, absent statutory authority, the local authority could not *authorize* conduct that constituted a nuisance, but the use of model airplanes was not something that had been *authorized.* The court held that the local authority, absent passing a bylaw to prohibit the use of such planes, had no authority to eject park users who were not in violation of the law, and that, if a person outside the park had a complaint, it was with the owners of the planes. However, there was no discussion in that case of the rights of the authority, as an owner of land, to prevent the commission of torts thereupon once it became aware of the alleged nuisance. It is clear, as discussed below, that absent knowledge of the alleged nuisance, the local authority could not be faulted on the facts of the case. But if the nuisance was a continuing one and had been brought to the authority's attention, it is submitted that, subject to some statutory provision to the contrary,

When a landowner authorizes a contractor,[10] licensee,[11] or tenant[12] to use its land and the nuisance arises "from the natural and necessary result of what the landlord authorized",[13] the landowner may be sued alongside the occupier.[14] For example, in *Banfai v. Formula Fun Centre Inc.*,[15] Ontario Hydro leased land to the operator of an automobile racing amusement ride which caused a nuisance through excessive noise. Ontario Hydro was held liable on the basis that it knew the use that Formula Fun Centre intended for the property and indeed approved the layout of the track. It further knew the size, power and make of the cars to be raced and the intended hours of operation.

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the authority qua landowner could ask that the impugned activity cease and, if the perpetrator refused, could have him ejected for trespass.

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See, for example, Rutherford Condominium Assn. v. Raicon Industries Ltd., [2002] A.J. No. 1638, 2002 ABPC 204 (Prov. Ct.), or Matania v. National Provincial Bank, Ltd., [1936] 2 All E.R. 633 (C.A.).

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See R. v. Shorrock, [1994] Q.B. 279 (C.A.). While this case was a prosecution for the crime of public nuisance (hosting an outdoor rock concert), the Court of Appeal held that the principles of fault applicable in private nuisance applied -- *i.e.* that liability would result if the landowner knew or ought to have known that there was a "real risk" that a nuisance would result from the carrying on of the impugned activities.

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A.M. Linden in *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997), writes that "owners are not responsible for any nuisance created by tenants unless the premises were let for a purpose calculated to cause a nuisance" (p. 543). See also Gow v. Bridgewater (Town) (1978), 29 N.S.R. (2d) 300, [1978] N.S.J. No. 622 (S.C.).

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See Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.), at p. 697 (D.L.R.).

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In the landlord-tenant context see Sorbam Investments Ltd. v. Litwack Estate, 2017 ONSC 706, 7 C.E.L.R. (4th) 332, 77 R.P.R. (5th) 148, 2017 CarswellOnt 2673, 276 A.C.W.S. (3d) 852 (Ont. S.C.J.) at paras. 32-38, additional reasons 2017 ONSC 3265, 2017 CarswellOnt 7821, 279 A.C.W.S. (3d) 488 (Ont. S.C.J.), affirmed *Sorbam Investments Ltd. v. Litwack*, 2017 ONCA 850, 14 C.E.L.R. (4th) 300 87 R.P.R. (5th) 1, 2017 CarswellOnt 21369, 288 A.C.W.S. (3d) 677 (Ont. C.A.).

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Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.).

However, the mere issuance of a licence or permit at large, authorizing some activity not on the Crown's land, cannot give rise to liability in nuisance on the part of the issuing authority. Regulatory licences are not licences to commit torts and those operating in regulated industries must respect the property rights of others like anyone else.[16]

Similarly, the mere fact that a government funds a project will not expose the government to liability in nuisance.[17]

7:7.50. Executive Action

The BC Court of Appeal in *British Columbia (Minister of Public Safety) v. Latham* ("*Latham*")[1] confirmed that purely administrative or regulatory action impacting land cannot give rise to liability in nuisance. Nuisance requires, at minimum, that the defendant engage in some use of the land from which the interference emanates.[2] This is consistent with the traditional rationale for the tort of nuisance, which is the mediation of competing land uses.[3]

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For example, see Desrosiers v. Sullivan (1986), 76 N.B.R. (2d) 271, 40 C.C.L.T. 66, [1986] N.B.J. No. 156 (C.A.), leave to appeal to S.C.C. refused 79 N.B.R. (2d) 90*n*, 80 N.R. 315*n*, in which the court held that certificates of compliance from the Provincial Government permitting renovations and enlargements of a piggery were not "licence[s] to create a nuisance". Note, in that case the Crown was not named as a defendant; rather the landowner attempted to use the certificates of compliance as a shield in his defence.

17

See Susan Heyes Inc. v. Vancouver (City) (2009), 43 C.E.L.R. (3d) 94, 58 M.P.L.R. (4th) 191, 178 A.C.W.S. (3d) 888, 2009 BCSC 651 (B.C. S.C.), at paras. 166-169, revd but not on this point 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.). See also British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at paras. 47 and 94-95, leave to appeal SCC refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

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British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.), leave to appeal SCC refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

2

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at paras. 72 and 94-95.

3

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at paras. 92 and 96.

Latham concerned plaintiff homeowners who were barred from their properties by local and provincial authorities on the basis that they were unsafe for occupation. The homes were constructed in an area prone to sinkholes caused by underground stream activity. A number of sinkholes developed in the subdivision causing the local government to declare a State of Local Emergency under provincial emergency legislation, and to impose a mandatory evacuation order on residents. A fence was erected around the properties with the encouragement and funding of the provincial government.

Nothing was done by any party to abate the groundwater activity that was causing the sinkholes. The State of Local Emergency was renewed repeatedly for a period of several years. Each renewal required the approval of the Minister which was granted. The lower court found that the declaration of a local emergency and its approval by the Minister was initially reasonable and consistent with the applicable legislation. However, the lower court found that over time the Minister abrogated his supervisory responsibility under the legislation and was blindly approving the extension of the state of emergency without considering whether the extension was justified, which was inconsistent with the applicable statute.

On the basis that the Province had encouraged and funded the construction of the fence,[4] the lower court found that the Province and District had asserted a right to control access to the area, which conflicted with the plaintiff owners' interest in accessing their homes. Absent a lawful renewal of the State of Local Emergency, the lower court found this assertion of a right to control access was unjustified and the interference with the plaintiffs' use and enjoyment of the property was unreasonable, such that the Province was liable in nuisance.[5]

The Court of Appeal overturned the decision on the basis that the source of the alleged nuisance--the Province's extensions of the State of Local Emergency and funding of the fence--involved an exercise of its statutory powers and was a regulatory response.[6] Regulatory action alone, without use of land, could not ground liability in nuisance.

In reaching this conclusion, the BC Court of Appeal addressed the Yukon Court of Appeal's decision in *Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources)*[7]

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British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 68.

5

Rosewall v. Sechelt (District of), 2022 BCSC 20 (B.C. S.C.) at para. 97, additional reasons 2022 BCSC 448 (B.C. S.C.), reversed British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.).

6

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 95.

7

Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6 (Y.T. C.A.), leave to appeal refused *Government of Yukon, Department of Energy, Mines and Resources (Oil and Gas Branch), et al. v. Northern Cross (Yukon) Ltd.*, 2022 CarswellYukon 52,

("*Northern Cross*"), in which the Court declined to strike a pleading which alleged that a government moratorium on hydraulic fracturing ("fracking") constituted a nuisance.

Northern Cross concerned a plaintiff that expended money to start a fracking business and obtained permits which granted specified oil and gas rights over a designated area. A third party invested significant sums to pay for the plaintiff's exploration work. In 2015 the Yukon government announced a moratorium on fracking which applied to the permitted areas. There was significant oil within the area of the permits and the plaintiff alleged that the oil could only be extracted by hydraulic fracturing. Various causes of action were pleaded, including nuisance. Yukon brought a motion to strike without filing a response to the claim, arguing that the moratorium could not constitute a nuisance as it was not a use of land, and because the moratorium was a direct interference with the land, whereas nuisance involves an indirect interference with land. While conceding the point is novel, the plaintiff argued that the moratorium was akin to a fence which prevented it from exercising its rights as a holder of a *profit à prendre.*

The Court of Appeal acknowledged that nuisance law is an "awkward lens" through which to analyze the problem where the act causing the alleged nuisance is the implementation of a government policy. Nonetheless, given the absence of clear authority for the basis of the moratorium and the absence of a response to the claim (i.e. with statutory authority not yet asserted as a defence),[8] the Court concluded the matter was not plain and obvious. Among other things, the Court observed that the law of nuisance is focussed on the interference with the plaintiff's interest in land,[9] and that the law protects access to property, citing cases in which fences, gates or blockades were held to constitute a nuisance.[10]

The Court in *Latham* held that *Northern Cross* was of limited assistance to the issue of whether the Province could be liable in nuisance for purely regulatory action that interferes with

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[2022] S.C.C.A. No. 32 (S.C.C.).

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Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6 (Y.T. C.A.) at para. 107, leave to appeal refused Government of Yukon, Department of Energy, Mines and Resources (Oil and Gas Branch), et al. v. Northern Cross (Yukon) Ltd., 2022 CarswellYukon 52, [2022] S.C.C.A. No. 32 (S.C.C.).

9

Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6 (Y.T. C.A.) at paras. 111-112, leave to appeal refused Government of Yukon, Department of Energy, Mines and Resources (Oil and Gas Branch), et al. v. Northern Cross (Yukon) Ltd., 2022 CarswellYukon 52, [2022] S.C.C.A. No. 32 (S.C.C.).

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Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6 (Y.T. C.A.) at para. 106, leave to appeal refused Government of Yukon, Department of Energy, Mines and Resources (Oil and Gas Branch), et al. v. Northern Cross (Yukon) Ltd., 2022 CarswellYukon 52, [2022] S.C.C.A. No. 32 (S.C.C.).

property for a few reasons.[11] In particular, the Court observed that *Northern Cross* only dealt with a pleadings issue and made no determination on the merits. The Court in *Latham* also observed that the fence and blockade cases considered in *Northern Cross* did in fact involve competing uses of land[12] and that the observation in *Northern Cross* that the proper focus in nuisance is on harm suffered by the plaintiff was not determinative of the issue at hand.[13]

Although true that the focus of nuisance law is on the harm suffered, as affirmed in various cases cited in *Northern Cross*, including *St. Lawrence Cement Inc. v. Barrette*,[14] *Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation)*,[15] and *Baker v. Rendle*,[16] those decisions do not stand for the proposition that the cause of that harm is immaterial. Rather, they provide that it is immaterial whether the defendant is at fault, so long as its conduct results in a substantial and unreasonable interference with the use of land. This does not mean, however, that anything which unreasonably interferes with the plaintiff's use of its property can be a nuisance. For example, if the plaintiff's operations were halted because a supplier unreasonably refused to supply a key product, we would not consider this a matter of nuisance. That is because the supplier's conduct is entirely unconnected to a competing use of land.

In *St. Lawrence Cement*, the alleged nuisance was noise, dust and odours emanating from a cement plant which impacted nearby residents. In *Antrim*, the plaintiff suffered a serious interference with access to its land resulting from the construction of a new highway, and alteration of an existing highway, both situated on crown land. In *Baker v. Rendle*, the alleged nuisance was noise, fumes and odours emanating from a commercial composting operation on nearby land. In other words, each of these cases involved a competing use of land.

The passage from *Antrim* cited by the Court of Appeal in *Northern Cross* stands for the proposition that the focus of nuisance law is not on whether the defendant's conduct is

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British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 84.

12

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 85.

13

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 87.

14

Barrette c. Ciment du St-Laurent inc., (*sub nom*. St. Lawrence Cement Inc. v. Barrette) [2008] 3 S.C.R. 392, 2008 CSC 64, 2008 SCC 64.

15

Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), 2013 SCC 13 (S.C.C.).

16

Baker v. Rendle, 2017 BCCA 72 (B.C. C.A.).

unreasonable. It does not stand for the proposition that *any* conduct that interferes with a plaintiff's ability to exercise its property rights is actionable, and does not stand for the proposition that a government policy decision which is unconnected to a use of government land is actionable in nuisance. Further, *Antrim* goes on to provide that the nature of the defendant's conduct is not an irrelevant consideration. “Where the conduct is either malicious or careless, that will be a significant factor in the reasonableness analysis” and “where the defendant can establish that his or her conduct was reasonable, that can be a relevant consideration, particularly in cases where a claim is brought against a public authority”.[17]

The point is captured by a passage from *Royal Anne Hotel Co. v. Ashcroft (Village)*[18] which is reproduced at paragraph 40 of *Baker v. Rendle*:

> In my opinion the *rationale* for the law of nuisance in modern times, whatever its historical origins may have been, is the provision of a means of reconciling certain conflicting interests in connection with the use of land, even where the conflict does not result from negligent conduct. It protects against the unreasonable invasion of interests to land.

The Court of Appeal in *Latham* has confirmed that the law of nuisance should not stray far, if at all, from its role in reconciling competing uses of land. Expanding the tort to address actions which are not grounded in any competing use of land could have significant unforeseen implications, meriting a cautious approach. As the law stands, purely regulatory governmental actions will not give rise to liability in nuisance.[19]

7:8. Continuation or Adoption

Liability for continuation or adoption of a nuisance can arise whenever the owner or occupier knows, or is deemed to know, of the impugned condition or activity upon his or her land and fails to abate it. Liability can arise even when the party guilty of creating the nuisance is a trespasser, as was the case in the leading English authority on adoption, *Sedleigh-Denfield v.*

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Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), 2013 SCC 13 (S.C.C.) at para. 29.

18

Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756 (B.C. C.A.) at pp. 760-761, leave to appeal allowed (1979), 8 C.C.L.T. 179n (S.C.C.).

19

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 89. See also Hill v. Herd, 2024 BCSC 797 (B.C. S.C.), additional reasons 2024 BCSC 1653 (B.C. S.C.), affirmed 2025 BCCA 173 (B.C. C.A.), in which the plaintiffs established that smells, lights, and noise emanating from a gas station located across the alley behind their home constituted a nuisance. In addition to the claim against the gas station operators, the plaintiffs sued the municipality which owned the alley. The municipality permitted fuel deliveries from the alley, which was the cause of the smell and noise nuisances. In dismissing the nuisance claim against the municipality, the court emphasized that the municipality's involvement in fuel being delivered from the alley was purely regulatory and that the municipality had not made any use of the alley.

O'Callaghan.[1] In that case, the County Council had engaged in a culverting project and had placed a culvert so that its mouth was upon the land of the defendant O'Callaghan, an act which their Lordships held was a trespass. The Council failed to properly place a grille in front of the culvert opening to intercept sticks, twigs and other debris. A blockage of the culvert during a heavy rain subsequently led to the flooding of neighbouring land. The evidence showed that O'Callaghan's servants had for several years before the flood been in the practice of periodically cleaning out the ditch and were aware of the improper placement of the grille.

Viscount Maugham distinguished "continuance" from "adoption"[2] and held that the O'Callaghan defendants had both continued and adopted the nuisance in that case:

> After the lapse of nearly three years they must be taken to have suffered the nuisance to continue; for they neglected to take the very simple step of placing a grid in the proper place which would have removed the danger to their neighbour's land. They adopted the nuisance for they continued during all that time to use the artificial contrivance of the conduit for the purpose of getting rid of water from their property without taking the proper means for rendering it safe.[3]

Lord Atkin laid down the principle that "if a man permits an offensive thing on his premises to continue to offend, that is, if he knows that it is operating offensively, is able to prevent it, and omits to prevent it, he is permitting the nuisance to continue".[4] *Sedleigh-Denfield* has been cited on numerous occasions in Canada and appears to be generally accepted as good authority in this country.[5]

A more recent example of the "continuance" principle involving a public authority is provided by the case of *Page Motors Ltd. v. Epsom and Ewell Borough Council*,[6] in which the

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Sedleigh-Denfield v. O'Callaghan, [1940] A.C. 880 (H.L.).

2

An occupier of land "continues" a nuisance if, with knowledge or presumed knowledge of its existence, he fails to take any reasonable means to bring it to an end though with ample time to do so. He "adopts" it if he makes any use of the erection, building, bank or artificial contrivance which constitutes the nuisance (at p. 894).

3

Sedleigh-Denfield v. O'Callaghan, [1940] A.C. 880 (H.L.), at p. 895.

4

Sedleigh-Denfield v. O'Callaghan, [1940] A.C. 880 (H.L.), at p. 897.

5

See, for example, Linden's reference at p. 542 of his text, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997); and see Somerton v. Import Motors (1966) Ltd. (1981), 33 Nfld. & P.E.I.R. 452, [1981] N.J. No. 162 (Nfld. S.C.), at paras. 14-15; Gow v. Bridgewater (Town) (1978), 29 N.S.R. (2d) 300, [1978] N.S.J. No. 622 (S.C.); and Schultz v. Rycks (1964), 48 W.W.R. 150 (Alta. Dist. Ct.), at p. 156.

6

Page Motors Ltd. v. Epsom and Ewell Borough Council (1981), 80 L.G.R. 337, [1982] J.P.L. 572 (C.A.).

defendant was held liable in nuisance for failing to take timely steps to remove from its land a band of unruly gypsies whose conduct was interfering with the plaintiff's business.

Absent knowledge of the nuisance, or evidence that the defendant *ought* to have known of it, there can be no liability on the basis of continuance or adoption. For example, in a Saskatchewan case,[7] the plaintiff driver suffered injury to his van when he struck a loose manhole cover. The court proceeded on the basis that the plaintiff had a right to bring a private action for a public nuisance on the basis that he suffered "special damage".[8] However, the court rejected the claim in nuisance on the basis that the city had no knowledge of the hazard and there was no evidence that the dislodged cover had "persisted for any unreasonable length of time". A recent Newfoundland Court of Appeal case stands for the proposition that there must be a "realization or awareness" of the nuisance-causing entity or activity for there to be liability.[9]

Liability can result where a defendant knows of a *potential* nuisance and fails to abate it. In *Bybrook Barn Centre Ltd. v. Kent County Council*,[10] a flood resulted during a period of heavy runoff because a culvert was too small. At the time the culvert was installed, it was a proper size to accommodate the runoff of the catchment. However, owing to subsequent upstream development, the potential for larger runoff events arose. The defendant highway authority was found to have been aware of this but failed to increase the size of the culvert. The English Court of Appeal held that liability in this context depends upon the foreseeability[11] of the risk and that, in the face of a foreseeable risk, the defendant must do what is "reasonable" in the circumstances.[12] In *Bybrook*, that meant the highway authority was obligated to have enlarged

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Wegren v. Prince Albert (City) (2004), 251 Sask. R. 313, 131 A.C.W.S. (3d) 338, [2004] S.J. No. 348, 2004 SKPC 52 (Prov. Ct.), at paras. 23-24.

8

This notion is discussed below in the section on public nuisance.

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William L. Chafe & Son Ltd. v. Murphy, (2011), 198 A.C.W.S. (3d) 876, 2011 NLCA 18, [2011] N.J. No. 63 (Nfld. & Lab. S.C.T.D.).

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Bybrook Barn Centre Ltd. v. Kent County Council, [2000] E.W.J. No. 6428 (C.A.).

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The issue of foreseeability in nuisance law is discussed below.

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The meaning of "reasonable" in this context was taken from Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1978] 1 Q.B. 849 (C.A.), and it differs from the meaning of "reasonable" in the conventional nuisance sense, having regard as it does for the *conduct* of the defendant rather than the use to which it put its land; but neither is it identical to the meaning of "reasonable" in the negligence context. This is discussed below in the section on natural hazards upon land where the *Leakey* decision is examined more fully.

the culvert and failure to do so resulted in a finding of nuisance.

The infusion of the concepts of "foreseeability" and "reasonableness" in this context make the analysis almost indistinguishable from that in a negligence case.

III. The Elements of the Tort of Private Nuisance[13]

7:9. Introduction

The tort of private nuisance regulates competing uses of land. Any person who has suffered an "unreasonable interference" with the use of his or her land by his or her neighbour[1] may have a vehicle for redress through the tort of nuisance.

The "interference" may be a physical injury to property or a "loss of amenity" as occurs with noise, odours, or vibrations. It may even include such disturbances as causing the congregation of unsavory characters who misbehave, as by trespassing on adjacent property, using profane language or urinating in the street.[2] As is discussed below, interference with access to commercial property, leading to business loss, is also actionable as a nuisance even when there is no invasion of the land by a nuisance-causing agent.[3]

Street's definition of nuisance is frequently quoted in the case law:[4]

> "A person, then, may be said to have committed the tort of private nuisance when he is held to be responsible for an act indirectly causing physical injury to land or substantially interfering with the use or enjoyment or land or of an interest in land, where, in light of all the surrounding circumstances, this injury or interference is held to be unreasonable."

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Public nuisance is addressed further below.

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As indicated above, footnotes 1-2, the law is clear that it need not necessarily be one's immediate neighbour.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992)9, at p. 47, citing Bostock v. North Staffordshire Railway (1852), 5 De G. & Sm 584, 64 E.R. 1253; Walker v. Brewster (1867), L.R. 5 Eq. 25; Bellamy v. Wells (1890), 63 L.T. 635; Newell v. Izzard, [1944] 3 D.L.R. 118; Matheson v. Northcote College, [1975] 2 N.Z.L.R. 106.

3

See Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

4

This definition has been adopted by the Supreme Court of Canada in St. Pierre v. Ontario (Minister of Transportation & Communications), [1987] 1 S.C.R. 906, 39 D.L.R. (4th) 10, at p. 17, 22 O.A.C. 63, 40 C.C.L.T. 200, 45 R.P.R. 298, 38 L.C.R. 1, 75 N.R. 291, 4 A.C.W.S. (3d) 343, and in other leading cases such as Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.).

The term "indirectly" in this definition is used to distinguish nuisance from trespass. In nuisance, physical injuries to land result from acts or events originating on the lands of others. In *W. Eric Whebby Ltd. v. Doug Boehner Trucking & Excavating Ltd.*,[5] the requirement that the interference be "indirect" was examined and confirmed, so that the tort of nuisance was unavailable to deal with the dumping of contaminated soil on the plaintiff's land.

In *Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation)*,[6] the Court observed that a nuisance consists of an interference with the claimant's use or enjoyment of land that is both substantial and unreasonable. A "substantial" interference is one that is "non-trivial". Whether the interference is "unreasonable" also involves a consideration of how substantial it is, which the Court accepted gives rise to some duplication in the analysis. The Court held that the two-step approach has the practical advantage of allowing courts to screen out weak claims before having to confront the more complex analysis of reasonableness.[7]

To provide some elaboration of what is meant by "substantial", the Court cited other authorities for the proposition that the interference must be more than a "trivial annoyance", must be "substantial", or must interfere "to a significant extent" with the use being made of the plaintiff's property. It must "amount to more than a slight annoyance or trifling interference". Only those interferences which "materially interfere with ordinary comfort as defined according to the standards held by those of plain and sober tastes" are actionable. The law will not permit claims "based on the prompting of excessive delicacy and fastidiousness".[8]

If the interference passes this threshold, the analysis then turns to whether it is unreasonable. It must be remembered that the issue in nuisance law is that the *interference or harm* be unreasonable, rather than the *conduct of the defendant* as in the case of negligence, though as is discussed below the defendant's conduct is not irrelevant in nuisance law.

Whether the interference or harm is "unreasonable" will depend on a balancing of a wide range of factors discussed below. Prior to the Supreme Court of Canada's decision in *Antrim*,

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W. Eric Whebby Ltd. v. Doug Boehner Trucking & Excavating Ltd., (2007), 824 A.P.R. 41, 258 N.S.R. (2d) 41 (C.A.), supp. reasons 33 C.E.L.R. (3d) 112, 66 C.L.R. (3d) 177 (C.A.). W. Eric Whebby Ltd. v. Doug Boehner Trucking & Excavating Ltd. (2007), 824 A.P.R. 41, 258 N.S.R. (2d) 41, 33 B.L.R. (4th) 1, 32 C.E.L.R. (3d) 161, 64 C.L.R. (3d) 159, 160 A.C.W.S. (3d) 194, 2007 NSCA 92, supp. reasons 33 C.E.L.R. (3d) 112, 66 C.L.R. (3d) 177, *sub nom.* Doug Boehner Trucking & Excavating Ltd. v. United Gulf Developments Ltd., 161 A.C.W.S. (3d) 987, 2007 NSCA 117

6

Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.) ("*Antrim*").

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Antrim, at para. 21.

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Antrim, at para. 22.

some authorities stood for the proposition that this balancing exercise was not necessary in cases of physical injury to land as opposed to cases of loss of amenity. The Court recognized that the distinction between these two classes of case has a "long history and deep roots". But the Court in *Antrim* held that the reasonableness inquiry, or balancing exercise, should be conducted no matter what the kind of injury or interference.[9] Among other reasons, this is because in some cases the distinction between physical damage and loss of amenity will not always be clear. The distinction also fails to resolve cases involving interference with access to land, which was the matter in issue in *Antrim.*

Nevertheless, the Court in *Antrim* did recognize that the reasonableness analysis, or balancing exercise, may be "very brief" in cases involving "significant and permanent harm" to the plaintiff's land.[10] Because the distinction between cases involving physical injuries to land (where significant) and cases involving loss of amenity has "deep roots" and will undoubtedly continue, even under the *Antrim* approach, a brief review of the distinction is offered here.

7:10. Cases Involving Physical Injury to Land

Cases involving physical injury to land or property thereon have traditionally been viewed differently than those concerned with intangible interferences such as noise and odours. In *Royal Anne Hotel Co. v. Village of Ashcroft*,[1] a case involving damage caused by the blockage of a municipal sewer, the British Columbia Court of Appeal observed that "[w]here, as in the case at bar, actual physical damage occurs it is not difficult to decide that the interference is in fact unreasonable".[2] The court went on to say that cases involving smells, noise, vibration or other "intangible causes" will pose "greater difficulty".[3]

This distinction has been recognized since at least the 19th century,[4] and more recently in an Ontario decision that was affirmed by the Supreme Court of Canada,[5] in which it was held

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See also Krieser v. Garber, 2020 ONCA 699, 70 C.C.L.T. (4th) 40 (Ont. C.A.), at para. 44.

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Antrim, at para. 50.

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Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.).

2

Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.), at p. 760.

3

Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.).

4

Gaunt v. Fynney (1872), 8 Ch. App. 8, at pp. 11-12.

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that the notion of "give and take" which is fundamental to the law of nuisance was "inapplicable" to a case involving "actual physical injury".[6] The distinction was again confirmed in a 2010 Ontario Superior Court decision.[7]

The upshot is that, in cases involving physical injury to land,[8] the balancing exercise described in the next section will, as the Court in *Antrim* said, be "brief". In one post-*Antrim* decision, the physical injury to land was viewed as conclusive by the Court which did not engage in a 'balancing' exercise.[9] In another more recent decision, it was held that "substantial physical and material harm should be regarded as presumptively unreasonable."[10]

7:11. The Balancing Exercise in Nuisance Law

In organized society, particularly in urban areas, disputes over competing uses of land could be added, alongside death and taxes, to Benjamin Franklin's list of certainties in life. Almost every use of land involves risk of annoyance or disruption to another. However, the law

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317. Note that both the Ontario Court of Appeal and the Supreme Court of Canada simply approved of the decision and reasons of the Trial Judge and gave no reasons of their own.

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317, at p. 603 (H.C.J.) (O.R.).

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Smith v. Inco Ltd. (2010), 76 C.C.L.T. (3d) 92, 52 C.E.L.R. (3d) 74, 191 A.C.W.S. (3d) 623, 2010 ONSC 3790 (Ont. S.C.J.), revd but not on this point [2011] O.J. No. 4386, 2011 ONCA 628, leave to appeal to S.C.C. refused 2012 CarswellOnt 4932, 2012 CarswellOnt 4933, [2011] S.C.C.A. No. 539

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Unless it is trifling. For a recent example, see Katelnikoff v. Irricana (Town), 2024 ABCA 205 (Alta. C.A.), additional reasons 2024 ABCA 269 (Alta. C.A.), where the claimant sought a permanent injunction requiring the defendant town to remove an underground draining pipe from her property. The court found that flooding on the claimant's property as a result of the drainage pipe was "brief and trifling", such that it would be disproportionate to the inconvenience being endured to compel the town to restructure the drainage system for the subdivision to benefit a single landowner.

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Steadman v. Lambton (County), 2015 ONSC 101, 2015 CarswellOnt 833, 124 O.R. (3d) 222, 17 C.C.L.T. (4th) 257, 33 M.P.L.R. (5th) 307 (Ont. S.C.J.).

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Nerbas v. Manitoba, 2017 MBQB 206, 2017 CarswellMan 604 (Man. Q.B.) at para. 137.

has always treated nuisance as a question of degree recognizing, as indicated above, the philosophy of "give and take, live and let live",[1] and therefore restricts the class of actionable disturbances to those which are "substantial" and "unreasonable".[2]

There is now a well-established series of factors which courts consider in deciding whether the interference complained of is unreasonable. The factors include:[3]

- the nature of the act complained of;
- the nature of the injury suffered;
- the frequency of the occurrence which causes interference;
- the duration of the alleged nuisance;
- the character of the neighbourhood;
- whether the plaintiff is "overly sensitive"; and
- whether the defendant's conduct has "social utility".

The Supreme Court of Canada in *Antrim*, above, has cautioned that these factors should not be viewed as a "mandatory checklist". The task is for courts to determine if the interference is unreasonable having regard to all of the circumstances.[4]

With respect to the first two of the foregoing factors, the point is quite simple. The more

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

2

Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.), at para. 18. See also Gautam v. South Coast British Columbia Transportation Authority, 2020 BCCA 135, 37 B.C.L.R. (6th) 9 (B.C. C.A.), in which the court emphasized that "substantial" and "unreasonable" are two distinct concepts, (see paras. 95-97).

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These factors are taken from Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.); Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.); Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.); Ward v. Magna International Inc. (1994), 21 C.C.L.T. (2d) 178, 28 C.P.C. (3d) 327 at p. 346, 49 A.C.W.S. (3d) 414 (Ont. Ct. (Gen. Div.)); Barrette c. Ciment du St-Laurent inc., (*sub nom*. St. Lawrence Cement Inc. v. Barrette) [2008] 3 S.C.R. 392, 2008 CSC 64, 2008 SCC 64, at para. 77; SWA Vancouver Limited Partnership v. Unite Here, Local 40, 2019 BCSC 1806, 60 C.C.L.T. (4th) 298 (B.C. S.C.), at para. 59, and many other cases.

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Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.), at paras. 53-55.

significant or invasive the alleged nuisance, the more likely it is actionable. For example, a factory which spews toxic emissions causing injury to the health of its neighbours is likely to be enjoined, whereas the neighbours could not be heard to complain about the odd whiff of smoke which causes mere occasional annoyance.

As for the duration and frequency of the alleged nuisance, again the point is simple. Continuous or repetitive disturbances are more likely to be nuisances than those which are brief or infrequent.

The question of the "character of the neighbourhood" is an interesting one. Courts and academics have long observed that disturbances permissible in one neighbourhood may not be permissible in another.[5] The more a locality is given to a particular kind of enterprise, the more likely the court will permit that enterprise to continue there.[6] However, the inherent conservatism of this proposition collides with another well-known rule of nuisance law, that it is no defence that the plaintiff "came to the nuisance". There is no doubt that this latter proposition, viewed strictly, is accurate in the sense that this argument cannot be raised as a *defence* if a nuisance is found. However, the fact that the plaintiff came to the location of the impugned disturbance is frequently considered in the calculus of whether there has been a nuisance at all. In *Fanshawe v. London and Provincial Dairy Co.*,[7] the plaintiff complained about the clanging of milk drums day and night. The court held:[8]

> It was no answer to say that the plaintiffs had come to the nuisance -- that doctrine was now exploded; but they had elected to come to a city of noises ... A supply of milk in large quantities must take place in a place like London.

This sentiment was adopted in an Ontario case, where indeed the court went further and suggested *in obiter* that a plaintiff who moved to a locality fully aware of a given level of noise might be precluded from succeeding in nuisance,[9] though it is doubtful that this could be laid

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See Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.), at p. 21, where Galligan J.A. observed that "... people operating businesses in a locality which is essentially a commercial area are required to put up with a considerably greater intrusion on their sensibilities than do people living in a locality which is residentially oriented or substantially residential".

6

See Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992)1, at pp. 420-2, where the author argues that "social friction is ... most effectively minimized by compelling newcomers to accommodate themselves to the prevailing conditions of the neighbourhood".

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Fanshawe v. London and Provincial Dairy Co. (1888), 4 T.L.R. 694 (Ch. D.).

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As reported by *The Times.*

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Ward v. Magna International Inc. (1994), 21 C.C.L.T. (2d) 178, 28 C.P.C. (3d) 327 at p. 346, 49 A.C.W.S. (3d) 414 (Ont. Ct. (Gen. Div.)).

down as a rigid rule.

If, after the plaintiff comes to the alleged nuisance, the disturbance materially increases, the plaintiff will be relieved of the consequences of his choice and the increase will militate in favour of a finding of nuisance.[10]

The sensitivities of the plaintiff are a relevant consideration in a nuisance action.[11] In *Mandrake Management Consultants Ltd. v. Toronto Transit Commission*,[12] the Ontario Court of Appeal held that the Trial Judge had erred by failing to consider evidence that the plaintiff's building was abnormally sensitive to the noise and vibration produced by the subway system operated by the defendant. The evidence showed that the plaintiff's building was a turn of the century structure without the sorts of foundation and walls found in contemporary office buildings, and that it was uniquely susceptible to vibration and noise. The Court of Appeal held:

> If it were not for the unusual sensitivity of 15 Bedford Rd., the noise and vibrations which reach it from the subway trains might not amount to any reasonable cause for complaint. [At p. 23.]

...

> Any unusual sensitivity of one property owner to the use being made of the other must be carefully weighed because one owner's unusual sensitivity must not be allowed to turn the other's reasonable use of its property into one which is unreasonable. [At p. 25.]

Likewise, a personal plaintiff with an unusually sensitive nose could not complain of odours which cause no one else in the neighbourhood any discomfort. It is because of the law's concern not to find in favour of overly sensitive plaintiffs that one frequently sees parties

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See also *Greco v. Calgary (City)*, 2025 ABKB 629 at paras. 237-239, in which the court observed in *obiter* that the plaintiff, having moved into an industrial neighbourhood, directly across from a historic industrial site, ought to have expected exposure to more dust, noise and vibration than someone living in an entirely residential neighbourhood. The court had found the plaintiff's evidence regarding the levels of dust, noise, and vibration insufficient to establish substantial interference. The evidence she relied on consisted of her subjective views and photos and videos she documented over the span of a decade, which video and audio the court found was not reliable (paras. 211-229).

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Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.), at p. 16; Ward v. Magna International Inc. (1994), 21 C.C.L.T. (2d) 178, 28 C.P.C. (3d) 327 at p. 346, 49 A.C.W.S. (3d) 414 (Ont. Ct. (Gen. Div.)), at pp. 190-91; and Kenny v. Schuster Real Estate Co., [1990] B.C.J. No. 1420, 21 A.C.W.S. (3d) 1241 (S.C.), affd 21 W.A.C. 126, 31 A.C.W.S. (3d) 582 (B.C. C.A.).

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For example, see Powell v. Dowsley, 2016 ONSC 1951, 2016 CarswellOnt 4372, 264 A.C.W.S. (3d) 1090 (Ont. S.C.J.).

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Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.).

introduce evidence of what other neighbours think.[13] For example, in *Harcourt v. Canada (Minister of Transport)*,[14] the plaintiffs sued the defendant flying school in connection with the noise of small planes flying regularly over their property. The court observed that, if the case were to be decided on the evidence of the plaintiffs alone, the noise would constitute a nuisance, but in light of the evidence of six neighbours who testified that they were unbothered by the noise, the court concluded the plaintiffs were "oversensitive".[15]

7:12. Social Utility

It has long been the law that the harm to the plaintiff must be balanced against the "social utility" of the defendant's conduct. How to weigh the social utility of the defendant's conduct against the severity of the interference was the subject of the Supreme Court of Canada's decision in *Antrim*[1] involved a claim for injurious affection under Ontario's *Expropriations Act*,[2] pursuant to which compensation depended on establishing, *inter alia*, that the government's action would have given rise to liability but for its statutory authority. This requirement would be met if the government's actions constituted a private nuisance. The alleged nuisance in *Antrim* was an interference with access to a truck stop resulting from the relocation of a stretch of highway.

The Court in *Antrim* held that cases involving works or infrastructure serving an "important public purpose" should be analyzed in the same fashion as other private nuisance cases. That is, the reasonableness of the interference with the plaintiff's land must be determined by balancing all of the relevant considerations, including the public interest. The Court held that the balance is appropriately struck by answering the question whether, in all of the circumstances, the individual claimant has shouldered a greater share of the burden of construction than it would be reasonable to expect individuals to bear without compensation.[3]

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See Kenny v. Schuster Real Estate Co., [1990] B.C.J. No. 1420, 21 A.C.W.S. (3d) 1241 (S.C.), affd 21 W.A.C. 126, 31 A.C.W.S. (3d) 582 (B.C. C.A.); Walker v. Pioneer Construction Co. (1975), 56 D.L.R. (3d) 677, 8 O.R. (2d) 35 (H.C.J.); and Wayman v. Tedesco, [1996] B.C.J. No. 1497, 64 A.C.W.S. (3d) 442 (S.C.).

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Harcourt v. Canada (Minister of Transport), [1973] F.C. 1181 (F.C.T.D.).

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Harcourt v. Canada (Minister of Transport), [1973] F.C. 1181 (F.C.T.D.), at paras. 19 and 29.

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Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2013), 26 R.P.R. (5th) 1, 2013 CarswellOnt 2354, 2013 CarswellOnt 2355, 223 A.C.W.S. (3d) 970, 2013 SCC 13 (S.C.C.).

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R.S.O. 1990, c. E.26.

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Antrim, at para. 2.

Put another way, one can ask whether the damage flowing from the interference should be viewed as the cost of "running the system" and therefore borne by the public generally, or whether it is the type of interference that should properly be accepted by an individual as part of the cost of living in organized society.[4] All factors, such as the character of the neighbourhood, the severity and duration of the interference, and the sensitivity of the plaintiff, are to be considered in the analysis.[5]

The Court stressed that a high level of public utility is not, by itself, an answer to the reasonableness inquiry. The Court went further and held that severity of harm and social utility are "not equally weighted considerations"; severe harm is given greater weight.[6] Were it otherwise, reasoned the Court, social utility would always prevail and severe interferences with land would not be actionable against public authorities. The Court held that this would be contrary to the statutory purpose of providing compensation for injurious affection under expropriation legislation.[7] But does this reasoning apply outside the context of expropriation legislation in cases of private nuisance? The Court in *Antrim* showed no sign suggesting otherwise, and indeed referenced cases of private nuisance in support of this approach.

The Court in *Antrim* drew some distinctions between types of interferences which will assist counsel in predicting the outcome of cases. First, the Court distinguished cases of interference caused by construction activity, which interference may be short lived, from interferences which are permanent such as loss of access to property. The former is more likely to be treated as part of the "give and take" of living in organized society.[8] Second, the Court reconfirmed the notion that plaintiffs who choose to live in urban areas or near transportation corridors must be prepared to put up with greater interference than those who choose to live rurally.[9] Third, the Court held that the reasonableness of the defendant's conduct is a relevant consideration, stating that "the fact that a public work is carried out with all reasonable regard and care for the affected citizens is properly part of the reasonableness analysis".[10]

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Antrim, at para. 38.

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Antrim, at para. 40.

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Antrim, at para. 30.

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Antrim, at para. 38.

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Antrim, at paras. 41-42.

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Anterim, at para. 43.

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Antrim, at para. 44, citing Allen v. Gulf Oil Refining Co. (1980), [1981] A.C. 1001, [1980] 1 All

Having regard to the pre-*Antrim* case law, discussed below, it is suggested that the distinction between physical injuries to land versus loss of amenity again comes to the fore. In most of the cases in which the public interest has prevailed over private rights in the context of a government undertaking with high "social utility", the interference has been in the form of noise, vibrations, loss of property value, and other such less tangible injuries, as opposed to cases such as *Schenck v. Ontario* in which the harm complained of was a physical injury to the land.[11] The decisions in *Antrim* and *Susan Heyes Inc. v. Vancouver (City)*[12] suggest that a significant interference with access to land will be treated more like the case of a physical injury to land, and less like a loss of amenity. While the Court in *Antrim* was keen not to engage in this kind of categorization, it is nevertheless important to be mindful of the patterns visible in the case law and it remains the case that physical injuries to land and permanent or long-term interference with access to land will, in most cases, be treated as more worthy of compensation than interferences with amenity, particularly in the face of high social utility connected with the defendant's activity.

In *St. Pierre v. Ontario (Minister of Transportation & Communications)*,[13] the Supreme Court of Canada held that property owners adjacent to a newly constructed highway would have no common law cause of action for damages in connection with allegedly diminished property values.[14] McIntyre J. for the court observed:

E.R. 353, [1981] W.L.R. 188 (U.K. H.L.).

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Schenck v. Ontario (1981), (*sub nom.* Schenck v. R.) 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128, 11 C.E.L.R. 1, 1981 CarswellOnt 692 (Ont. H.C.), additional reasons (1982), (*sub nom.* Schenck v. Ontario (No. 2)) 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147, 12 C.E.L.R. 43, 31 C.P.C. 89, 1982 CarswellOnt 530 (Ont. H.C.), affirmed (1984), (*sub nom.* Schenck v. Ontario (No. 2)) 15 D.L.R. (4th) 320, 49 O.R. (2d) 556, 1984 CarswellOnt 1424 (Ont. C.A.), affirmed (*sub nom.* Schenck v. Ontario (Minister of Transportation & Communications)) [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82, 21 C.P.C. (2d) xlvii, 79 N.R. 317, 1987 CarswellOnt 1051F, 1987 CarswellOnt 1051, [1987] S.C.J. No. 55 (S.C.C.).

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, [2011] 5 W.W.R. 252, (*sub nom.* Heyes (Susan) Inc. v. Vancouver (City)) 510 W.A.C. 210, 15 B.C.L.R. (5th) 47, 301 B.C.A.C. 210, 80 C.C.L.T. (3d) 1, 56 C.E.L.R. (3d) 243, 98 C.L.R. (3d) 31, 79 M.P.L.R. (4th) 163, 2011 CarswellBC 269, [2011] B.C.J. No. 250, 199 A.C.W.S. (3d) 1377, 2011 BCCA 77 (B.C. C.A.), leave to appeal refused [2011] 3 S.C.R. xi (note), 534 W.A.C. 320 (note), 314 B.C.A.C. 320 (note), 428 N.R. 397 (note), 2011 CarswellBC 2668, 2011 CarswellBC 2667 (S.C.C.).

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St. Pierre v. Ontario (Minister of Transportation & Communications), [1987] 1 S.C.R. 906, 39 D.L.R. (4th) 10, 22 O.A.C. 63, 40 C.C.L.T. 200, 45 R.P.R. 298, 38 L.C.R. 1, 75 N.R. 291, 4 A.C.W.S. (3d) 343.

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> Moreover, I am unable to say that there is anything unreasonable in the Minister's use of the land. The Minister is authorized -- indeed he is charged with the duty -- to construct highways. All highway construction will cause disruption. Sometimes it will damage property, sometimes it will enhance its value. To fix the Minister with liability for damages to every landowner whose property interest is damaged, by reason only of the construction of a highway on neighbouring lands, would place an intolerable burden on the public purse. Highways are necessary: they cause disruption. In the balancing process inherent in the law of nuisance, their utility for the public good far outweighs the disruption and injury which is visited upon some adjoining lands. The law of nuisance will not extend to allow for compensation in this case.

In another highway-related case,[15] a hotel owner sued the Crown in right of British Columbia in connection with an unusual noise caused by the passage of cars over a metal grating on a highway draw bridge. The grating was used for the drawbridge surface because it was light-weight. The noise, which continued in the night, was the source of complaints from hotel guests. The court relied on *St. Pierre* and other cases for the proposition that there was social utility in the bridge decking, and this was a factor in the Crown's successful defence.[16]

In *Mandrake*,[17] the plaintiff sued the Toronto Transit Commission, which operates the Toronto subway, alleging that the noise and vibration caused by the subway were an unreasonable interference with the plaintiff's use and enjoyment of its office building. The Court of Appeal held that the Trial Judge had erred by, *inter alia*, according insufficient weight to the social utility of the subway system:

> I start by saying that while private rights cannot be trampled upon in the name of the public good, where an essential[18] public service is involved the factor of the utility of the defendant's conduct must not be

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St. Pierre v. Ontario (Minister of Transportation & Communications), [1987] 1 S.C.R. 906, 39 D.L.R. (4th) 10, 22 O.A.C. 63, 40 C.C.L.T. 200, 45 R.P.R. 298, 38 L.C.R. 1, 75 N.R. 291, 4 A.C.W.S. (3d) 343, at p. 18 (D.L.R.). Note, this was an expropriation case but the central question became the availability of a common law tort remedy. For another expropriation case in which this issue arose, see Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2011), 332 D.L.R. (4th) 641, 106 O.R. (3d) 81 (C.A.), leave to appeal to S.C.C. allowed [2011] S.C.C.A. No. 378, L.C.R., 2011 ONCA 419, 202 A.C.W.S. (3d) 310

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Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.).

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Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.), at paras. 224-230.

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Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.).

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Little emphasis should be placed on the use of the word “essential” in this passage. Nowhere in the caselaw does one see the courts concerning themselves with an assessment of whether the public work in question is “essential”. The point is, the greater the social utility the more this weighs in the balance against a finding of nuisance. There are many “non-essential” public works which have enormous public utility and one cannot construe *Mandrake* as suggesting that in such cases their utility is irrelevant to the nuisance analysis.

> disregarded. Indeed, I think it must be given substantial weight. An indication of the kind of weight which should be given to this factor where a highway is involved appears in the reasons for judgment delivered by McIntyre J. on behalf of the Supreme Court of Canada in *St. Pierre* ...
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> ...
>
> While it has been argued that *St. Pierre* is distinguishable because it arises out of land compensation proceedings, the views of McIntyre J. support my opinion that the utility of essential services is an important consideration in the balancing process inherent in a nuisance case.[19]

In *Acciaroli v. Canada*,[20] the court cited *St. Pierre* in rejecting a claim for damages resulting from the construction of a new runway at the Hamilton Civic Airport. The same result was achieved in an American case involving an airport.[21] Indeed there are a number of American cases in which the social utility of the alleged nuisance has been a key factor in the successful defence of a public authority.[22]

A recent British Columbia case shows that interference with access to land, if of long duration, will be given significant weight in the balance against the social utility of the defendant's activity. In *Susan Heyes Inc. v. Vancouver (City)*,[23] a shop owner succeeded at trial in a case in which the construction of a rapid transit line through Vancouver negatively impacted her business. The trial court found that the defendants' arguments on social utility were "not persuasive" though little explanation was given for this conclusion. The court observed that there was an alternative construction method which would have impacted the plaintiff far less. The Court of Appeal upheld the finding of nuisance notwithstanding its view that it was an error for the trial judge to have viewed both methods of construction as viable (one having numerous disadvantages, including a price tag more than half a billion dollars greater than the method chosen). Despite this error, the appeal court did not interfere with the trial judge's conclusion that the nature, severity and duration of the impact on the plaintiff outweighed the social utility of the

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Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.), at pp. 24-5.

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Acciaroli v. Canada, [1988] F.C. 389, 39 L.C.R. 318, 49 R.P.R. 277, 10 A.C.W.S. (3d) 103 (T.D.).

21

Antonick v. Chamberlain, 78 N.E. 2d 752 (1947).

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Further examples include Malhame v. Burrow of Demarest, 392 A.2d 652 (1978), which involved outdoor community emergency sirens; and Thomsen v. Minnesota, 170 N.W. 2d 575 (1969), which concerned a highway.

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Susan Heyes Inc. v. Vancouver (City), (2009), 43 C.E.L.R. (3d) 94, 58 M.P.L.R. (4th) 191, 178 A.C.W.S. (3d) 888, 2009 BCSC 651 (B.C. S.C.), revd but not on this point 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A), leave to appeal to S.C.C. refused [2011] S.C.C.A. No. 175.

rail line.[24]

Because "social utility" is a factor weighed by the courts in determining whether a nuisance exists at all, it is important for counsel to advise their clients that actions against public authorities, particularly in connection with harms allegedly caused by important public works, involve an added level of risk.[25] The level of risk is influenced by the nature of the interference. As indicated above, the law of "give and take" has been held not to apply in cases of significant physical damage, even where the impugned undertaking was of great social utility, such as a sewer[26] or a highway:

> The notion of "give and take", in my view, is inapplicable to the circumstances presented by this case and the plaintiffs ought not to be required to put up with an interference of this nature without compensation. The invasion of their proprietary interest is not comparable to the types of interference normally associated with or to be expected from a major highway, such as noise, dust, fumes, smells and the like.[27]

Note, however, that the Court in *Antrim*, above, has confirmed that even in cases of physical injury to land the court must still balance all of the relevant circumstances to determine if the interference is unreasonable.

7:13. Cases Involving Access to Land

Most of the cases which address interferences with access to land concern expropriation where, by virtue of the statutory requirements, the plaintiff claiming injurious affection must prove that the conduct of the expropriating authority would have constituted a nuisance at common law. In *Jesperson's Brake and Muffler Ltd. v. Chilliwack (District)*,[1] the plaintiff's claim concerned a loss of direct access to its property as a result of the construction of an overpass. The Court of Appeal held that because the interference was with access, rather than a case involving

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused [2011] S.C.C.A. No. 175.

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For example see Gatta Homes Inc. v. St. Catharines (City) (2009), 49 C.E.L.R. (3d) 202, 67 M.P.L.R. (4th) 102, 90 R.P.R. (4th) 40, 183 A.C.W.S. (3d) 606, [2009] O.J. No. 5058 (Ont. S.C.J.), at paras. 201-202, a case involving a landfill.

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Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, at p. 761, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.).

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, at p. 319, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

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Jesperson's Brake & Muffler Ltd. v. Chilliwack (District) (1994), 65 W.A.C. 279, 88 B.C.L.R. (2d) 230, 40 B.C.A.C. 279, [1994] B.C.J. No. 404, 52 L.C.R. 95, 45 A.C.W.S. (3d) 1240 (B.C. C.A.), leave to appeal to S.C.C. refused 90 W.A.C. 320*n*, [1994] S.C.C.A. No. 177., 178 N.R. 77*n*

loss of view, privacy, prospect or other amenity, there was no need to engage in the 'balancing' exercise that would be typical in cases involving the use and enjoyment of land. The court held that substantial interference with access is sufficient to constitute nuisance. The same conclusion was reached by the Newfoundland Court of Appeal in *Airport Realty Ltd. v. Newfoundland (Minister of Works, Services and Transportation)*.[2] In that case, the construction of a new access road to an airport left the hotel on a secondary road with little traffic.

The Ontario Court of Appeal declined to follow the decisions in *Jesperson's Brake and Muffler* and *Airport Realty.* In *Antrim*,[3] the province constructed a new stretch of highway which had the effect of re-routing traffic away from Antrim's truck stop located on the old highway. The construction was motivated by concerns for safety as there had been a high rate of accidents on the old highway. The Ontario Municipal Board awarded damages to Antrim for injurious affection, a decision upheld by the Ontario Divisional Court. The Court of Appeal concluded, however, that the Board had failed to properly consider the issue of nuisance, and in particular had failed to weigh the severity of the interference with access to Antrim's land with other factors going to the reasonableness of the interference. In particular, the court held that the Board was obligated to consider the character of the neighbourhood, Antrim's "abnormal sensitivity" to the alleged nuisance, and the "elevated importance of the utility of the defendant's conduct where the interference is the product of 'an essential public service.'"[4] The Supreme Court of Canada has overturned the decision of the Court of Appeal, and embraced the result in *Jesperson's* and *Airport Realty*, but in doing so confirmed that in cases of interference with access to land the proper approach is to engage in the very kind of balancing exercise rejected in *Jesperson*'s.

The Supreme Court's decision in *Antrim* does not expressly address whether, outside the expropriation context, interferences with access to land stand on the same footing as other interferences that invade the land in some way. However, the Court supported its analysis by reference to cases outside the statutory context and left little doubt that interference to access to land is to be treated the same way as other forms of alleged nuisance. This is also the result of both the trial and appellate decisions in *Susan Heyes Inc. v. Vancouver (City)*,[5] a case which did

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Newfoundland (Minister of Works, Services and Transportation) v. Airport Realty Ltd. (2001), 205 Nfld. & P.E.I.R. 95, 39 Admin. L.R. (3d) 255, 44 R.P.R. (3d) 175, [2001] N.J. No. 245, 76 L.C.R. 1, 2001 NFCA 45, 108 A.C.W.S. (3d) 308 (Nfld. C.A.).

3

Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2011), 332 D.L.R. (4th) 641, 106 O.R. (3d) 81, 281 O.A.C. 150, 85 C.C.L.T. (3d) 51, [2011] O.J. No. 2451, 104 L.C.R. 1, 2011 ONCA 419, 202 A.C.W.S. (3d) 310 (C.A.).

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Mandrake Management Consultants Ltd. v. Toronto Transit Commission (1993), 102 D.L.R. (4th) 12, 62 O.A.C. 202, 11 C.E.L.R. (N.S.) 100, 15 M.P.L.R. (2d) 131, 40 A.C.W.S. (3d) 203 (C.A.).

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, [2011] 5 W.W.R. 252, (*sub nom.* Heyes (Susan) Inc. v. Vancouver (City)) 510 W.A.C. 210, 15 B.C.L.R. (5th) 47, 301

not concern expropriation legislation in which the Supreme Court of Canada denied leave to appeal.

The decisions in *Heyes* and *Antrim* will likely lead to increasing litigation in cases of interference with access to property. Until we have a much deeper body of case law, the results in many cases will remain difficult to predict. While it may be straightforward to predict the outcome in some cases, such as *Antrim*, which involve permanent impairment of access that significantly harms the value of property or the viability of a business, there will be myriad cases of lesser interference where the outcome will be less clear. The Supreme Court in *Antrim* suggested that the result in such cases should be governed by a consideration of whether the individual claimant has shouldered a greater share of the burden than it would be reasonable to expect individuals to bear without compensation. Clearly, this notion offers relatively little value as a device to predict the outcome of future cases. However, the Court attempted to provide some guidance by confirming that the duration of the interference, the character of the neighbourhood, and the efforts taken by the public authority to minimize disruption to affected neighbours will be important considerations.[6] The British Columbia Court of Appeal recently held that in a case where a public work interferes with the businesses of multiple plaintiffs, the trial judge must assess the unique circumstances of each, including an assessment of the financial effects of the alleged nuisance and the long-term benefit the business could expect to receive from the completion of the works.[7]

Protests or strikes which block access to a business are actionable in nuisance if the interference is substantial and unreasonable.[8]

The question of duration of interference is an important one in light of the frequency with which access to property is temporarily impaired in urban settings as a result of road construction and repair, sewer maintenance, building construction, public events, and many other things. In such cases direct neighbours will always shoulder more than their share of the cost of public

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B.C.A.C. 210, 80 C.C.L.T. (3d) 1, 56 C.E.L.R. (3d) 243, 98 C.L.R. (3d) 31, 79 M.P.L.R. (4th) 163, 2011 CarswellBC 269, [2011] B.C.J. No. 250, 199 A.C.W.S. (3d) 1377, 2011 BCCA 77 (B.C. C.A.), leave to appeal refused [2011] 3 S.C.R. xi (note), 534 W.A.C. 320 (note), 314 B.C.A.C. 320 (note), 428 N.R. 397 (note), 2011 CarswellBC 2668, 2011 CarswellBC 2667 (S.C.C.).

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Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation) (2011), 332 D.L.R. (4th) 641, 106 O.R. (3d) 81, 281 O.A.C. 150, 85 C.C.L.T. (3d) 51, [2011] O.J. No. 2451, 104 L.C.R. 1, 2011 ONCA 419, 202 A.C.W.S. (3d) 310 (C.A.), at paras. 41-44.

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Gautam v. South Coast British Columbia Transportation Authority, 2020 BCCA 135, 37 B.C.L.R. (6th) 9 (B.C. C.A.), at paras. 104, 105, 110-111.

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Hudson Bay Mining & Smelting Co. v. Dumas, 2014 MBCA 6, 370 D.L.R. (4th) 237, [2014] 4 W.W.R. 245, 600 W.A.C. 101, 303 Man. R. (2d) 101, 80 C.E.L.R. (3d) 194, 301 C.R.R. (2d) 83, 2014 CarswellMan 26, 237 A.C.W.S. (3d) 478 (Man. C.A.), at paras. 65-75.

works, but if we do not allow that the defendants' neighbours must be prepared to put up with temporary impairment of access, endless litigation will be encouraged which could have serious repercussions for the efficiency and cost of city planning and urban development. In urban settings, interferences of short duration due to works, undertakings and events that are typical for cities are unlikely to be nuisances.

A topic not addressed by *Antrim*, and which cannot be fully addressed within the scope of this chapter, is whether the approach to "balancing" should be different when the defendant is a private actor pursuing works or undertakings for profit. If the construction of a sports arena owned privately causes traffic to be re-routed or sidewalks to be closed for a period of months, resulting in losses to neighbouring businesses, are trial courts to balance the "social utility" of the arena in deciding the outcome? And if so, is its social utility to be given less weight because it is not a public work? On the one hand, answering "yes" to the first question is consistent with the Supreme Court's view in *Antrim*, and with the law of nuisance generally, that all relevant circumstances are to be considered, and recognizes that governments have no monopoly over the public interest. Many privately funded undertakings have significant "social utility" and there is no justification for ignoring this in the balance of competing interests. On the other hand, answering "yes" to the second question recognizes that in such cases the defendant may be *profiting* at the expense of its neighbours, a dynamic which clearly does not arise in the context of public works. While there is no doubt that we must all put up with disruption and inconveniences, particularly in urban settings, the policy rationale for asking citizens to "live and let live" is diminished when one party's profits are made on the back of the other party's losses. In many cases, the answers to the foregoing questions may be academic if the defence of statutory authority applies, as it often will when a city government sanctions road or sidewalk closures or the re-routing of traffic.[9]

In *Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources)*[10] ("*Northern Cross*") the chambers judge and the Yukon Court of Appeal declined to strike a pleading which alleged that a government moratorium on hydraulic fracturing ("fracking") constituted a nuisance. In the law of nuisance the offending conduct is typically a competing use of land, meaning *Northern Cross* is an exceptional case. The author is not aware of any case in which a government moratorium or similar government policy was held to constitute a nuisance.

In *Northern Cross* the plaintiff expended money to start a fracking business and obtained permits which granted specified oil and gas rights over a designated area. A third party invested

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See §7:23 below, and in particular see Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, [2011] 5 W.W.R. 252, (*sub nom.* Heyes (Susan) Inc. v. Vancouver (City)) 510 W.A.C. 210, 15 B.C.L.R. (5th) 47, 301 B.C.A.C. 210, 80 C.C.L.T. (3d) 1, 56 C.E.L.R. (3d) 243, 98 C.L.R. (3d) 31, 79 M.P.L.R. (4th) 163, 2011 CarswellBC 269, [2011] B.C.J. No. 250, 199 A.C.W.S. (3d) 1377, 2011 BCCA 77 (B.C. C.A.), leave to appeal refused [2011] 3 S.C.R. xi (note), 534 W.A.C. 320 (note), 314 B.C.A.C. 320 (note), 428 N.R. 397 (note), 2011 CarswellBC 2668, 2011 CarswellBC 2667 (S.C.C.).

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Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6, 2021 CarswellYukon 99 (Y.T. C.A.).

significant sums to pay for the plaintiff's exploration work. In 2015 the Yukon government announced a moratorium on fracking which applied to the permitted areas. There was significant oil within the area of the permits and the plaintiff alleged that the oil could only be extracted by hydraulic fracturing. Various causes of action were pleaded, including nuisance. Yukon brought a motion to strike without filing a response to the claim. The Court of Appeal noted that "the precise basis for the Moratorium has not been addressed and ... no issue of either statutory authority or statutory immunity arises".[11]

Yukon argued that the moratorium could not constitute a nuisance as it was not a use of land, and because nuisance involves an indirect interference with land whereas the moratorium is direct. The Court of Appeal concluded that these matters are not plain and obvious. The court observed that the law of nuisance is focussed on the interference with the plaintiff's interest in land, and that the law protects access to property, citing cases in which fences, gates or blockades were held to constitute a nuisance. While conceding the point is novel, the plaintiff argued that the moratorium was akin to a fence which prevented it from exercising its rights as a holder of a *profit à prendre*.

The Court of Appeal cited *St. Lawrence Cement Inc. v. Barette*,[12] *Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation)*,[13] and *Baker v. Rendle*[14] for the proposition that the focus of nuisance law is on the harm suffered by the plaintiff, rather than on the nature of the conduct giving rise to that harm. The court noted that Yukon sought to reverse this focus, emphasizing instead the nature of the conduct leading to the interference.

The Court of Appeal acknowledged that nuisance law is an "awkward lens" through which to analyze the problem where the act causing the alleged nuisance is the implementation of a government policy. Nonetheless, given the absence of clear authority and the absence of a response to the claim (*i.e.* with statutory authority not yet asserted as a defence) the court concluded the matter was not plain and obvious.

The Court's reference to *St. Lawrence Cement Inc.*, *Antrim,* and *Baker v. Rendle* merits comment. It is true that these decisions stand for the proposition that the focus of nuisance law is on the harm suffered, but they do not stand for the proposition that the cause of that harm is immaterial. Rather, they provide that it is largely immaterial whether the defendant's conduct is intentional, negligent or innocent, so long at it results in a substantial and unreasonable

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Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources), 2021 YKCA 6, 2021 CarswellYukon 99 (Y.T. C.A.), at para. 107.

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Barrette c. Ciment du St-Laurent inc., (*sub nom*. St. Lawrence Cement Inc. v. Barrette) [2008] 3 S.C.R. 392, 2008 CSC 64, 2008 SCC 64.

13

Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), 2013 SCC 13, 99 C.C.L.T. (3d) 1 (S.C.C.).

14

Baker v. Rendle, 2017 BCCA 72, 94 B.C.L.R. (5th) 96 (B.C. C.A.).

interference with the use of land. In other words, *fault* is not the issue. This does not mean, however, that anything which unreasonably interferes with the plaintiff's use of its property can be a nuisance. For example, if the plaintiff's operations were halted because a supplier unreasonably refused to supply a key product, we would not consider this a matter of nuisance. That is because the supplier's conduct is entirely unconnected to a competing use of land.

In *St. Lawrence Cement*, the alleged nuisance was noise, dust and odours emanating from a cement plant which impacted nearby residents. In *Antrim*, the plaintiff suffered a serious interference with access to its land resulting from the construction of a new highway, and alteration of an existing highway, both situated on crown land. In *Baker v. Rendle,* the alleged nuisance was noise, fumes and odours emanating from a commercial composting operation on nearby land. In other words, each of these cases involved a competing use of land.

The passage from *Antrim* cited by the Court of Appeal in *Northern Cross* stands for the proposition that the focus of nuisance law is not on whether the defendant's conduct is unreasonable. It does not stand for the proposition that *any* conduct that interferes with a plaintiff's ability to exercise its property rights is actionable, and does not stand for the proposition that a government policy decision which is unconnected to a use of government land is actionable in nuisance. Further, *Antrim* goes on to provide that the nature of the defendant's conduct is not an irrelevant consideration. “Where the conduct is either malicious or careless, that will be a significant factor in the reasonableness analysis” and “where the defendant can establish that his or her conduct was reasonable, that can be a relevant consideration, particularly in cases where a claim is brought against a public authority”.[15]

The point is captured by a passage from *Royal Anne Hotel Co. v. Ashcroft (Village)*[16] which is reproduced at paragraph 40 of *Baker v. Rendle*:

> In my opinion the *rationale* for the law of nuisance in modern times, whatever its historical origins may have been, is the provision of a means of reconciling certain conflicting interests in connection with the use of land, even where the conflict does not result from negligent conduct. It protects against the unreasonable invasion of interests to land.

How far the law of nuisance should stray, if at all, from its role in reconciling competing uses of land is an open question. Expanding the tort to address actions which are not grounded in any competing use of land could have significant unforeseen implications, which merits the adoption of a cautious approach.

The British Columbia Court of Appeal recognized this in *British Columbia (Minister of Public Safety) v. Latham*.[17] In *Latham*, the plaintiff homeowners were barred from their

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Antrim Truck Centre Ltd. v. Ontario (Ministry of Transportation), 2013 SCC 13, 99 C.C.L.T. (3d) 1 (S.C.C.), at para. 29.

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Royal Anne Hotel Co. v. Ashcroft (Village), 8 C.C.L.T. 179, 95 D.L.R. (3d) 756 (B.C. C.A.) at p. 760-761.

17

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.), leave to appeal refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British*

properties by local and provincial authorities on the basis that they were unsafe for occupation. The homes were constructed in an area prone to sinkholes caused by underground stream activity. A number of sinkholes developed in the subdivision causing the local government to declare a State of Local Emergency under provincial emergency legislation, and to impose a mandatory evacuation order on residents. A fence was erected around the properties with the encouragement and funding of the provincial government.

Nothing was done by any party to abate the groundwater activity that was causing the sinkholes. The State of Local Emergency was renewed repeatedly for a period of several years. Each renewal required the approval of the Minister which was granted. The court found that the declaration of a local emergency and its approval by the Minister was initially reasonable and consistent with the applicable legislation. However, the court found that over time the Minister abrogated his supervisory responsibility under the legislation and was blindly approving the extension of the state of emergency without considering whether the extension was justified. The court found it was not justified, and that the routine extension of the state of emergency was inconsistent with the applicable statute and was used as an excuse for inaction.

The central question in the case was whether the Province could be sued in nuisance.

As addressed in greater detail in §7:7.5, the Court of Appeal in *Latham* found that *Northern Cross* was only of limited assistance.[18] The Court of Appeal went on to confirm that the Province could not be liable in nuisance for actions that are purely regulatory in nature, notwithstanding such actions may interfere with a claimant's use of land.[19] The court held that a defendant government entity must, at a minimum, "be engaged in a use of land in order to attract liability in nuisance".[20-22]

Columbia (Minister of Public Safety), 2023 CarswellBC 3793 (S.C.C.).

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British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at paras. 84-87, leave to appeal refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

19

British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at paras. 89 and 94, leave to appeal refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

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British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 94, leave to appeal refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

In *Northern Cross* the court did not address the jurisprudence relating to government immunity from tort liability for core policy decisions. This topic is addressed elsewhere in this chapter, where is it suggested that core policy immunity as applied in negligence law should not apply to the Crown in connection with its use of land where such use causes a nuisance.[23] However, *Northern Cross* does not involve government conduct in the use of its own land. And there is no question that a moratorium on fracking is a core policy decision as that phrase is used in cases such as *Nelson (City) v. Marchi*.[24] It can be argued that the concern expressed in *Marchi* that courts should respect the separation of powers by protecting core policy decisions from tort liability, applies equally to an action in nuisance impugning a government moratorium.

7:14. Two Special Cases of Importance in the Crown Context-- The Flow of Water

The Anglo-Canadian caselaw on liability for damage caused by the flow of natural[1] water is labyrinthine, each decision drawing you down a new path, lines of cases pointing you in irreconcilable directions, and never an end in sight.[2] "Rules" concerning liability for water flow abound, yet inconsistencies in the articulation and application of the rules confound even the dedicated reader.

Rescue may come in the form of modern nuisance theory,[3] and particularly in the concepts of unreasonable interference and foreseeability which have played little role thus far in the water flow jurisprudence.[4] Yet most decisions in recent years continue to apply rules unique to this area of the law.

The water flow jurisprudence is rightly viewed as a branch of nuisance law, concerned as it is with injury to land and not with the degree of care shown by the defendant; but liability for

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See §7:24.

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Nelson (City) v. Marchi, 2021 SCC 41, 463 D.L.R. (4th) 1 (S.C.C.).

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By "natural" is meant water brought to the location in question by rain, by natural watercourses, or through the forces of groundwater, and including water from such sources as has been redirected or channeled by the defendant. The use of "natural" is meant to exclude water that is brought to a site artificially, as for example in a swimming pool or through civic waterworks.

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The Anglo-Canadian decisions in this area in the last 150 years number well into the hundreds.

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Indeed an attempt at this was made in Di Gregorio v. Osborne (2004), 20 R.P.R. (4th) 181, 131 A.C.W.S. (3d) 190, [2004] O.J. No. 2156 (Ont. S.C.J.).

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This is discussed below, but a proper assessment of whether to discard the rules governing liability for water flow in favour of a uniform theory of nuisance is beyond the scope of this chapter.

damage caused by the flow of water has, for at least two hundred years, been governed by its own set of rules which have no application outside this nook of the common law.

The starting point in the juridical regulation of water flow at common law is a concept known as the "common enemy" rule.[4.50] The notion is that each landowner should be free to deter, deflect, or divert naturally occurring surface water as he or she wishes, even to the detriment of his or her neighbour, who in turn may do the same thing. This is in contrast to the so-called "natural flow" rule which provides that a lower landowner may not bar the natural flow of water thereby flooding the land of the upper landowner, and that an upper landowner must not act to increase the burden of surface water on the lower landowner. The "natural flow" rule has not been favoured[5] in most Canadian provinces.[6]

Within the body of cases embracing the common enemy rule, observance of the rule has taken many forms and, as shall be shown, the current state of the law is probably best described as a hybrid between the common enemy and natural flow rules.

The high water mark for the common enemy rule in Canada was *Dean v. Board of Park Management of the City of Sudbury*,[7] a case in which it was alleged that the defendant had caused flooding of the plaintiff's land by raising the grade of a street in connection with the development of an athletic park. The road works had the effect of deflecting spring water, which previously flowed in another direction, toward the plaintiff's land. The Weekly Note described how the court was unable to find any right of action on these facts: "[t]he owner of lands is entitled to alter the surface and grades of his lands, and to level and otherwise improve them, without incurring any liability for the surface water which in the course of nature falls upon the lands, and in the course of nature drains from them".[8]

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MacKay v. Brookside Campsite Inc., 2021 BCSC 1304, 2021 CarswellBC 2127 (B.C. S.C.), at para. 127.

5

As discussed below, while most Canadian cases adopt the common enemy rule, they adopt it with varying degrees of orthodoxy, and the courts appear to have carved out a middle ground between the two rules.

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For further discussion see Brightwood Golf & Country Club Ltd. v. Loring (1973), 44 D.L.R. (3d) 161, 8 N.S.R. (2d) 431 (C.A.), and B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 20-21. See also, Dankiewicz v. Sullivan, [2011] O.J. No. 2908, 204 A.C.W.S. (3d) 427, 2011 ONSC 3485 (S.C.J.).

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Dean v. Sudbury (City), [1939] 1 D.L.R. 785, [1939] O.W.N. 82 (C.A.).

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Dean v. Sudbury (City), [1939] 1 D.L.R. 785, [1939] O.W.N. 82 (C.A.), at p. 83 (O.W.N.). Note the reference to water "falling" upon the lands would in this case appear to include spring water. The caselaw on groundwater is further discussed below.

There are a number of decisions since *Dean* in which the common enemy rule has been applied almost as unforgivingly. These include a case in which the owners of a plant nursery altered the flow of surface water by removing natural vegetation and altering the soil structure on their land thereby causing silty water and other debris to flow onto a neighbouring golf course in periods of heavy rain;[9] and a case in which a municipality caused flooding of a neighbour by raising the height of a road and removing two culverts which, for 35 years previously, had transported water under the road in times of heavy runoff.[10] In both cases the plaintiffs failed.

Quite naturally, however, many courts have struggled with the idea that the innocent lower landowner should suffer the burdens of the upper landowner's improvements. The common enemy rule, applied strictly, can effect results that are harsh, and a retreat from strict observance of the rule is welcome. The difficulty is that the language of retreat has never been consistent and the jurisprudence is now a hodgepodge of cases which have robbed the law of any predictability.

The decision in *Brightwood Golf & Country Club Ltd. v. Loring*[11] represents perhaps the most significant retreat from strict adherence to the common enemy rule. In that case, the defendant *removed* a stone wall which had bounded its land for many years and which had directed water away from the plaintiffs' land. Its removal caused flooding of the plaintiffs' land. The court held that an upper landowner is not obliged to take positive steps to ensure that surface water flowing from his or her land does not injure his neighbour "so long as he does nothing materially to increase or change the direction of the flow".[12] This language tempers the common enemy rule, as many improvements to land will materially change the direction of water flow.[13]

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270233 Ontario Ltd. v. Weall and Cullen Nurseries Ltd. (1993), 17 C.C.L.T. (2d) 176, 42 A.C.W.S. (3d) 417, [1993] O.J. No. 1895 (Ont. Ct. (Gen. Div.)), affd 41 C.C.L.T. (2d) 239, 74 A.C.W.S. (3d) 897, [1997] O.J. No. 4153 (Ont. C.A.). Note that concepts of "natural user" of land and "reasonableness" are raised in the lower and appellate court decisions respectively and these are discussed further below.

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Raffray v. Ste. Rose (Rural Municipality) (1976), 66 D.L.R. (3d) 343 (Man. Q.B.).

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Brightwood Golf & Country Club Ltd. v. Loring (1973), 44 D.L.R. (3d) 161, 8 N.S.R. (2d) 431 (C.A.).

12

The court observed that the plaintiffs may have acquired an easement by prescription in the stone wall and its protection, and this appears to have influenced the court.

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The decision in Brightwood Golf & Country Club Ltd. v. Loring (1973), 44 D.L.R. (3d) 161, 8 N.S.R. (2d) 431 (C.A.), was recently cited with approval in Rashiq v. Derrick Golf and Winter Club, 2019 ABQB 435, 2019 CarswellAlta 1156, 306 A.C.W.S. (3d) 669 (Alta. Q.B.), at para. 14.

A further example of language which has served only to confuse matters is found in the reasons of Lord Watson in *John Young and Co. v. Bankier Distillery Co.*,[14] in which his lordship stated that a lower landowner cannot object to the flow of water unless it has been "unduly and unreasonably increased by operations which are in *aemulationem vicini*", which directly translated means "in envy or hatred of a neighbour". This passage has been quoted in a British Columbia decision,[15] though to the extent Lord Watson meant for spite to be a material issue in assigning fault, his opinion has been rightly rejected by the Ontario Court of Appeal.[16]

It is clear, however, that where the defendant causes water which is naturally upon his or her land to be pooled or *channeled* and then directed onto the land of his or her neighbour, liability will typically flow.[17]

An entirely separate set of rules applies to water flowing in a natural watercourse, to which adjacent landowners may have riparian rights. Whereas the common enemy rule permits a lower landowner to block the flow of diffuse surface water onto his land, including with dikes,[18] if the water flows in a watercourse, he may not block it if his actions flood or otherwise harm the land of his uphill neighbour.[19] "Watercourse" is a term of art meaning a "stream, usually flowing

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John Young and Co. v. Bankier Distillery Co., [1893] A.C. 691.

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Peace Portal Properties Ltd. v. Surrey (District), [1989] B.C.J. No. 533, 14 A.C.W.S. (3d) 410 (S.C.), at para. 9, vard 70 D.L.R. (4th) 525, 50 M.P.L.R. 34, 21 A.C.W.S. (3d) 9 (B.C. C.A.).

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Scarborough Golf & Country Club v. Scarborough (City) (1988), 54 D.L.R. (4th) 1, at pp. 9-10, 66 O.R. (2d) 257, 31 O.A.C. 260, 41 M.P.L.R. 1 *sub nom.* Scarboro (Scarborough) Golf & Country Club Ltd. v. Scarborough (City), 1 R.P.R. (2d) 225, 13 A.C.W.S. (3d) 43, [1988] O.J. No. 1981 (C.A.), leave to appeal to S.C.C. refused 60 D.L.R. (4th) v, 69 O.R. (2d) x, 37 O.A.C. 91*n*, 103 N.R. 399*n*. The court noted that Lord Watson's opinion may be a correct statement of Scots Law, at least as it was at the time.

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Some examples are Trans Mountain Pipeline Co. v. Nicola Valley Sawmills Ltd. (1975), 62 D.L.R. (3d) 279, [1975] 6 W.W.R. 234 (B.C. S.C.); Orangeville Raceway Ltd. v. Adera Nurseries Ltd., [1995] B.C.J. No. 3061 (S.C.); Berry v. Trinidad Leaseholds (Canada) Ltd., [1953] 4 D.L.R. 504 (Ont. C.A.); Middelkamp v. McMath, [1990] B.C.J. No. 571, 20 A.C.W.S. (3d) 129 (S.C.), revd (appeal from costs) 93 B.C.L.R. (2d) 386, 27 C.P.C. (3d) 308, 78 W.A.C. 79, 49 A.C.W.S. (3d) 233 (B.C. C.A.); and Flaro v. Roffey, [1993] O.J. No. 562, 38 A.C.W.S. (3d) 1169 (Gen. Div.). See also MacKay v. Brookside Campsite Inc., 2021 BCSC 1304, 2021 CarswellBC 2127 (B.C. S.C.), at para. 133.

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See Meier v. Municipality of Franklin, [1927] 2 D.L.R. 294, [1927] 1 W.W.R. 753, 36 Man. R. 390 (Man. C.A.), and see Caplin v. Gill (1977), 84 D.L.R. (3d) 765, 5 B.C.L.R. 115 (S.C.).

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in a definite channel, having a bed and sides or banks and discharging itself into some other stream or body of water".[20] It does not include a "depression or natural draining which merely carries water in a rainy season ... nor a ravine which at certain seasons facilitates the drainage of the country ...".[21] Cases which hold that gullies and other depressions carrying surface water on an ephemeral basis are not watercourses are to be preferred.[22] "Freshets" in a "ravine" have been viewed as a watercourse,[23] though this is likely incorrect.

Further rules peculiar to cases involving watercourses include that an upper landowner may divert surface flow into a watercourse thereby increasing the downstream flow, including to the detriment of a lower landowner,[24] but that, if he diverts so much that the natural capacity of the watercourse is exceeded, he will be liable.[25]

The rules are different still for groundwater. At common law there are no riparian rights

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Caplin v. Gill (1977), 84 D.L.R. (3d) 765, 5 B.C.L.R. 115 (S.C.).

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Edwards v. Rural Municipality of Scott, [1934] 1 W.W.R. 33 (Sask. C.A.), affd [1934] S.C.R. 332, [1934] 3 D.L.R. 793. The *Edwards* definition was adopted in Jansen Contracting Ltd. v. North Cowichan (District) (1999), 69 B.C.L.R. (3d) 60, 7 M.P.L.R. (3d) 86, 211 W.A.C. 58, 92 A.C.W.S. (3d) 149, [1999] B.C.J. No. 2308 (C.A.).

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Edwards v. Rural Municipality of Scott, [1934] 1 W.W.R. 33 (Sask. C.A.), affd [1934] S.C.R. 332, [1934] 3 D.L.R. 793. See similar definitions in Lee v. Arthur (1965), 52 D.L.R. (2d) 263, 52 W.W.R. 166 (Man. C.A.), and Bavelas v. Copley (1999), 1 M.P.L.R. (3d) 290, 87 A.C.W.S. (3d) 847, [1999] B.C.J. No. 955 (B.C. S.C.), supp. reasons 95 A.C.W.S. (3d) 44 (B.C. S.C.), revd 87 B.C.L.R. (3d) 374, 37 C.E.L.R. (N.S.) 136, 16 M.P.L.R. (3d) 28, 245 W.A.C. 290, 103 A.C.W.S. (3d) 622, 2001 BCCA 160 (C.A.).

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For example *Jansen Contracting Ltd. v. North Cowichan (District)* (1999), 69 B.C.L.R. (3d) 60, 7 M.P.L.R. (3d) 86, 211 W.A.C. 58, 92 A.C.W.S. (3d) 149, [1999] B.C.J. No. 2308 (C.A.).

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Beer v. Stroud (1887), 19 O.R. 10.

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Romanica v. Greater Winnipeg Water District (1921), 60 D.L.R. 58, [1921] 2 W.W.R. 399, 31 Man. L.R. 178 (Man. C.A.).

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Peace Portal Properties Ltd. v. Surrey (District), [1989] B.C.J. No. 533, 14 A.C.W.S. (3d) 410 (S.C.), at para. 9, vard 70 D.L.R. (4th) 525, 50 M.P.L.R. 34, 21 A.C.W.S. (3d) 9 (B.C. C.A.), and Clayton Developments Ltd. v. Nova Scotia Housing Commission (1981), 51 N.S.R. (2d) 451 (C.A.), leave to appeal to S.C.C. refused 50 N.S.R. (2d) 563*n*, 42 N.R. 269*n*.

in groundwater.[26] As a result, an upper landowner may draw groundwater from the ground for his own purposes, even if the effect of his action is to deprive the lower landowner from a supply of groundwater.[27] This rule, quite ancient in origin, has been applied in modern times.[28]

A common case involves extraction of groundwater leading to subsidence of a neighbour's land, a matter which has been addressed in detail by the Ontario Court of Appeal in *National Capital Commission v. Pugliese.*[29] In *Pugliese*, the Court of Appeal rejected the "English rule" of groundwater extraction, which allowed unlimited extraction despite the effect on one's neighbour, and brought this area of the law into line with modern nuisance concepts of reasonableness and "give and take". The court held:

> ... an owner of land does not have an absolute right to the support of subterranean water which is not flowing in a defined channel so that damage caused by the abstraction of such water automatically gives rise to a cause of action. His neighbour in the user of his own land has a right to abstract such subterranean water for his own use which may have the effect of removing the support of the water under adjoining land; but similarly, the neighbour's right is not an absolute right.
>
> While the plaintiffs do not have an absolute right to support, I consider that they have a right not to be subjected to interference with the support of the water under their respective lands, amounting to negligence or nuisance. Infringement of that right can give rise to a cause of action in nuisance or negligence.

This retreat from rule-driven outcomes is welcome to ensure that the ends of justice are achieved on a case-by-case basis, but it comes at a price of diminished predictability in the law.

Another question is liability for damage caused when an owner or occupier of land *increases* the flow of groundwater under his neighbour's land. The decided cases on point have turned on the issue of "natural user". For example, *Storms v. M.G. Henniger Ltd.*; *Gonu v. M.G. Henniger Ltd.*,[30] one of two actions tried together, concerned excavations in a gravel pit which

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A.S. Wisdom, *The Law of Rivers and Watercourses*, 4th ed. (London: Shaw & Sons, 1979), at pp. 135-6.

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A.S. Wisdom, The Law of Rivers and Watercourses, 4th ed. (London: Shaw & Sons, 1979), at pp. 136-7. See also *Halsbury's Laws of England*, 4th ed., vol. 49(2), at p. 270.

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Stinson v. Lenehan (1989), 101 N.B.R. (2d) 238, 8 R.P.R. (2d) 45, 19 A.C.W.S. (3d) 313, [1989] N.B.J. No. 1074 (Q.B.).

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National Capital Commission v. Pugliese (1977), 79 D.L.R. (3d) 592, 17 O.R. (2d) 129, 3 C.C.L.T. 18 (C.A.), vard [1979] 2 S.C.R. 104, 97 D.L.R. (3d) 631, 8 C.C.L.T. 69, 25 N.R. 498. Note, this decision was varied by the Supreme Court of Canada which held that, in Ontario, it was unnecessary to consider the common law position on this issue because Ontario's *Water Resources Commission Act* effectively replaced the common law by erecting statutory limits on the amount of groundwater a landowner could extract without permit. The court observed that any violation of the statutory limits may be considered a nuisance, or at least strong evidence thereof, if it causes damage to other properties. There is no reason to think, however, that the Court of Appeal's view of the common law in this area is unsound.

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caused groundwater and surface water to concentrate in the pit, and then seep into the ground in an allegedly unnatural manner. The plaintiff alleged that this concentrated seepage caused dampness in his basement, a weakening of the foundation of his house, and other damages. The court held that the water which reached the pit flowed there, and escaped from there, in the ordinary course of drainage, in the same general direction as would have occurred absent the pit, and that there was no "unnatural use" made of the land from which the water flowed.

A similar case is *Kraemers v. A.G.-Tasmania*,[31] in which the Crown, acting as a licensee, excavated gravel from a pit uphill from the plaintiff's land. In the course of its excavation, the Crown removed a bank of earth which theretofore had prevented surface water from flowing into the quarry. The water which thereafter entered the pit seeped into the ground, allegedly causing damage to the plaintiff's land. The court, on appeal, held that an action in nuisance does lie for damage caused by an increase in the percolation of surface water, but that evidence of "natural user" will relieve a defendant of liability. In that case, the Crown did not lead sufficient evidence of the reasons for removing the bank of earth and so the natural user defence failed.

The "natural user" defence was also found to relieve from liability a lower landowner who blocked the flow of percolating groundwater to the detriment of his uphill neighbour.[32] This defence, typically associated with the *Rylands v. Fletcher* cases,[33] has found its way into cases of nuisance from time to time. In many classes of nuisance case, there is no need for a defence of "natural user" in light of the requirement that the reasonableness of the defendant's use of its land be assessed in determining whether a nuisance exists at all. However, in the context of water flow cases, where parties are grappling with a natural element which they themselves did not bring upon their land, the defence of natural user serves to temper what otherwise could be a harsh rule: that so long as physical injury is caused to the land of the plaintiff, the concept of "give and take" and the balancing of competing interests between neighbours is immaterial, as per *Schenck*[34] and *Royal Anne Hotel.*[35]

Storms v. M.G. Henniger Ltd., [1953] 4 D.L.R. 300, [1953] O.R. 717 (C.A.); *Gonu v. M.G. Henniger Ltd.*

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Kraemers v. A.G.-Tasmania, [1966] Tas. S.R. 113 (S.C. App.).

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Home Brewery Co. v. William Davis & Co. (Leicester) Ltd., [1987] 1 Q.B. 339, though the term "reasonable user" is used in place of "natural user".

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Rylands v. Fletcher (1866), 1 Ex. D. 265, affd L.R. 3 H.L. 330.

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

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Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8

7:15. Two Special Cases of Importance in the Crown Context-- Natural Hazards Upon Land

The law concerning damage caused by natural hazards upon land (*e.g.* fire, diseased trees, sloughing slopes) is a matter of significant import to the Crown as Canada's largest landowner. The matter is often addressed in texts on nuisance, presumably because most of the cases concern injury to property, yet the law in this area is really a hybrid of nuisance and negligence concepts.

Prior to the 20th century, the common law exempted owners and occupiers of land from any duty to remedy conditions of natural origin upon their land, notwithstanding the risk of harm to neighbours.[1] That immunity was shattered by the decisions in *Goldman v. Hargrave*,[2] and *Leakey v. National Trust for Places of Historic Interest or Natural Beauty.*[3]

In *Goldman*, lightning struck a redgum tree on the defendant's land, setting it on fire. At trial it was held that the exercise of reasonable care on the part of the defendant would have extinguished the fire before it spread to the land of the plaintiff. Lord Wilberforce held that occupiers of land should be under a "measured duty of care" to remove or reduce hazards to their neighbours. He more fully described the duty as follows:[4]

> So far it has been possible to consider the existence of a duty, in general terms. But the matter cannot be left there without some definition of the scope of his duty. How far does it go? What is the standard of the effort required? What is the position as regards expenditure? It is not enough to say merely that these must be "reasonable", since what is reasonable to one man may be very unreasonable, and indeed ruinous, to another: the law must take account of the fact that the occupier on whom the duty is cast has, ex hypothesi, had this hazard thrust upon him through no seeking or fault of his own. His interest, and his resources, whether physical or material, may be of a very modest character either in relation to the magnitude of the hazard, or as compared with those of his threatened neighbour. A rule which required of him in such unsought circumstances in his neighbour's interest a physical effort of which he is not capable, or an excessive expenditure of money, would be unenforceable or unjust. One may say in general terms that the existence of a duty must be based upon knowledge of the hazard, ability to foresee the consequences of not checking or

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C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.). Note, the author is not aware of a recent Canadian case in which the defence of "natural user" has been argued. It may be that the approach of the Ontario Court of Appeal in National Capital Commission v. Pugliese (1977), 79 D.L.R. (3d) 592, 17 O.R. (2d) 129, 3 C.C.L.T. 18 (C.A.), vard [1979] 2 S.C.R. 104, 97 D.L.R. (3d) 631, 8 C.C.L.T. 69, 25 N.R. 498, will now be followed and this area of the law will be assimilated with the general law of nuisance.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 480.

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Goldman v. Hargrave, [1967] 1 A.C. 645 (P.C.).

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Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1980] 1 Q.B. 485 (C.A.).

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Goldman v. Hargrave, [1967] 1 A.C. 645 (P.C.), at pp. 656-7.

> removing it, and the ability to abate it. And in many cases, as, for example, in Scrutton L.J.'s hypothetical case of stamping out a fire, or the present case, where the hazard could have been removed with little effort and no expenditure, no problem arises. But other cases may not be so simple. In such situations the standard ought to be to require of the occupier what is reasonable to expect of him in his individual circumstances. Thus, less must be expected of the infirm than of the able-bodied: the owner of a small property where a hazard arises which threatens a neighbour with substantial interests should not have to do so much as one with larger interests of his own at stake and greater resources to protect them: if the small owner does what he can and promptly calls on his neighbour to provide additional resources, he may be held to have done his duty: he should not be liable unless it is clearly proved that he could, and reasonably in his individual circumstances should, have done more.

Though couched in language of "reasonableness", the standard of conduct required under this duty is not objectively measurable. In this regard it differs from at least one branch of negligence law -- cases involving professional or commercial standards -- in which the conduct of the defendant is to be measured against objective norms or industry practices. However, much of negligence law concerns the actions of individuals in the tangle of day to day life who cause injury to others in innumerable ways in circumstances which are often unique. In such cases, the "reasonable person" is a fiction because there is no objective standard against which to measure the defendant's conduct. Yet we weigh all of the circumstances of such cases and muddle through drawing lines between accident and fault. Likewise, cases involving natural hazards upon land do not lend themselves to objective comparisons. The *Goldman* duty is very similar to the duty imposed in this latter class of negligence cases. One difference, however, is the recognition in *Goldman* that individuals grappling with hazards not initially of their own making should not be faulted too easily.

The difficulty with the duty articulated in *Goldman* is that landowners in many instances will have no guideposts to help them assess the extent of their legal obligation. However, this has never been an obstacle to the operation of negligence law or the law of occupier's liability. Usually those who apply common sense will not run afoul of their common law obligations.

The whole issue was revisited in *Leakey v. National Trust for Places of Historic Interest or Natural Beauty.*[5] In *Leakey*, the dispute concerned a large earth mound known as a "mump" found naturally upon the land of the National Trust. From time to time, soil and rubble would fall or slide off the mump due to natural causes and would land upon the properties of the plaintiffs. One year, a large crack opened in the mump, a matter which the plaintiffs drew to the attention of the defendant. The defendant took no action, believing that it owed its neighbours no duty to abate a naturally occurring hazard.

Shortly after the plaintiffs had voiced their concerns with the crack in the mump, a large quantity of soil and stumps slid off the mump onto their properties and legal action ensued. The English Court of Appeal recognized this was not a conventional case of nuisance, nor was it matter to which the rule in *Rylands v. Fletcher*[6] applied, there being no act on the part of the

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Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1980] 1 Q.B. 485 (C.A.). It was argued in *Leakey* that *Goldman*, being a decision of the Privy Council on appeal from the High Court of Australia, was not the law of England. While *Goldman* was not binding on this account, it was embraced by the *Leakey* court as properly stating the law of England.

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Rylands v. Fletcher (1866), 1 Ex. D. 265, affd L.R. 3 H.L. 330.

defendant to bring upon the land or store something dangerous. As with *Goldman*, the court drew upon the law of negligence to articulate the duty owed by the defendant, even though the case involved no conduct *per se* on the part of the defendant which gave rise to the hazard, much less conduct that can be measured against any objective standard of care. The duty was described by Megaw L.J. as follows:

> The duty is a duty to do that which is reasonable in all the circumstances, and no more than what, if anything, is reasonable, to prevent or minimise the known risk of damage or injury to one's neighbour or to his property. The considerations with which the law is familiar are all to be taken into account in deciding whether there has been a breach of duty, and, if so, what that breach is, and whether it is causative of the damage in respect of which the claim is made. Thus, there will fall to be considered the extent of the risk; what, so far as reasonably can be foreseen, are the chances that anything untoward will happen or that any damage will be caused? What is to be foreseen as to the possible extent of the damage if the risk becomes a reality? Is it practicable to prevent, or to minimise, the happening of any damage? If it is practicable, how simple or how difficult are the measures which could be taken, how much and how lengthy work do they involve, and what is the probable cost of such works? Was there sufficient time for preventive action to have been taken, by persons acting reasonably in relation to the known risk, between the time when it became known to, or should have been realised by, the defendant, and the time when the damage occurred? Factors such as these, so far as they apply in a particular case, fall to be weighed in deciding whether the defendant's duty of care requires, or required, him to do anything and if so, what.[7]

Megaw L.J. went on to observe that the standard of conduct required under this duty is subjective. It is:

> ... what the particular man -- not the average man -- can be expected to do, having regard, amongst other things, where a serious expenditure of money is required to eliminate or reduce the danger, to his means. Just as, where physical effort is required to avert an immediate danger, the defendant's age and physical condition may be relevant in deciding what is reasonable, so also logic and good sense require that, where the expenditure of money is required, the defendant's capacity to find the money is relevant.[8]

Megaw L.J. suggested that, in some cases, particularly if the plaintiff's means were much greater than the defendant's, the defendant may discharge his duty by inviting the plaintiff on to his land to do agreed upon abatement works at its expense.[9] Again, as in *Goldman*, this is a recognition that the court should not be too quick to excessively burden a party with onerous duties in respect of a problem not of its making.

The *Leakey* decision has been cited on many occasions in the Canadian caselaw,[10] and

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Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1980] 1 Q.B. 485 (C.A.), at p. 524.

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Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1980] 1 Q.B. 485 (C.A.), at p. 526.

9

Leakey v. National Trust for Places of Historic Interest or Natural Beauty, [1980] 1 Q.B. 485 (C.A.), at p. 527.

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For example, Hayes v. Davis, [1991] 4 W.W.R. 679, 54 B.C.L.R. (2d) 350, 25 A.C.W.S. (3d) 1348, [1991] B.C.J. No. 635 (C.A.), leave to appeal to S.C.C. refused 136 N.R. 238*n*, 13 W.A.C. 159*n*; PPG Canada Inc. v. Colwell (R.B.) Ltd. (1991), 103 N.S.R. (2d) 181, 7 C.C.L.T. (2d) 31, 26 A.C.W.S. (3d) 902 *sub nom.* PPG Canada Inc. v. R.B. Colwell Ltd. (S.C.T.D.); Doucette v. Parent (1996), 31 C.C.L.T. (2d) 190, 66 A.C.W.S. (3d) 174, [1996] O.J. No. 3493 (Ont. Ct. (Gen. Div.)); Lee v. Shalom Branch #178 Building Society (2001), 96 B.C.L.R. (3d) 384, 8

has generally been accepted as the law in Canada though some courts have voiced doubts.[11] *Hayes v. Davis*[12] is arguably the leading Canadian authority in this area owing to its appellate status and owing to the fact that leave to appeal was denied by the Supreme Court of Canada. In *Hayes*, the plaintiff was injured on her land when two trees on the defendant's land blew down on top of her. The evidence showed that the plaintiff had previously requested that the defendant remove the trees because other trees in the area had been previously uprooted in wind storms and because of the manner in which the impugned trees bent in the wind. The defendant took no action, apparently on account of the fact that it would have cost $400 to remove the trees. The trial judge, applying *Leakey*, held that the accident was foreseeable and that the defendant did have the funds necessary to prevent it.

In the Court of Appeal, the appellant Davis tried to distinguish *Leakey* on the basis that *Leakey* involved a known "defect" in the defendant's property, *i.e.* the crack in the mump and the history of sloughing. The trees in the *Hayes* case, by contrast it was argued, had nothing wrong with them.[12.10] The majority of the Court of Appeal rejected this argument on the evidence that the trees bowed heavily in strong winds, on the evidence that this fact had been brought to the defendant's attention by the plaintiff and her husband, and on the evidence of other trees having fallen in the area. The majority held this was "equivalent to the finding in *Leakey* that there was a defective condition in the defendant's property".

The applicability of *Leakey* to cases involving the flow of water has been questioned in at least one case.[13] The question is a good one owing to the long and distinct history of the water flow jurisprudence, described above. Absent clear authority on the subject, it should not be assumed that the adoption of *Leakey* in Canada extends to cases involving the flow of water.

C.C.L.T. (3d) 276, 13 C.L.R. (3d) 91, 110 A.C.W.S. (3d) 400, 2001 BCSC 1760, [2001] B.C.J. No. 2671 (S.C.); and Buie v. Etobicoke (City), [1984] O.J. No. 2383 (Prov. Ct.).

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For example, Nicholls v. Hennion (1989), 49 C.C.L.T. 105, 18 M.V.R. (2d) 314, 15 A.C.W.S. (3d) 282, [1989] O.J. No. 785 (Ont. H.C.J.).

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Hayes v. Davis, [1991] 4 W.W.R. 679, 54 B.C.L.R. (2d) 350, 25 A.C.W.S. (3d) 1348, [1991] B.C.J. No. 635 (C.A.), leave to appeal to S.C.C. refused 136 N.R. 238*n*, 13 W.A.C. 159*n*.

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Had the defendants been able to establish that there was, in fact, nothing "wrong" with the trees, they may have been able to avoid liability in nuisance as per Linguist v. Lynds, 2023 NSSM 29 (N.S. Small Cl. Ct.) at para. 18. In that case, the court considered foreseeability questions under the heading of negligence. The court concluded in that case that there was no evidence the defendants knew or ought to have known the tree at issue presented a known hazard.

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Nykyforak v. Hillsburg (Rural Municipality) (2001), 158 Man. R. (2d) 298, 108 A.C.W.S. (3d) 183, [2001] M.J. No. 364, 2001 MBQB 227 (Q.B.), affd 170 Man. R. (2d) 153, 285 W.A.C. 153, 119 A.C.W.S. (3d) 660, 2002 MBCA 175 (C.A.).

Cases involving natural hazards upon land are clearly an exception to the modern view that liability in nuisance is near-strict in cases involving physical injury to land. As indicated above, cases such as *Schenck*[14] and *Royal Anne Hotel*[15] stand for the proposition that the court need not engage in a balancing of competing interests in cases involving physical injury to the plaintiff's land. It is justifiable to treat the "natural hazard" cases differently because they do not involve hazards of the defendant's own making or uses of land designed to benefit the defendant.

Leakey and *Goldman* concerned natural hazards that caused injury to neighbouring private property. But what of natural hazards upon land which injure or obstruct a person in the exercise of a public right such as passage on a highway? In the Supreme Court of Canada's decision in *Just v. British Columbia*,[16] no mention was made of *Leakey* or *Goldman*, notwithstanding that the case involved injury caused by a natural hazard, a falling boulder loosened from a slope on Crown land.[17]

Just was pleaded solely as a negligence case. Accordingly, the plaintiff had to establish that the conduct of the Crown's servants had fallen below standard geotechnical engineering practices of the day, which it did. It is suggested, however, that the case could have been pleaded, in the alternative, as a public nuisance case in which "special damage" resulted.[18] Had

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Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

15

Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.).

16

Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527.

17

Note that Swinamer v. Nova Scotia (Attorney General), [1994] 1 S.C.R. 445, 112 D.L.R. (4th) 18, 129 N.S.R. (2d) 321, 20 Admin. L.R. (2d) 39, 19 C.C.L.T. (2d) 233, 2 M.V.R. (3d) 80, 163 N.R. 291, 46 A.C.W.S. (3d) 798, was an action against the Crown for failing to protect highway users from a hazard on *someone else's* land and accordingly nuisance law could offer no vehicle for redress.

18

In Staats v. British Columbia, [2005] B.C.J. No. 1327, 140 A.C.W.S. (3d) 595, 2005 BCSC 841 (S.C.), the victim of an automobile accident sued the province in public nuisance because the car hit a rock lying on the shoulder of the highway. In that case, the court held that rocks on the shoulder do not obstruct passage and accordingly are not a nuisance. In Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527, the nuisance law requirement that the Crown have actual or deemed

this occurred, and had the *Leakey/Goldman* principles been applied, the result would not likely have been different, but such a plea would have raised interesting questions, not least of which is the applicability to this branch of nuisance law of the "policy defence" made famous in *Just*, a matter revisited below.[19]

For reasons outlined later in the chapter, it is suggested that the so-called "policy defence" addressed in *Just v. British Columbia* does not apply to the general law of nuisance. However, it will be argued that an exception should exist in cases of natural hazards upon land. Whether or not either of those assertions is correct, it is suggested that the evidence and arguments typically adduced by the Crown when invoking the "policy defence" in the negligence context can properly be raised under the *Leakey/Goldman* framework in any event. Using forest fires as an example, if the evidence showed that the Crown's policy was to divert resources to fires threatening populous centres, and showed that budgetary decisions limited the number of firefighters and equipment available to fight fires, the result of which is the destruction of some rural properties in a fire not fought, it would be difficult to argue that the Crown acted unreasonably in the *Leakey* sense.

Applying *Leakey* to a case in which the Crown is a defendant raises difficult questions. In Canada, Crown lands are so extensive that responding to natural hazards as they arise poses significant logistical and fiscal challenges. And while the Crown may, in theory, have extensive means -- a matter relevant in the *Leakey* analysis -- in practice, the Crown's resources are often stretched and his Ministers are kept to tight budgets. Further, the Crown is frequently burdened with the problem of competing contemporaneous demands on its resources, as for example during forest fire season.

The implication of these types of competing considerations were at the forefront of a recent case involving the Crown, *Chutter Ranch v. His Majesty the King*,[20] where the Court applied the following articulation of the proposition flowing from *Leakey*: where the alleged nuisance is of a naturally occurring hazard, the claimant must prove that the Crown (a) knew or, with reasonable effort, ought to have known about the hazard; and, (b) failed to take reasonable steps to mitigate it.[21]

In *Chutter Ranch,* the Court found that the Crown knew of the spread of an invasive

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knowledge of the hazard could likely have been established. After the matter was sent back to trial, the trial judge found that the slope from which the rock fell had been scheduled for urgent remedial work as one of the five most hazardous slopes along that highway. Indeed requests for rock scaling on that slope had been made by ministry staff prior to the accident.

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See, §7:24, "Availability of a Government Policy Defence".

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Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.), affirmed 2023 BCSC 1730 (B.C. S.C.).

21

Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.) at para. 122, citing Sadowick v. British Columbia, 2019 BCSC 1249, 2019 CarswellBC 2216 (B.C. S.C.) at para. 92

plant, spotted knapweed, from Crown land to the claimants' adjacent ranch property.[22] The Crown conceded that the spread of the spotted knapweed caused a non-trivial interference with the claimants' use and enjoyment of their land.[23] However, the Court held that the Crown was not liable in nuisance, finding that the Crown took reasonable actions to mitigate the hazard. The Court held that the Crown's steps were "comprehensive, thorough, [fell] within the budgets provided, and provide[d] for a long term approach to the control of the spotted knapweed."[24] The Court rejected the assertion that the Crown ought to have eradicated the spotted knapweed, finding that eradication was not reasonable due to the cost and the potential for unintended and negative consequences of herbicide treatment.[25] These were reasonable considerations in the public interest for the Crown to weigh in its handling of the hazard.

IV. Public Versus Private Nuisance

7:16. Generally

Public nuisances are actionable at the instance of the Attorney General and by private individuals who suffer harm above and beyond the harm suffered by the public generally. The usual remedy in the case of public nuisance is an order enjoining the nuisance, although damages may be available as well.[1]

Broadly speaking, a public nuisance is "any activity which unreasonably interferes with the public's interest in questions of health, safety, morality, comfort or convenience".[2] As

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Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.) at para. 123.

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Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.) at para. 124.

24

Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.) at para. 132, affirmed 2023 BCSC 1730 (B.C. S.C.) at paras. 33-35.

25

Chutter Ranch v. His Majesty the King, 2022 BCPC 221 (B.C. Prov. Ct.) at para. 131, affirmed 2023 BCSC 1730 (B.C. S.C.) at paras. 35-37.

1

British Columbia v. Canadian Forest Products Ltd., [2004] 2 S.C.R. 74, 240 D.L.R. (4th) 1, [2004] 9 W.W.R. 1, 28 B.C.L.R. (4th) 195, 24 C.C.L.T. (3d) 161, 8 C.E.L.R. (3d) 1, 2004 SCC 38, 321 N.R. 1, 324 W.A.C. 1, 131 A.C.W.S. (3d) 558, at para. 72; Canada v. "Sun Diamond" (The), [1984] 1 F.C. 3, 25 C.C.L.T. 19, [1983] F.C.J. No. 309 (T.D.).

2

Ryan v. Victoria (City), [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191 W.A.C. 103, 85 A.C.W.S. (3d) 208, at para. 52.

addressed below, this language, though broad, is not limitless.[3]

A brief but instructive history of the tort of public nuisance is found in Professor Fleming's text.[4] Fleming recounts that, by the 13th century, public nuisance as a crime was well entrenched in the law and concerned a "variegated assortment of petty offences whose common element was obstruction, inconvenience or damage to the public in the exercise of rights common to all His Majesty's subjects",[5] and he argues that the sole link between these offences and private nuisance was inconvenience and annoyance. Redress for public nuisance remained exclusively criminal until the 16th century when private actions began to be permitted in cases where the plaintiff could show greater damage than that suffered by the general population.[6] "Common nuisance" remains a crime today.[7]

The list of rights protected by the tort of public nuisance grew over time to include the right to fish in public waters, the right to navigate waters free from obstruction,[8] the right to travel a highway unimpeded, the preservation of public health and morals, and the right to be free of pollution.[9] Whether such a public nuisance exists is a question of fact, and in modern times it has been held that relevant considerations include the inconvenience caused by the activity, the difficulty involved in lessening or avoiding the risk, the utility of the activity, the general practices of others, and the character of the neighbourhood.[10]

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Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia, 2022 BCCA 366 (B.C. C.A.) at paras. 175-218, additional reasons 2023 BCCA 136 (B.C. C.A.).

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at pp. 457-60.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 459.

6

Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 459.

7

Criminal Code, s. 180.

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For a Canadian example see London v. Vancouver (City) (1934), 49 B.C.R. 328.

9

This list taken from A.M. Linden, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997), at pp. 525-6. As for the issue of pollution, Canadian cases include: Canada (Attorney General) v. Ewen (1895), 3 B.C.R. 468 (S.C.); and Gagnier v. Canadian Forest Products Ltd. (1990), 51 B.C.L.R. (2d) 218, 23 A.C.W.S. (3d) 1040, [1990] B.C.J. No. 2359 (S.C.).

10

Ryan v. Victoria (City), [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191

Public nuisance further extended its reach to cases of interference with the exercise of public rights resulting from dangers emanating from private land, such as improperly secured lamps or signs, fragile walls or loose gratings[11] and in a recent case to flooding caused by the blockage of a drainage ditch on private property.[12] The tort expanded further still to include cases in which the *private* property interests of a wide swath of the public are impacted by the defendant's conduct, as might occur in a case of air pollution.[13]

That actions to remedy such a great variety of harms are brought under the same name is a source of confusion in the law, as many have observed. The BC Court of Appeal in *Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia* ("***Valeant***") recently attempted to bring clarity to this issue, observing that although the tort of public nuisance lacked "a central organizing principle that defines [its] metes and bounds", its various roots could be applied to define its scope.[14] Those roots, as described above and summarized by the Court, are: (1) criminal law and "common nuisance"; (2) public rights common to all members of the general public, such as unobstructed access to public facilities, highways or waterways, and rights to tangible public resources (e.g. air or water); and (3) the aggregation of a sufficient number of private nuisances (i.e. interference with rights to use and enjoy property) so as to be treated as a public nuisance.[15] The public nuisance claim struck by the Court in *Valeant* was of a "wholly different character", which would have required a "radical" expansion of the tort.[16]

W.A.C. 103, 85 A.C.W.S. (3d) 208, at para. 53.

11

B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 47.

12

Lanark (County) v. Morrow, [2011] O.J. No. 2949, 204 A.C.W.S. (3d) 387, 2011 ONSC 4028 (Ont. S.C.J.), affd 2012 ONCA 64, 211 A.C.W.S. (3d) 956 (Ont. C.A.), leave to appeal refused 2012 CarswellOnt 8136, 2012 CarswellOnt 8135 (S.C.C.).

13

Lanark (County) v. Morrow, [2011] O.J. No. 2949, 204 A.C.W.S. (3d) 387, 2011 ONSC 4028 (Ont. S.C.J.), affd 2012 ONCA 64, 211 A.C.W.S. (3d) 956 (Ont. C.A.), leave to appeal refused 2012 CarswellOnt 8136, 2012 CarswellOnt 8135 (S.C.C.), at p. 48. See also Newmarket (Town) v. Halton Recycling Ltd. (2006), 274 D.L.R. (4th) 447, 24 C.E.L.R. (3d) 231, 25 M.P.L.R. (4th) 249, [2006] O.J. No. 3918, 151 A.C.W.S. (3d) 864 (Ont. S.C.J.).

14

Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia, 2022 BCCA 366 (B.C. C.A.) at para. 181, additional reasons 2023 BCCA 136 (B.C. C.A.).

15

Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia, 2022 BCCA 366 (B.C. C.A.) at paras. 181-182 and 197-198, additional reasons 2023 BCCA 136 (B.C. C.A.).

16

Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia, 2022 BCCA 366 (B.C. C.A.) at

In *Valeant,* the Attorney General claimed that the defendant pharmaceutical companies' development, marketing and promotion of opioid painkillers, resulting in an alleged "opioid epidemic", constituted a public nuisance. Though grounded on a theory of interference with the public interest or the right to health, the Court found that the claim concerned intrusions upon private rights.

The Court distinguished the claim in *Valeant*, involving allegations that the defendants misled individuals into acting in a manner that causes them injury, from cases involving alleged conduct involving a risk to public health that is indiscriminate in its effects, such as contamination of air, water or food which puts the health of the general public in a particular area at risk. The latter could be addressed as a public nuisance, however the Court held that the former is more appropriately dealt with as a breach of a private right, such as by a claim in negligence, misrepresentation or product liability, notwithstanding the alleged widespread consequences of the wrong.[17]

7:16.10. Standing

As noted at the outset of this section, public nuisances are typically actionable at the instance of the Attorney General, though in some circumstances can be brought *privately* by individuals.

The law provides that the same conduct may result in both a public and a private nuisance.[1] Individuals who suffer "special damage" (*i.e.* damage which is peculiar from that

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paras. 182 and 203-205, additional reasons 2023 BCCA 136 (B.C. C.A.).

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Valeant Canada LP/Valeant Canada S.E.C. v. British Columbia, 2022 BCCA 366 (B.C. C.A.) at paras. 200-201, additional reasons 2023 BCCA 136 (B.C. C.A.).

1

Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81 at para. 38, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.); Stein v. Gonzales (1984), 14 D.L.R. (4th) 263, [1984] 6 W.W.R. 428, 58 B.C.L.R. 110, 31 C.C.L.T. 19 (B.C. S.C.); and Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.), supp. reasons 212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.), revd on other grounds 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*; Li et al. v. Barber et al., 2023 ONSC 1679 (Ont. S.C.J.) at para. 5, additional reasons 2023 ONSC 3477 (Ont. S.C.J.).

suffered by the public at large)[2] may sue *privately* for public nuisance.[3]

Where the public nuisance does not cause "special damage" a suit may only be maintained by the Attorney General.[4]

The rationale for this rule is said to be that citizens should not be allowed to take upon themselves the role of "champions of the public interest" which would lead to "oppression by means of a multiplicity of civil actions for the same cause".[5] In such "true" public nuisance cases, the Attorney General has an absolute discretion to decide whether to commence and continue the action.[6]

As for the meaning of "special damage", McLachlin J. (as she then was) in *Stein v. Gonzales*,[7] explained that the authorities on the subject have put the question variously: has the plaintiff sustained some substantial injury beyond that suffered by the rest of the public? Has the

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.) at para. 38. "Special damage" in this context does not mean calculable pecuniary loss as it does in the modern law of damages.

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Stein v. Gonzales (1984), 14 D.L.R. (4th) 263, [1984] 6 W.W.R. 428, 58 B.C.L.R. 110, 31 C.C.L.T. 19 (B.C. S.C.), at para. 7; Boyce v. Paddington Borough Council, [1903] 1 Ch. 109; and Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.), supp. reasons 212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.), revd on other grounds 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*.

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Ontario (Attorney General) v. Dieleman (1994), 117 D.L.R. (4th) 449, 20 O.R. (3d) 229, 49 A.C.W.S. (3d) 1059, 24 W.C.B. (2d) 302 (Gen. Div.).

5

Stein v. Gonzales (1984), 14 D.L.R. (4th) 263, [1984] 6 W.W.R. 428, 58 B.C.L.R. 110, 31 C.C.L.T. 19 (B.C. S.C.), at p. 265, citing Salmond & Heuston on the *Law of Torts*, 18th ed. (London: Sweet & Maxwell, 1981), at p. 83.

6

Grant v. St. Lawrence Seaway Authority (1960), 23 D.L.R. (2d) 252, [1960] O.R. 298 (C.A.); B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 50.

7

Stein v. Gonzales (1984), 14 D.L.R. (4th) 263, [1984] 6 W.W.R. 428, 58 B.C.L.R. 110, 31 C.C.L.T. 19 (B.C. S.C.).

plaintiff demonstrated a violation of his private rights as opposed to violation of the rights enjoyed in common with other members of the public? Has the plaintiff established that the damage suffered differs not only in degree from that suffered by the public, but is different in type. Ultimately, her Ladyship observed:[8]

> The common thread which runs through the authorities is that private citizens cannot maintain actions for public nuisance where the suffering and inconvenience complained of is shared by the public or a recognizable class of the public. The ultimate question is simple: is the damage suffered by the plaintiff different from that suffered by other members of the community?

It is suggested that this requirement for "difference" is more important in cases of obstruction of public rights than it is in cases of widespread interference with private properties. Where private property rights are affected, courts should be slow to deny plaintiffs the right to pursue an action simply because the nuisance affects many others. This approach seems to have been confirmed by the British Columbia Court of Appeal in *Sutherland v. Canada (Attorney General)*,[9] which involved noise from a new runway at Vancouver International Airport. In that case, thousands of residents were impacted, yet the court upheld the Trial Judge's decision that the plaintiffs could sue as the noise of the air traffic interfered with the use and enjoyment of their homes.[10]

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Stein v. Gonzales (1984), 14 D.L.R. (4th) 263, [1984] 6 W.W.R. 428, 58 B.C.L.R. 110, 31 C.C.L.T. 19 (B.C. S.C.), at p. 266.

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Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.), supp. reasons 212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.), revd on other grounds 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*.

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Sutherland v. Canada (Attorney General), 2002 BCCA 416 (B.C. C.A.); Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.), at paras. 20-35, additional reasons 2003 BCCA 14 (B.C. C.A.), leave to appeal SCC refused 2003 CarswellBC 1102 (S.C.C.). Note that in *Sutherland*, the Court of Appeal was moved by the fact that the policy rationale for requiring that civil actions for public wrongs be brought in the name of the Attorney General was inapplicable on the facts of that case. There was cause to fear a "multiplicity of civil actions for the same cause" because, following the denial of class certification motion, three property owners proceeded to trial as a test case with a view to resolving those issues common to all plaintiffs. Further, the court held there was nothing to indicate the proceedings would have been conducted any more efficiently if brought in the name of the Attorney General. The court did not add, but could have, that the Attorney General might have been very reluctant to bring the action which would have entirely deprived the plaintiffs of their day in court.
See also Li et al. v. Barber et al., 2023 ONSC 1679 (Ont. S.C.J.), additional reasons 2023 ONSC

If the alleged nuisance is truly on a massive scale, so as to be regional in scope and demanding a public response, the rationale for the participation of the Attorney General clearly becomes stronger, notwithstanding that private property may be impacted. Such might be the case with widespread air or water pollution. However, even in such a case it is not clear why a person whose property is impacted should not have a right of action.

Further, the notion that the harm must be "different in kind" and not just "different in degree" to constitute "special damage" has not been universally accepted, even in cases of interference with public rights, and there are cases which stand both for and against this proposition.[11] In contemporary Canadian cases, the decision in *Hickey v. Electric Reduction Co.*[12] is often cited for the proposition that the harm must be different in kind to constitute special damage. However, in a British Columbia decision involving the pollution of a crab fishery, the judge expressed disagreement with the *Hickey* approach stating that "*Hickey* is not binding on this court".[13] Where, as in the crab fishery case, the plaintiff's livelihood is lost due to the nuisance, antipathy to the *Hickey* approach is easily understood. It would certainly seem as though the harm suffered by the plaintiff in such a case is "different" than the harm suffered by the rest of His Majesty's subjects, even those living in nearby communities, most of whom will have no direct interest in the fishery.

Whether a different type of injury is required continues to be a subject of debate, as observed in a recent British Columbia decision. The court in *O'Connor v. Canadian Pacific Railway Limited* discussed the conflicting case law, and did not resolve the debate but concluded that it was not plain and obvious that a claim that alleged class members suffered more severe

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3477 (Ont. S.C.J.), in which the court confirmed that a proposed class action against those involved in relation to the activities of the "Freedom Convoy" in downtown Ottawa raised plausible causes of action in both private and public nuisance, as pleaded, without yet deciding whether the claims could be certified as class actions. The proposed class members were those living and working in the zone 'occupied' by the Convoy, alleging that they were "particularly impacted by the continuous interference with their rights of passage and rights of ingress and egress to their residences or businesses". See also Li et al. v. Barber et al., 2025 ONCA 169 at paras. 82-86 discussing the motion judge's reasons on special damages in the context of a separate pre-trial motion in the same proceedings.

11 See discussion in B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 54-7.

12 Hickey v. Electric Reduction Co. of Canada Ltd. (1970), 21 D.L.R. (3d) 368, 2 Nfld. & P.E.I.R. 246 (Nfld. S.C.).

13 Gagnier v. Canadian Forest Products Ltd. (1990), 51 B.C.L.R. (2d) 218, 23 A.C.W.S. (3d) 1040, [1990] B.C.J. No. 2359 (S.C.). The court further observed that there is a line of Ontario cases which is inconsistent with the approach in Hickey v. Electric Reduction Co. of Canada Ltd. (1970), 21 D.L.R. (3d) 368, 2 Nfld. & P.E.I.R. 246 (Nfld. S.C.).

damage than the public would not satisfy the special damages requirement.[14]

7:16.20. Relationship to Other Torts

Fleming argues that little would be lost if public nuisance as a tort were to disappear. To a degree it is an attractive argument. Certainly those cases involving personal injury resulting from an obstruction of a public way could be adequately addressed under our increasingly flexible law of negligence.[1] Indeed, by way of example, it is difficult to justify that a plaintiff injured when his vehicle strikes a car parked at the side of the highway should have a more direct route to compensation through public nuisance[2] than a plaintiff injured by a car which strikes him directly in which case negligence must be proved. Linden argues that many Canadian courts are in any event approaching the special damage "obstruction" cases as if they were negligence cases, requiring evidence that the defendant failed to take reasonable care,[3] lending further weight to Fleming's abolitionist views. At the same time, the tort of private nuisance is an able vehicle to address almost all cases of injury to or interference with land. And further, most activities that could give rise to public nuisances are regulated, including the use of highways, waterways, and other public spaces and the discharge of pollutants, thereby diminishing the need for common law remedies.

Nevertheless, regulations cannot foresee all problems and the law of tort may provide a certain flexibility to Attorneys General motivated to defend public interests through the common law. Indeed at least one Canadian judge has sought to breathe new life into the tort of public nuisance as a vehicle for the protection of the environment. In *British Columbia v. Canadian Forest Products Ltd.* ("*Canfor*"),[4] Mr. Justice Binnie wrote at some length, albeit *obiter*, about the prospect of the Crown suing to recover damages for environmental harm through the tort of

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O'Connor v. Canadian Pacific Railway Limited, 2023 BCSC 1371 (B.C. S.C.), at paras. 162-170.

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It is not a great leap to suggest that those who commit acts which may foreseeably harm members of the commuting public should be deemed to owe a duty of care to that subset of citizens.

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See, for example, Ware v. Garston Haulage Co., [1944] 1 K.B. 30 (C.A.). See also Bayfield v. British Columbia, 2016 BCSC 1965, 2016 CarswellBC 3034, 272 A.C.W.S. (3d) 448 (B.C. S.C.) at paras. 74-79, and Rainer v. New Westminster (City), 2016 BCSC 2301, 59 M.P.L.R. (5th) 309, 2016 CarswellBC 3514, 274 A.C.W.S. (3d) 176 (B.C. S.C.).

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A.M. Linden, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997), at p. 529.

4

British Columbia v. Canadian Forest Products Ltd., [2004] 2 S.C.R. 74, 240 D.L.R. (4th) 1, [2004] 9 W.W.R. 1, 28 B.C.L.R. (4th) 195, 24 C.C.L.T. (3d) 161, 8 C.E.L.R. (3d) 1, 2004 SCC 38, 321 N.R. 1, 324 W.A.C. 1, 131 A.C.W.S. (3d) 558.

public nuisance.[5]

The *Canfor* case concerned a claim for damages by the Crown for, *inter alia*, timber reserved in environmentally sensitive areas ("ESA's") which had been burned down in a forest fire caused by the negligence of the defendant. The timber in the ESA's had been set aside from harvest and the question for the court was whether the Crown could claim for the "environmental" harm suffered in consequence of its loss. The Crown pleaded and argued the case in terms of its *private* rights as a landowner and, owing to the manner in which the case was pleaded, the majority was unwilling to treat the Crown's loss as a "public" loss and accordingly unwilling to award damages for loss of "environmental" value, including by using the commercial value of the ESA timber as a proxy for its environmental value. However, Binnie J. observed that the Crown could otherwise sue to defend "public rights" in the environment and that public nuisance is a legal vehicle that could be used to this end.[6]

The novelty in Mr. Justice Binnie's comments lies more in their potential impact on the law of damages (*i.e.* the advent of common law "environmental" damages) than on the law of public nuisance. Public nuisance has long recognized a role for the Attorney General in enjoining acts of pollution.[7] So, whereas in *The Queen v. The Ship Sun Diamond*,[8] the Crown successfully claimed for recovery of clean-up costs associated with an oil spill caused by the collision of two ships, the *Canfor* decision suggests that today both clean-up costs and environmental damages (if proven) would be recoverable by the Attorney General in the case of a public nuisance.

7:16.30. Novel Claims of Public Nuisance

In recent years, there have been a number of claims attempting to expand the scope of public nuisance. Discussion of some recent cases seeking to apply the law of public nuisance to novel circumstances follow.

The Ontario Court of Appeal upheld ~~Superior Court~~ the striking ~~struck~~ of a claim of public nuisance in a proposed class proceeding against a gun manufacturer after a shooting involving a stolen handgun.[1], The motion judge found~~inding~~ that a product manufacturer "cannot

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British Columbia v. Canadian Forest Products Ltd., [2004] 2 S.C.R. 74, 240 D.L.R. (4th) 1, [2004] 9 W.W.R. 1, 28 B.C.L.R. (4th) 195, 24 C.C.L.T. (3d) 161, 8 C.E.L.R. (3d) 1, 2004 SCC 38, 321 N.R. 1, 324 W.A.C. 1, 131 A.C.W.S. (3d) 558, at paras. 64-81.

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British Columbia v. Canadian Forest Products Ltd., [2004] 2 S.C.R. 74, 240 D.L.R. (4th) 1, [2004] 9 W.W.R. 1, 28 B.C.L.R. (4th) 195, 24 C.C.L.T. (3d) 161, 8 C.E.L.R. (3d) 1, 2004 SCC 38, 321 N.R. 1, 324 W.A.C. 1, 131 A.C.W.S. (3d) 558, at paras. 74 and 81.

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Canada (Attorney General) v. Ewen (1895), 3 B.C.R. 468 (S.C.); Canada v. "Sun Diamond" (The), [1984] 1 F.C. 3, 25 C.C.L.T. 19, [1983] F.C.J. No. 309 (T.D.).

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Canada (Attorney General) v. Ewen (1895), 3 B.C.R. 468 (S.C.).

[1] Price v. Smith & Wesson Corp., 2025 ONCA 452 (Ont. C.A.).

be made liable in nuisance for simply distributing its product in its course of business because the product is then misused by others causing harm to the plaintiffs".[1] The Court of Appeal agreed, observing that to impose "liability in public nuisance, which does not inquire into foreseeability, proximity, or whether the defendant breached an applicable standard of care", would radically transform the law governing liability in relation to manufacturing.[2]

The Ontario Superior Court recently allowed the Toronto District School Board's claim alleging public nuisance against various social media companies to proceed.[2] The claim alleged that the social media companies interfered with the Board's mandate to promote student achievement and well-being by causing harm to students. The Board alleged it sustained special damages as an education provider in attempting to respond to those harms.[3] Despite the defendants' arguments, relying on *Valeant*, that permitting the claim to proceed would risk allowing nuisance to "devour the entire law of tort", the Court found the novel claim ought to be allowed to proceed. The Court concluded that it was "arguable that an addictive product that interferes with the mental health and educational aspirations of students is a public nuisance that requires a remedy", emphasizing that the pleading asserted that the defendants interfered with an important public right, the right to education.[4]

V. The Role of Statutes

7:17. Introduction

Statutes[1] play three roles in the law of nuisance. First, there are many legislative provisions at the federal, provincial and municipal level which define prohibited forms of nuisance-type conduct and which are enforceable by public authorities as quasi-criminal offences. Second, there are a number of statutes which exempt potential nuisances from civil action. Third, statutory provisions governing permissible uses of land have been viewed by

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~~Price v. Smith & Wesson Corp., 2021 ONSC 1114~~ Price v. Smith & Wesson Corp., 2021 ONSC 1114 (Ont. S.C.J.) at para. 115, leave to appeal allowed 2024 ONSC 2323 (Ont. Div. Ct.), affirmed 2025 ONCA 452 (Ont. C.A.)~~,~~ at paras. 13 and 84~~115~~.

[2] Price v. Smith & Wesson Corp., 2025 ONCA 452 (Ont. C.A.) at para. 84.

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Toronto District School Board v. Meta Platforms Inc., 2025 ONSC 1499 (Ont. S.C.J.).

3

Toronto District School Board v. Meta Platforms Inc., 2025 ONSC 1499 (Ont. S.C.J.), at paras. 2 and 106-107.

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Toronto District School Board v. Meta Platforms Inc., 2025 ONSC 1499 (Ont. S.C.J.), at para. 117.

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Including inferior legislation such as civic bylaws.

courts as evidence of what is "reasonable" for the purposes of a civil nuisance action. In this way, statutes can set "standards" for reasonable uses of land against which the uses of the defendant can be measured in a civil nuisance action.

7:18. Statutes Which Prohibit Conduct

Legislation which regulates nuisance-type conduct is quite common. For example, there are statutory provisions prohibiting various nuisances in or about highways or other public places.[1] There are provisions which provide for regulation of nuisances that may be health hazards[2] and most provinces provide for civic regulation of all manner of potential nuisances.[3] Bilson cites a number of other examples of statutory nuisances found in Canadian legislation.[4]

7:19. Statutes Limiting Civil Nuisance Actions

Legislated restrictions on private nuisance actions are also quite common. Using British Columbia as an example, there are statutory provisions prohibiting nuisance actions against farmers in certain circumstances, including for damage caused by odours, noise and dust.[1] There are provisions limiting nuisance actions against certain Crown corporations;[2] prohibiting nuisance actions against municipalities for damages arising out of the breakdown or malfunction of a sewer system, water or drainage facility or system or dike or road;[3] and prohibiting nuisance

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Community Charter, S.B.C. 2003, c. 26, s. 46(1); and *Transportation Act*, S.B.C. 2004, c. 44, ss. 16(*c*) and 72(2)(*d*).

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For example, *Health Act*, R.S.B.C. 1996, c. 179, ss. 8 and 16(2).

3

For example, *Community Charter*, S.B.C. 2003, c. 26, ss. 64 and 72(1).

4

B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 168-171.

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Farm Practices Protection (Right to Farm) Act, R.S.B.C. 1996, c. 131. See Vincent Guimond et al. v. Omera Shells Inc., 2023 NBKB 211 (N.B. C.K.B.), which interprets the applicable legislation in force in New Brunswick.

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Hydro and Power Authority Act, R.S.B.C. 1996, c. 212, s. 31.

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Local Government Act, R.S.B.C. 1996, c. 323, s. 288. And see British Columbia v. Vancouver (City) (2005), 46 B.C.L.R. (4th) 324, 11 M.P.L.R. (4th) 141, [2005] B.C.J. No. 1140, 139 A.C.W.S. (3d) 572, 2005 BCSC 747 (S.C.); and Drader v. Abbotsford (City) (2012), 98 M.P.L.R. (4th) 216, 2012 CarswellBC 1749, 217 A.C.W.S. (3d) 982, 2012 BCSC 873 (B.C. S.C.), at paras. 266-272. See also Stadnyk v. Thunder Bay (City), 2025 ONCA 137 (Ont. C.A.), in which the court confirmed s. 449 of the *Municipal Act, 2001*, S.O. 2001, c. 25, which bars

actions against the Crown in connection with the use of land for ferry terminals.[4]

7:20. Statutes as "Standards" of Reasonableness

Statutory provisions can be relevant to the issue of whether the tort of nuisance has been committed. The leading case is *National Capital Commission v. Pugliese*,[1] in which the plaintiff property owners sued the National Capital Commission after their lands subsided due to groundwater extraction connected with the construction of a collector sewer by the defendant.[2] In the Supreme Court of Canada, the appellant Commission's position rested on what has been termed the "English Rule" of water extraction, that a landowner may extract the water under his land not flowing in a defined channel to whatever extent he pleases, notwithstanding that this causes injury to his neighbour.

The Supreme Court held that the "English Rule" was no longer valid in Ontario because legislation[3] set limits on the volume of water that could be extracted on a daily basis without a permit. However, the court held this was no obstacle to a private action where the statutory limits on extraction are exceeded:

> ... this provision is not only in the public interest but also in the private interest of all land owners who are liable to suffer damage from excessive pumping ... The statute has defined what is reasonable. As a result of this definition any pumping above 10,000 gallons a day is unreasonable unless a permit has been granted. In view of these considerations any pumping in violation of s. 37 is to be considered as a nuisance when causing damage to other properties.

There has been some discussion in later cases[4] whether *Pugliese* stands for the proposition that, in some circumstances, liability in nuisance could arise simply from the breach

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nuisance claims against municipalities in connection with the escape of water or sewage from sewage works or water works, precluded the claim. The court rejected a "strained argument" that the claim did not concern leaks and the escape or water, but rather corrosion and the integrity of the pipes.

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Coastal Ferry Act, S.B.C. 2003, c. 14.

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National Capital Commission v. Pugliese, [1979] 2 S.C.R. 104, 97 D.L.R. (3d) 631, 8 C.C.L.T. 69, 25 N.R. 498.

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The defendant attacked the pleading, arguing that the facts alleged did not give rise to a valid cause of action.

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Ontario Water Resources Commission Act, R.S.O. 1970, c. 332, s. 37.

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For example, see Reaton Leasing Ltd. v. Glenmore-Ellison Improvement District (2004), 26 C.C.L.T. (3d) 289, 129 A.C.W.S. (3d) 1041, [2004] B.C.J. No. 564, 2004 BCSC 386 (B.C. S.C.), and Whistler Cable Television Ltd. v. Ipec Canada Inc., [1993] 3 W.W.R. 247, 75 B.C.L.R. (2d) 48, 17 C.C.L.T. (2d) 16, 37 A.C.W.S. (3d) 455, [1992] B.C.J. No. 2681 (S.C.).

of a statute alone, and accordingly whether it has been overruled by the court's decision in *Canada v. Saskatchewan Wheat Pool.*[5] In relation to the proposition advanced here, that breach of a statute can be strong evidence of nuisance, that question is academic, as *Saskatchewan Wheat Pool* itself makes clear that a breach of a statutory provision can be evidence of the commission of a tort.

Accordingly, it should be taken as settled law that breach of a statutory provision which limits permissible uses of property can be strong evidence of nuisance.[6] This will be a critical issue in many nuisance cases, for example where legislation place limits on industrial emissions or where bylaws place limits on permissible noise levels. Likewise a defendant's failure to comply with a permit can be relevant to the reasonableness analysis.[7]

It is equally clear that compliance with bylaws or regulations is not a defence to a claim of nuisance and breach of a bylaw does not inevitably lead to the conclusion that the impugned conduct constitutes a nuisance.[8]

The statutory scheme is also very important in cases where the plaintiff's claim to an interest in land arises from legislation, for example a statutory licence. In such a case the interests of the plaintiff must be balanced against the interests of other stakeholders under the statutory scheme. Where the statutory scheme itself seeks to balance the parties' completing interests, it can be difficult for a plaintiff to prove that another stakeholder's use of the Crown land is unreasonably interfering with the plaintiff's use.[9]

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Canada v. Saskatchewan Wheat Pool, [1983] 1 S.C.R. 205, 143 D.L.R. (3d) 9, [1983] 3 W.W.R. 97, 23 C.C.L.T. 121, 45 N.R. 425 *sub nom.* Saskatchewan Wheat Pool v. Government of Canada, 18 A.C.W.S. (2d) 133.

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Another case in which this principle was applied is the Ontario Court of Appeal's decision in 340909 Ontario Ltd. v. Huron Steel Products (Windsor) Ltd. (1990), 73 O.R. (2d) 641, 21 A.C.W.S. (3d) 1242, [1990] O.J. No. 997 (H.C.J.), affd 9 O.R. (3d) 305*n*, 35 A.C.W.S. (3d) 309 (C.A.). See also, Northern Light Arabians v. Sapergia, 2011 SKPC 151, 207 A.C.W.S. (3d) 833 (Sask. P.C.), [2011] S.J. No. 587.

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Krieser v. Garber, 2020 ONCA 699, 70 C.C.L.T. (4th) 40 (Ont. C.A.), at para. 43.

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Milne v. Saltspring Island Rod and Gun Club, 2014 BCSC 1088, 2014 CarswellBC 1735, [2014] B.C.J. No. 1236, 241 A.C.W.S. (3d) 742 (B.C. S.C.), at para. 47, additional reasons 2015 BCSC 75, 2015 CarswellBC 105, 248 A.C.W.S. (3d) 526 (B.C. S.C.). See also 469238 B.C. Ltd. v. Okanagan Aggregates Ltd., 2016 BCSC 721, 2016 CarswellBC 1124, 266 A.C.W.S. (3d) 266 (B.C. S.C.), additional reasons 2016 BCSC 1159, 2016 CarswellBC 1727, 268 A.C.W.S. (3d) 747 (B.C. S.C.); SWA Vancouver Limited Partnership v. Unite Here, Local 40, 2019 BCSC 1806, 60 C.C.L.T. (4th) 298 (B.C. S.C.), at para. 62.

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Chingee v. British Columbia, 2016 BCSC 760, 2016 CarswellBC 1177, 267 A.C.W.S. (3d) 308

VI. Foreseeability

7:21. Generally

Since at least the decision in *Overseas Tankship (U.K.) Ltd. v. Miller Steamship Co. Pty. (The)* ("*Wagon Mound No. 2*"),[1] foreseeability of harm has been an element of the tort of nuisance in England. In certain kinds of cases, this has caused the distance between nuisance and negligence to narrow. In particular, where the harm results from an isolated accident, the requirement that foreseeability of harm be proved will ensure that the result does not depend on the form of action.[2]

However, it is suggested that the concept of foreseeability has no application to cases involving an ongoing "state of affairs" on the defendant's land (for example, noise or odours), in which cases the real problem for the court is to decide which of two competing uses of land should give way to the other.

In *Wagon Mound No. 2*, the defendant allowed bunkering oil to spill into Sydney Harbour, which oil was set alight accidentally by another party conducting welding works in the area. The plaintiff suffered extensive damage to two vessels as a result of the fire and sued the defendant in both negligence and nuisance. The nuisance alleged was a public nuisance, the pollution of public waters, and it was accepted that any person who suffered "special damage" on account of that pollution would have a cause of action. The difficulty was that the damage was the result of the fire, not the pollution *per se.* The trial judge held that the risk of fire was not foreseeable, begging the question whether it is a requirement of nuisance law that the damage suffered be foreseeable.[3]

(B.C. S.C.) at paras. 60-66, affirmed *Chingee v. British Columbia*, 2017 BCCA 250, 100 B.C.L.R. (5th) 96, 39 C.C.L.T. (4th) 216, 2017 CarswellBC 1729, 281 A.C.W.S. (3d) 237 (B.C. C.A.).

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Overseas Tankship (U.K.) Ltd. v. Miller Steamship Co. Pty. (The) ("Wagon Mound No. 2"), [1967] 1 A.C. 617 (P.C.).

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See, for example, Abbott v. Kasza (1976), 71 D.L.R. (3d) 581, [1976] 4 W.W.R. 20 (Alta. S.C.), leave to appeal to S.C.C. refused 1 A.R. 99*n*. Note that the element of "proximity", which features prominently in the question of whether a duty of care arises in negligence, will not stand in the way of a merger of negligence and nuisance in this context since physical proximity is present in virtually all cases of nuisance.

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Note, the issue here is foreseeability of the loss in question, and accordingly Lord Reid approached the matter as one concerning the measure of damages in nuisance. The problem was not whether the oil was a nuisance; that was clearly established. Lord Reid observed that there are cases in which the finding of nuisance itself would depend upon foreseeability, as in the case of objects left on a highway. This makes sense insofar as some objects may be too small to be reasonably anticipated to cause any obstruction at all. In any event, His Lordship concluded that foreseeability of damage is a requirement in all nuisance cases, not simply those in which foreseeability is an element of the nuisance itself (see p. 640).

Lord Reid, writing the only speech for a unanimous court, held that foreseeability of harm is required. His Lordship observed that, though negligence is not a necessary element of nuisance, "fault of some kind is almost always necessary and fault generally involves foreseeability, *e.g.* in cases like *Sedleigh-Denfield v. O'Callaghan* the fault is in failing to abate the nuisance the existence of which the defender is or ought to be aware as likely to cause damage to his neighbour".[4]

Lord Reid addressed the meaning of the words "foreseeable" and "reasonably foreseeable" at some length, but to understand his approach, it is necessary to briefly describe his Lordship's views on the earlier case of *Bolton v. Stone.*[5] When *Bolton v. Stone* was decided, cases fell into one of two classes:

> (1) those where, before the event, the risk of its happening would have been regarded as unreal because the event would have been thought to be physically impossible or because the possibility of its happening would have been regarded as so fantastic or farfetched that no reasonable man would have paid any attention to it; or
>
> (2) those where there was a real and substantial risk or chance that something like the event which happens might occur, and then the reasonable man would have taken steps necessary to eliminate the risk.

Bolton v. Stone involved an errant cricket ball which struck an elderly lady outside the cricket grounds. The House of Lords held that such an accident was not farfetched or fantastic and thus was foreseeable, but that the chance of such an outcome was so small that a reasonable person would have been justified in disregarding it and taking no steps to eliminate it.

In *Wagon Mound No. 2*, however, Lord Reid held that it does not follow that, no matter what the circumstances, it is justifiable to neglect a risk of such small magnitude. He held that a reasonable person would only neglect such a risk if he had some valid reason for doing so, for example that it would involve considerable expense to eliminate it.[6] On the facts of the case before him, Lord Reid held that the risk of the plaintiff's vessels catching fire may have been remote, but there was no justification for not taking steps to eliminate this small risk. Indeed he noted that the discharge of oil into the harbour was an offence and was financially wasteful.

It is suggested that, following *Wagon Mound No. 2*, there are two potential answers to an allegation that harm was foreseeable:

> (1) that prior to the event, the risk of such harm would be perceived, by the reasonable person, as being far-fetched or unreal and so would not reasonably come within the contemplation of the defendant; or

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Overseas Tankship (U.K.) Ltd. v. Miller Steamship Co. Pty. (The) ("Wagon Mound No. 2"), [1967] 1 A.C. 617 (P.C.), at p. 639.

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Bolton v. Stone, [1951] A.C. 850 (H.L.).

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Overseas Tankship (U.K.) Ltd. v. Miller Steamship Co. Pty. (The) ("Wagon Mound No. 2"), [1967] 1 A.C. 617 (P.C.), at p. 642.

(2) that the risk of such harm occurring would be perceived, by the reasonable person, as a real risk, yet a small risk, and that it was justifiable not to take steps to eliminate the risk in the circumstances having regard to the difficulty or expense of eliminating it.

The House of Lords revisited *Wagon Mound No. 2*, along with *Sedleigh-Denfield v. O'Callaghan*[7] and *Goldman v. Hargrave*,[8] in a case involving a claim for remedial expenditure relating to encroaching tree roots.[9] Lord Cooke of Thorndon, writing for a unanimous court, referred to the limited authority on point and then observed:[10]

> Beyond that I think that the answer to the issue falls to be found by applying the concepts of reasonableness between neighbours (real or figurative) and reasonable foreseeability which underlie much modern tort law and, more particularly, the law of nuisance. The great cases in nuisance decided in our time have these concepts at their heart. In *Sedleigh-Denfield v. O'Callaghan* [1940] AC 880, the House of Lords held that an occupier of land "continues" a nuisance if, with knowledge or presumed knowledge, of its existence (in that case a defective grating giving rise to flood damage), he fails to take reasonable means to bring it to an end when he has reasonable time to do so. In *Overseas Tankship (UK) Ltd v. Miller Steamship Co Pty* [1967] 1 AC 617, the second Wagon Mound case, the Privy Council, approaching the case under the rubrics of both nuisance and negligence, said, at p. 644 *per* Lord Reid:
>
> "If it is clear that the reasonable man would have realised or foreseen and prevented the risk, then it must follow that the appellant is liable in damages".

...

> In both the second Wagon Mound case and *Goldman v. Hargrave* the judgments, which repay full rereading, are directed to what a reasonable person in the shoes of the defendant would have done. The label nuisance or negligence is treated as of no real significance. In this field, I think, the concern of the common law lies in working out the fair and just content and incidents of a neighbour's duty rather than affixing a label and inferring the extent of the duty from it.

In other words, it is now settled law in England that there is no distinction between negligence and nuisance in relation to the requirement of foreseeability of harm.

Until recently, the same appeared to be true in Canada, at least in cases involving isolated accidents. One example is *Chu v. North Vancouver (District)*.[11] In that case, the defendant bought a lot which backed onto a steep ravine. In the course of building a house and swimming pool, fill was placed on the lot and spilled into the ravine. Eleven years later, torrential rains saturated the fill and undermined it, resulting in an avalanche of debris which substantially demolished the plaintiffs' homes situated below. Citing *Wagon Mound No. 2*, the judge

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7 Sedleigh-Denfield v. O'Callaghan, [1940] A.C. 880 (H.L.).

8 Goldman v. Hargrave, [1967] 1 A.C. 645 (P.C.).

9 Delaware Mansions Ltd. v. Westminster (City), [2001] H.L.J. No. 55.

10 Delaware Mansions Ltd. v. Westminster (City), [2001] H.L.J. No. 55, at paras. 29-31.

11 Chu v. North Vancouver (District), [1982] B.C.J. No. 72 (S.C.).

concluded that the harm was not reasonably foreseeable.[12]

Wagon Mound No. 2 has also been applied in Canada in cases involving damage to property from landslides;[13] subsidence of land caused by ditch works;[14] and accidents caused by obstructions on a highway.[15]

MacMillan Bloedel (Alberni) Ltd. v. British Columbia Hydro and Power Authority,[16] is an example of the unifying effect of the doctrine of foreseeability. The case involved a fire caused by a power line accidentally felled during some blasting works which were part of a highway construction project. The defendant who detonated the explosives was a man named Adams who, like the other defendants, was sued in both negligence and nuisance. The court found he was not liable in negligence because he could not reasonably have foreseen the chain of events which led to the fire. As for nuisance, the court cited several authorities in support of the assertion that "the tendency of recent decisions is to 'assimilate nuisance and negligence'".[17] The

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However, the judge found the defendant liable on the principle in Rylands v. Fletcher (1866), 1 Ex. D. 265, affd L.R. 3 H.L. 330. That result is now open to question in light of the House of Lords decision in Cambridge Water Co. v. Eastern Counties Leather plc, [1994] 2 A.C. 264 (H.L.), in which it was held that the law of reasonable foreseeability applies even in the field of *Rylands v. Fletcher.* See also Smith v. Inco Ltd., 2011 ONCA 628, 2011 CarswellOnt 10141, 107 O.R. (3d) 321, 88 C.C.L.T. (3d) 1, 62 C.E.L.R. (3d) 93, 340 D.L.R. (4th) 602, 284 O.A.C. 13, [2011] O.J. No. 4386 (Ont. C.A.), leave to appeal refused 2012 CarswellOnt 4932, 2012 CarswellOnt 4933, [2012] 1 S.C.R. xii (note), 435 N.R. 392 (note), 300 O.A.C. 401 (note) (S.C.C.), reconsideration / rehearing refused 2014 CarswellOnt 12114, 2014 CarswellOnt 12113 (S.C.C.) at para. 109-110.

13

J.A. Angus Investments Ltd. v. Edmonton (City) (1977), 3 A.R. 116, [1977] A.J. No. 577 (S.C.), revd 6 A.R. 625 (S.C.C.).

14

Canadian Imperial Bank of Commerce v. Richmond (Township), [1980] B.C.J. No. 1097 (S.C.).

15

M.J. Ladouceur Co. v. Fournier, [1976] O.J. No. 623 (H.C.).

16

MacMillan Bloedel (Alberni) Ltd. v. British Columbia Hydro & Power Authority (1971), 22 D.L.R. (3d) 164, [1971] 4 W.W.R. 321, [1971] B.C.J. No. 447 (B.C. S.C.), vard 33 D.L.R. (3d) 538, [1973] 1 W.W.R. 22 (B.C. C.A.).

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It is suggested that the authorities cited do not stand for quite so broad a proposition. Nor would a wholesale assimilation be welcome. The tort of nuisance has an important role to play in regulating competing uses of land, a role for which it is much better suited than is the tort of negligence.

court went on to hold that "if Adams is to be held liable in nuisance he must be found at fault and that fault on the facts of this case can only be negligence".[18]

Questions of foreseeability are unlikely to arise in cases involving ongoing nuisances such a noise, odours, or vibrations in which a "state of affairs" is impugned rather than an isolated incident. In such cases, the damage is typically annoyance of one form or another and the question is not whether such harm is foreseeable (it invariably is), but whether the interference with the plaintiff's use and enjoyment of his or her land is sufficiently significant and unreasonable to warrant a finding of liability, having regard to such factors as the severity of the interference, the character of the neighbourhood and the social utility of the defendant's conduct.

Nor in such cases is anything to be gained by the import of negligence concepts. The issue in such cases is how to balance the competing property interests of neighbours, a task for which the law of nuisance is well suited.

In a recent decision involving pollution, the Ontario Court of Appeal concluded that foreseeability is not a necessary element of the tort of nuisance.[19] In that case, solvents from a dry cleaning business contaminated nearby soil, following which ground water caused the contaminants to migrate to the plaintiff's land. However, during the historical period when the solvents in question were used, their risks were not understood, and downstream harm would not have been anticipated. Accordingly the defendant argued that the harm was not foreseeable. The court recognized that under English law foreseeability is required, but noted that the law in Canada is "evolving" and that there are no precedents in this country binding on the court. In support of its view that foreseeability is not an element of nuisance, the court noted that nuisance is a "useful tool in the prosecution of environmental claims" and that accepting the defendant's position would mean the utility of the tort would be compromised. The court also opposed blurring the distinction between negligence and nuisance.[20]

VII. Defences

7:22. Introduction

There are a number of defences to nuisance, including statutory authority, contributory negligence, acquiescence, act of God, and prescription. The defence of statutory authority is examined at some length because it frequently arises in cases against the Crown. In addition, the

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MacMillan Bloedel (Alberni) Ltd. v. British Columbia Hydro & Power Authority (1971), 22 D.L.R. (3d) 164, [1971] 4 W.W.R. 321, [1971] B.C.J. No. 447 (B.C. S.C.), varied 33 D.L.R. (3d) 538, [1973] 1 W.W.R. 22 (B.C. C.A.), at para. 79.

19

Huang v. Fraser Hillary's Limited, 2018 ONCA 527, 2018 CarswellOnt 9105, 47 C.C.L.T. (4th) 70, 16 C.E.L.R. (4th) 202 (Ont. C.A.), leave to appeal refused 2019 CarswellOnt 5600, 2019 CarswellOnt 5599 (S.C.C.), at para. 22-23.

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Huang v. Fraser Hillary's Limited, 2018 ONCA 527, 2018 CarswellOnt 9105, 47 C.C.L.T. (4th) 70, 16 C.E.L.R. (4th) 202 (Ont. C.A.), para. 23.

question of whether the Crown can be liable in nuisance for damage which results from government policy decision is addressed in this section.

7:23. The Defence of Statutory Authority

If legislation authorizes, either expressly or implicitly, conduct which causes a nuisance, a person whose private rights are thereby infringed has no cause of action in nuisance against those acting in accordance with the legislation. As shall be seen, however, the scope of this defence, invoked most typically by public authorities, is narrow owing to the requirement that the nuisance must be the "inevitable consequence" of the exercise of the statutory power or duty in question.

Viscount Dunedin gave the classic articulation of this defence in *Lord Mayor, Aldermen and Citizens of the City of Manchester v. Farnworth*:[1]

> When Parliament has authorized a certain thing to be made or done in a certain place, there can be no action for nuisance caused by the making or doing of that thing if the nuisance is the inevitable result of the making or doing so authorized ... the criterion of inevitability is not what is theoretically possible but what is possible according to the state of scientific knowledge at the time, having also in view a certain common sense appreciation, which cannot be rigidly defined, of practical feasibility in view of situation and expense.

Two Supreme Court of Canada decisions address the defence, the latter[2] resolving the considerable confusion caused by the former.[3] *Tock v. St. John's Metro Area Board* saw a majority of the judges of the Supreme Court of Canada seeking to restrict the ambit of the defence. Wilson J., writing for herself and two others, held that the defence is available only when (a) the legislation imposes a positive duty to perform the act in question; or (b) the legislation, although it only confers an authority, is specific as to the manner or location of the act in question. In either case the nuisance must be the "inevitable result" of the exercise of the duty or the authority.

LaForest J., writing for himself and one other, held that the defence should be abolished altogether. He argued that the inevitability of nuisance was no reason to allocate the cost thereof to the "hapless" individual who suffers the consequences. Sopinka J., writing for himself, held that the status quo, represented by *Manchester v. Farnworth*, should remain the law and the defence should be available whether the statute in question is mandatory or permissive so long as the work is carried out in accordance with the statute.

In *Ryan v. Victoria (City)*,[4] a unanimous panel of seven cited the divergence of opinions

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Manchester (Lord Mayor, Aldermen and Citizens of City) v. Farnworth, [1930] A.C. 171.

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Ryan v. Victoria (City), [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191 W.A.C. 103, 85 A.C.W.S. (3d) 208.

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Tock v. St. John's Metropolitan Area Board, [1989] 2 S.C.R. 1181, 64 D.L.R. (4th) 620, 82 Nfld. & P.E.I.R. 181, 1 C.C.L.T. (2d) 113, 47 M.P.L.R. 113, 104 N.R. 241, 18 A.C.W.S. (3d) 531.

4

Ryan v. Victoria (City), [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191

in *Tock* and held:

> In the absence of a new rule, it would be appropriate to restate the traditional view, which remains the most predictable approach to the issue and the simplest to apply. That approach was expressed by Sopinka J. in *Tock*, at p. 1226:
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> "The defendant must negative that there are alternate methods of carrying out the work. The mere fact that one is considerably less expensive will not avail. If only one method is practically feasible, it must be established that it was practically impossible to avoid the nuisance. It is insufficient for the defendant to negative negligence. The standard is a higher one. While the defence gives rise to some factual difficulties, in view of the allocation of the burden of proof they will be resolved against the defendant."

The facts in *Ryan* concerned an injury to a motorcyclist after his front tire became caught in a "flangeway"[5] gap running alongside a street-grade railway track in the road. The court held that the defence of statutory authority was not available because the applicable regulation provided only that flangeways be a minimum of 2.5 inches wide, while the flangeway in Ryan's case was over 3.5 inches wide. The court held that the railway's decision to exceed the minimum width was a matter of discretion and was not the "inevitable result" of complying with the regulations. It has been stressed that what must be 'inevitable' is the nuisance, not the creation or release of the invasive agent that causes the nuisance (*e.g.* a pollutant or noise).[6] In addition to the requirement of inevitability, several cases have emphasized that the legislation in question must be strictly construed in accordance with the presumption against interference with individual rights.[7]

The defence of statutory authority has been successfully invoked in a number of cases where legislation permits the construction of major public works or undertakings, such as rail

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W.A.C. 103, 85 A.C.W.S. (3d) 208, at para. 55.

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A flangeway is a groove adjacent to the track installed to help prevent derailments while permitting rails to remain flush with the surface of the road.

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Vancouver (City) v. Robinson (2013), 12 M.P.L.R. (5th) 99, 2013 CarswellBC 2109, 231 A.C.W.S. (3d) 526, 2013 BCSC 1224 (B.C. S.C.), at paras. 34-35 and 46.

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81 at para. 80, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.); and Schenck v. Ontario (1981), 131 D.L.R. (3d) 310 at p. 322, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), addt'l reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd 15 D.L.R. (4th) 320*n*, 49 O.R. (2d) 556*n* (C.A.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

lines,[8] refineries[9], dams[9.50] and airports.[10] It is clear, in light of recent case law, that statutory authority need not come *directly* from a statute, but may be found in subordinate legislation. For example, in *Sutherland v. Canada (Attorney General)*,[11] a series of statues, regulations, Orders-in-Council, and a certificate issued under the applicable regulations authorized the addition of the airport's north runway in the location and configuration in which it was constructed. The Order-in-Council authorized the minister to enter into a lease with the airport authority and a draft of the lease, which provided that the authority was required to build the runway in the location specified in an environmental assessment, was attached to the Order-in-Council. The Order-in-Council was viewed by the court as a form of subordinate legislation providing statutory authority for the location of the runway. The trial judge held that this did not mean that the legislation authorized a noise nuisance. The Court of Appeal held that the trial judge had erred in this respect "because he looked to a purpose of the airport certificate rather than to its legal effect".[12] The legal effect of the certificate was to authorize the operation of the runway which clearly could not be done without the impugned noise.

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See Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81 at para. 80, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

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Allen v. Gulf Oil Refining Ltd., [1981] 1 All E.R. 353 (H.L.).

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at paras. 523-542.

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Sutherland v. Canada (Attorney General) (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*.

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Sutherland v. Canada (Attorney General) (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*.

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Sutherland v. Canada (Attorney General) (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*, at para. 97.

In *Susan Heyes Inc. v. Vancouver (City)*,[13] the British Columbia Court of Appeal applied the defence of statutory authority in a case in which the construction of a rapid transit line caused a nuisance to a neighbouring retail clothing store. The trial judge had held that there was an alternative, viable method of construction that would not have caused the nuisance. Accordingly, even if there was statutory authority for the nuisance, which the trial judge held was not the case, the nuisance was not the 'inevitable' result of the exercise of that authority. On appeal, extensive argument was made on both the issue of authority and the issue of inevitability. As for the question of authority, the court rejected the defendants' arguments that a resolution passed by the board of the transportation authority approving the proposal of one of the proponents constituted legislation, and rejected the argument that approval under the Provincial environmental assessment regime constituted statutory authority. In the case of the resolution, the court held it was an executive Act, not a legislative one. In the case of the environmental assessment certificate, the court found that nowhere in the environmental assessment regime could one find evidence of a legislative intent to deny affected parties a private right of action, and held that the environmental assessment process addresses concerns at a "macro level" and does not focus on individual interests or disputes. However, the court agreed with the defendants' arguments that statutory authority could be found in the legislation which authorized the construction of the transit line. That legislation was silent as to the method of construction, but the court held, as described below, that the method used was the only viable method in the circumstances. Further, the court held that statutory authority was also conferred by the city's enabling statue, the *Vancouver Charter* which, along with another related statute, conferred on the city, and those authorized to build on city land, the power to regulate vehicular and pedestrian traffic, implement traffic management plans, use streets for construction access as necessary, and accordingly implement street closures. It was these impacts on vehicular and pedestrian flow during construction which caused the nuisance (reduced access to the store) rather than the operation of the rail line.

As for the inevitability of the nuisance, the court found that in spite of the existence of an alternative method of construction (tunnel boring, rather than surface trenching known as 'cut and cover') the nuisance should be viewed as inevitable. The court held that the determination of inevitability could not be made without comparing the two construction methods and their respective feasibility. A major issue was that the tunneling method, which would have been far less disruptive to the plaintiff, was about half a billion dollars more expensive. The court acknowledged that the Supreme Court in *Ryan*, above, observed that the mere fact that one method is considerably less expensive will not be sufficient to negative a non-nuisance causing alternative, but concluded that "the common sense approach advocated in *Manchester* suggests there must be some point at which a strong evidentiary record of significant financial disparity that demonstrates one option is practically impossible, becomes a legitimate consideration in determining the practical feasibility of alternatives".[14] Other issues impacting the court's view of

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81 at para. 80, 2011 BCCA 77 (B.C. C.A.), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

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Vancouver (City) v. Robinson (2013), 12 M.P.L.R. (5th) 99, 2013 CarswellBC 2109, 231

'practical feasibility' included that the proponents of the 'cut and cover' method were prepared to assume financial responsibility for all geotechnical risk, a concession valued at about a quarter billion dollars; that the proposed construction schedule for the 'cut and cover' option was more likely to result in a finished rail line in time for the Olympic Games; and that the 'cut and cover' method allowed for shallower train stations which would apparently increase ridership. In conclusion, the Court of Appeal held that the 'cut and cover' option was "the only practically feasible option for constructing the line". The court further held that the nuisance complained of could not have been avoided in the context of 'cut and cover' construction. Accordingly, the nuisance was the inevitable result of the authority allowing the construction of the rail line.

The court went on to make some interesting observations as to the legal analysis that would have been applied by the court had it agreed with the trial judge that the tunnelling option represented a viable alternative to the 'cut and cover' method. The court held that it was wrong to view the tunnelling method as a 'non-nuisance causing' option and thereby pit it against 'cut and cover'. The court held that while tunnelling may not have caused a nuisance to the plaintiff, in light of her geographic location along the line, it would have caused a nuisance elsewhere along the line. The proper analysis would be to consider the competing alternatives' global impacts, not solely the impacts on the plaintiff, otherwise the court would simply be "transferring the nuisance-causing potential to other parties at other locations".[15] The court concluded on the evidence that the nuisance-causing potential of both construction methods was comparable.

In *Thomas v. Rio Tinto Alcan Inc.*[16] the British Columbia Court of Appeal dismissed a motion for summary judgment of a claim of nuisance brought by two First Nations which complained of harm to a fishery caused by the defendant's operation of a dam. The defendant dam operator argued that there was no genuine issue for trial on the basis that the defence of statutory authority clearly applied. The court held that while it was clear the defendant had authority to operate the dam and thereby alter the flow of water in the river, it was not clear that it had authority to store and divert water in the particular manner which was said to result in the particular harms alleged. The defendant's water licence, and related incorporated documents, did not prescribe the timing or manner of the releases of water, and the court held that it was not known, based on the evidence adduced on the motion, whether water could be released in a fashion that could avoid the alleged nuisance.[17]

A.C.W.S. (3d) 526, 2013 BCSC 1224 (B.C. S.C.), at para. 125.

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Vancouver (City) v. Robinson (2013), 12 M.P.L.R. (5th) 99, 2013 CarswellBC 2109, 231 A.C.W.S. (3d) 526, 2013 BCSC 1224 (B.C. S.C.), at para. 144.

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Thomas v. Rio Tinto Alcan Inc., 2015 BCCA 154, 2015 CarswellBC 925 (B.C. C.A.) at para. 102, leave to appeal refused 2015 CarswellBC 2965, 2015 CarswellBC 2966, [2015] S.C.C.A. No. 235 (S.C.C.).

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Thomas v. Rio Tinto Alcan Inc., 2015 BCCA 154, 2015 CarswellBC 925 (B.C. C.A.) at para. 102, leave to appeal refused 2015 CarswellBC 2965, 2015 CarswellBC 2966, [2015] S.C.C.A. No. 235 (S.C.C.), at para. 102.

The *Thomas* case also addresses the prospect that the defence of statutory authority cannot be grounded in a licence and related instruments and legislation when these instruments and enactments are constitutionally incapable of taking away or diminishing Aboriginal rights. Distinguishing *Behn v. Moulton Contracting Ltd.*,[18] the court held that such a plea, made in reply to a plea of statutory authority, did not amount to a collateral attack on the issuance of the water licence because the pleading did not challenge the *validity* of the licence. Rather, it challenged its scope, and accordingly the court refused to strike this portion of the plaintiffs' reply on the basis of collateral attack. If the plaintiffs' attack on the defence of statutory authority were itself to rest on establishing that the water licence is unlawful, then it is difficult to see how *Moulton Contracting* can be distinguished. On the other hand, if the water licence is not alleged to be unlawful, then it is difficult to see how the defence of statutory authority would not be available. As was made clear by the chambers judge,[19] the plaintiffs' claim was a "private law claim for injunctive relief and damages", not a constitutional claim. It appears that the claim of Aboriginal rights and title was made largely to support standing to sue in nuisance. It should not matter that standing to sue in nuisance arises from a right of occupation or possession of land consequent upon a finding of Aboriginal rights or title. The nuisance claim is still a common law claim, and while the defence of statutory authority may not ultimately be made out, it must surely be open to the defendant to raise it in response to a nuisance claim barring constitutional invalidity of the instrument or enactment relied upon to ground the defence.

The *Thomas* case proceeded to trial,[20] and the trial judge concluded that the defence of statutory authority was available to the corporate defendant, Rio Tinto Alcan, in connection with the construction of a dam authorized by both levels of government, the inevitable consequence of which was the interference said to be a nuisance. This conclusion was upheld on appeal.[20.10] The Court of Appeal found that the statutory scheme at issue in this case contemplated that a

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Behn v. Moulton Contracting Ltd., [2013] 2 S.C.R. 227, 2013 SCC 26, 357 D.L.R. (4th) 236, [2013] 7 W.W.R. 1, 571 W.A.C. 34, 43 B.C.L.R. (5th) 1, 333 B.C.A.C. 34, [2013] 3 C.N.L.R. 125, 443 N.R. 303, 2013 CarswellBC 1158, 2013 CarswellBC 1159, [2011] S.C.C.A. No. 360, 226 A.C.W.S. (3d) 612 (S.C.C.).

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Thomas v. Rio Tinto Alcan Inc. (2013), 2013 BCSC 2303, [2014] 2 C.N.L.R. 330, 2013 CarswellBC 3804, [2013] B.C.J. No. 2748, 236 A.C.W.S. (3d) 1066 (B.C. S.C.) at para. 91, reversed 2015 BCCA 154, 2015 CarswellBC 925 (B.C. C.A.), leave to appeal refused 2015 CarswellBC 2965, 2015 CarswellBC 2966, [2015] S.C.C.A. No. 235 (S.C.C.).

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.).

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

nuisance would flow from the prescribed work. The court observed that the Legislature recognized an impact on fisheries as the inevitable result of Rio Tinto Alcan operating as prescribed, but continued to authorize the works (and therefore the nuisance itself).[20.20] In such a case, where Rio Tinto Alcan had been given specific authority and direction for the construction and operation of the dam and the related reservoir, the diversion of water, and the timing and release of water into the subject river, the issue of whether there were practical feasible alternatives did not arise.[20.30]

The trial judge further held that the defence of statutory authority applies even in the face of proven violations of Aboriginal rights arising from the authorized works.[21] The plaintiffs argued that statutory authority cannot be invoked as a defence because governments cannot authorize conduct that is unconstitutional. The court held that while a law may have no force and effect to defeat an Aboriginal right in a context where the law would otherwise apply to the right-holder, the same is not true where the law is applied to permit a non-right-holder to do something.[22] The court observed that to find otherwise would, in effect, be to find that the legislative instruments authorizing the damming and regulation of water flows were themselves unconstitutional.[23] The court further observed that it was not tenable to cite Aboriginal rights as a basis for conferring standing to sue in nuisance, only to then argue that the same rights preclude the defendant from relying upon an otherwise valid defence.[24] The BC Court of Appeal confirmed the application of the defence of statutory authority in this case, confirming that the defence could be available to a private party relying on an authorization that infringes on constitutionally protected rights. The court accepted the claimants' argument that remedial orders

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), at para. 238, leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), at paras. 234, 237, leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 565-574.

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 569.

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 570.

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Thomas and Saik'uz First Nation v. Rio Tinto Alcan Inc., 2022 BCSC 15, 2022 CarswellBC 36 (B.C. S.C.), at para. 573.

for unjustified infringement of s. 35 rights frequently impact third parties, but distinguished those circumstances from the proposition that the establishment of a s. 35 right could create a cause of action against a non-governmental party.[24.10] Instead, the court confirmed the trial judge's conclusion that if the claimants' s. 35 rights continued to be infringed by the ongoing authorization of the Crown concerning the storage of water from the subject river, their remedy lies against the crown and not the private party.[24.20] In doing so, the court observed that although private parties may be able to rely on the defence of statutory authority to shield themselves from direct liability, they may experience the "knock-on" effects of a remedy against the Crown. Such knock-on effects are the likely result of the declaratory relief granted by the Court of Appeal in the *Thomas* case.[24.30]

Another group of cases which frequently attract argument over the ambit of the statutory authority defence is cases involving random accidents relating to the operation of infrastructure, such as sewer back-ups and culvert blockages. Indeed *Tock* was a case in which a blocked storm sewer caused flooding of the plaintiff's basement. Attempts to invoke the defence in this context fail more often than not as such accidents are not viewed as "inevitable" consequences of the works authorized by legislation.[25]

A notable exception is the decision of the British Columbia Court of Appeal in *Torino*

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), at paras. 267-268, leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), at para. 284, leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

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Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 (B.C. C.A.), at para. 462, leave to appeal refused 2024 CarswellBC 2988 (S.C.C.).

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For example, in addition to Tock v. St. John's Metropolitan Area Board, [1989] 2 S.C.R. 1181, 64 D.L.R. (4th) 620, 82 Nfld. & P.E.I.R. 181, 1 C.C.L.T. (2d) 113, 47 M.P.L.R. 113, 104 N.R. 241, 18 A.C.W.S. (3d) 531, see Oosthoek v. Thunder Bay (City) (1995), 17 C.L.R. (2d) 217, 24 M.P.L.R. (2d) 25, [1994] O.J. No. 2619 (Ont. Ct. (Gen. Div.)), affd 139 D.L.R. (4th) 611, 30 O.R. (3d) 323, 93 O.A.C. 131, 21 C.E.L.R. (N.S.) 77, 29 C.L.R. (2d) 157, 34 M.P.L.R. (2d) 81, 65 A.C.W.S. (3d) 1023 (C.A.), leave to appeal to S.C.C. refused 146 D.L.R. (4th) vii, 104 O.A.C. 240*n*, 223 N.R. 224*n*; Canada (Attorney General) v. Ottawa-Carleton (Regional Municipality) (1991), 83 D.L.R. (4th) 725, 5 O.R. (3d) 11, 50 O.A.C. 275, 8 C.C.L.T. (2d) 256, 28 A.C.W.S. (3d) 716 (C.A.); Buysse v. Shelburne (Town) (1984), 6 D.L.R. (4th) 734, 45 O.R. (2d) 501, 2 O.A.C. 366, 28 C.C.L.T. 1, 27 M.P.L.R. 137, 24 A.C.W.S. (2d) 311 (Div. Ct.); and Moakler v. Conception Bay South (Town) (2005), 254 Nfld. & P.E.I.R. 353, 24 M.P.L.R. (4th) 301, 2005 NLTD 206, [2005] N.J. No. 385, 144 A.C.W.S. (3d) 558 (Nfld. & Lab. S.C.T.D.), revd 262 Nfld. & P.E.I.R. 306, 26 C.E.L.R. (3d) 142 (Nfld. & Lab. C.A.), 29 M.P.L.R. (4th) 163, 154 A.C.W.S. (3d) 206, 2006 NLCA 72.

Motors (1975) Ltd. v. British Columbia,[26] a case in which a car dealership adjacent to the Trans Canada Highway flooded after a culvert under the highway got clogged by natural debris during a period of high runoff. Before the flood in question, the culvert had been trouble-free for 16 years. Such a flood, resulting as it did from a "sudden blockage", was held by the court to be the inevitable consequence of the construction of the roadbed and culvert.

The *Torino* case was decided before *Tock* and *Ryan*, but the court was aware of and distinguished *Manchester v. Farnworth*,[27] which is the seminal case upon which Sopinka J. relied in *Tock* and upon which Major J. relied in *Ryan.*

It is suggested that the decision in *Torino* on inevitability is sound. If legislation authorizes the construction of public works such as highways and culverts, and those works are continually at the mercy of the forces of nature, it will be "practically impossible", to use Sopinka J.'s language, to avoid random natural events which overpower, without warning, the works in question. Perhaps the Crown could install uniformly massive culverts, or could post a servant on each stretch of road to continually check them, but such measures do not fit the notion of what is "practically feasible", to use Justice Sopinka's language again.

Public authorities have no monopoly over the defence of statutory authority. As Linden notes, contractors working on projects authorized by statute may invoke the defence.[28] And, as the Court of Appeal observed in *Sutherland*, "the test focuses on what work, conduct or activity is authorized by statute, rather than on the person or body upon whom the authority is conferred".[29] The court held it "cannot be disputed" that private parties can rely on the defence.[30]

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Torino Motors (1975) Ltd. v. Kamloops (City) (1988), 63 D.L.R. (4th) 168, [1988] 6 W.W.R. 762, 28 B.C.L.R. (2d) 1, 44 C.C.L.T. 278, 10 A.C.W.S. (3d) 201, [1988] B.C.J. No. 797 (B.C. C.A.).

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Manchester (Lord Mayor, Aldermen and Citizens of City) v. Farnworth, [1930] A.C. 171.

28

A.M. Linden, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997), at p. 548.

29

Sutherland v. Canada (Attorney General) (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*, at para. 67.

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Sutherland v. Canada (Attorney General) (2002), 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*, at para. 86, citing various English and Canadian authorities.

The *Heyes* decision, above, stands for the same proposition.[31]

The defence was recently successfully relied on by a government and a private party in *Havelka v. Greenfield Construction Ltd.*,[31.30] a case which involved *prima facie* nuisances flowing from construction in a harbour adjacent to the plaintiffs' residence. Canada and the contractor were not legally responsible, as the scope of the project and its execution were authorized by legislation and generally carried out by the contractor in accordance with instructions from Canada, and the sources of the nuisances were an inevitable result of the proper exercise of the statutory authority. The court also emphasized the great public utility of the project and that the contractor took reasonable steps to mitigate any material degree of nuisance it may have caused.[31.50]

Where it is clear from the notice of civil claim or statement of claim that the defence of statutory authority applies (because the alleged nuisance is “mandatory” under, or otherwise the inevitable result of, a regulatory regime), the claim for nuisance does not disclose a reasonable cause of action and can be struck.[32]

7:24. Availability of a Government Policy Defence

The Supreme Court of Canada has held on a number of occasions that governments are not liable in tort for the consequences of core policy decisions.[1] Though each of these cases concerned actions in negligence, the court's articulation of the policy defence was not limited to

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Susan Heyes Inc. v. Vancouver (City) (2011), 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A.) at para. 151, leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

31.30

Havelka v. Greenfield Construction Ltd., 2025 NSSC 10 (N.S. S.C.).

31.50

Havelka v. Greenfield Construction Ltd., 2025 NSSC 10 (N.S. S.C.), at paras. 58-62 and 64.

32

Klassen v. Canadian National Railway Company, 2023 ABCA 150 (Alta. C.A.) at paras. 31-35, additional reasons 2023 ABCA 233 (Alta. C.A.), leave to appeal refused *Norman Klassen v. Canadian National Railway Company*, 2024 CarswellAlta 92 (S.C.C.).

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Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527; Brown v. British Columbia (Minister of Transportation and Highways), [1994] 1 S.C.R. 420, 112 D.L.R. (4th) 1, [1994] 4 W.W.R. 194, 89 B.C.L.R. (2d) 1, 20 Admin. L.R. (2d) 1, 19 C.C.L.T. (2d) 268, 2 M.V.R. (3d) 43, 164 N.R. 161, 67 W.A.C. 1, 46 A.C.W.S. (3d) 797; Swinamer v. Nova Scotia (Attorney General), [1994] 1 S.C.R. 445, 112 D.L.R. (4th) 18, 129 N.S.R. (2d) 321, 20 Admin. L.R. (2d) 39, 19 C.C.L.T. (2d) 233, 2 M.V.R. (3d) 80, 163 N.R. 291, 46 A.C.W.S. (3d) 798; Nelson (City) v. Marchi, 2021 SCC 41, 463 D.L.R. (4th) 1 (S.C.C.).

cases of negligence, but rather extended to liability in *tort.*[2] On this basis, one might think that the "policy defence" applies to actions in nuisance.

Further, the rationale for the policy defence would appear at first glance to apply equally no matter what the tort. The rationale, as explained in *Just*,[3] is that governments require the freedom to make decisions based upon social, political and economic factors free of concern that their decisions will attract liability, and courts must respect the division between the judicial and executive branches of the state.

Nevertheless, there are at least three cases in which courts have refused to recognize the policy defence in nuisance actions.[4] None of the three cases cited any authority for this approach. A British Columbia case, decided before *Just*, came to the opposite conclusion, but again cited no authority on the point.[5]

The case in which this topic was given the most attention was *Mynott v. British Columbia*

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See Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527, at para. 18, and Swinamer v. Nova Scotia (Attorney General), [1994] 1 S.C.R. 445, 112 D.L.R. (4th) 18, 129 N.S.R. (2d) 321, 20 Admin. L.R. (2d) 39, 19 C.C.L.T. (2d) 233, 2 M.V.R. (3d) 80, 163 N.R. 291, 46 A.C.W.S. (3d) 798, at para. 38. See also Nelson (City) v. Marchi, 2021 SCC 41, 463 D.L.R. (4th) 1 (S.C.C.), at paras. 39 and 46.

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See Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527, at paras. 16-18.

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Oosthoek v. Thunder Bay (City) (1995), 17 C.L.R. (2d) 217, 24 M.P.L.R. (2d) 25, [1994] O.J. No. 2619 (Ont. Ct. (Gen. Div.)), affd 139 D.L.R. (4th) 611, 30 O.R. (3d) 323, 93 O.A.C. 131, 21 C.E.L.R. (N.S.) 77, 29 C.L.R. (2d) 157, 34 M.P.L.R. (2d) 81, 65 A.C.W.S. (3d) 1023 (C.A.), leave to appeal to S.C.C. refused 146 D.L.R. (4th) vii, 104 O.A.C. 240*n*, 223 N.R. 224*n*, at para. 93; and Clemmens v. Kenora (Town) (1999), 6 M.P.L.R. (3d) 59, 92 A.C.W.S. (3d) 150, [1999] O.J. No. 3915 (Ont. S.C.J.).

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Torino Motors (1975) Ltd. v. Kamloops (City) (1987), 37 D.L.R. (4th) 392, 40 C.C.L.T. 80, 4 A.C.W.S. (3d) 406 (B.C. Co. Ct.), affd 63 D.L.R. (4th) 168, [1988] 6 W.W.R. 762, 28 B.C.L.R. (2d) 1, 44 C.C.L.T. 278, 10 A.C.W.S. (3d) 201, [1988] B.C.J. No. 797 (B.C. C.A.). The decision of the chambers judge was affirmed on appeal, but the Court of Appeal did not address the applicability of the policy defence as distinct from the defence of statutory authority. See also Lanty v. Ontario (Minister of Natural Resources) (2006), 38 R.P.R. (4th) 275, 89 L.C.R. 161 at para. 167, [2006] O.J. No. 239, 145 A.C.W.S. (3d) 330 (S.C.J.), affd 61 R.P.R. (4th) 161, 93 L.C.R. 193 (Ont. C.A.).

(Minister of Transportation),[6] in which the Crown attempted to argue that its response to learning of nuisance-causing youths congregating on an area of Crown land was in the nature of 'policy' and could not be attacked in tort. Particularly, the Crown argued that its policy was to allow public access to its rights of way and that it was under no legal obligation to spend money abating the problems that resulted, including by way of spending money on law enforcement. The court rejected this approach, preferring to treat the Crown like any other landowner, and noting that the nuisance in question did not result from the exercise of any statutory authority but rather from the simple ownership of land. The dearth of cases addressing the policy defence in the context of nuisance is undoubtedly a consequence of the defence of statutory authority which many must assume has "filled the field" in this area.

There are strong arguments in favour of excluding the policy defence in cases in which the Crown's use of its land results in the invasion of private property interests; but in cases of public nuisance where "special damage" is claimed, and in cases of natural hazards upon land, it is suggested that the defence should apply in nuisance as it does in negligence.

The common law has traditionally held private property rights in a place of preeminence and held that interests in property are not to be subjugated for the common good absent due compensation. In an oft-quoted passage from a case involving pulp mill emissions in which the defendant sought to avoid an injunction on the basis that the prosperity of the town was at stake, Idington J. stated: "[t]he invasion of rights incidental to the ownership of property, or the confiscation thereof, may suit the grasping tendencies of some and incidentally the needs or desires of the majority in any community benefiting thereby; yet such a basis or principle of action should be stoutly resisted by our courts, in answer to any such like demands or assertions of social right unless and until due compensation [is] made by process of law."[7]

Six years after Idington J.'s speech, the Supreme Court of Canada revisited the issue of public interests versus private rights in *Groat v. Edmonton (City)*,[8] a case in which the defendant city was polluting the waters flowing through a ravine by directing its storm sewers into it. In that case, Rinfret J. for the majority observed that "collective rights" must not be exercised to the prejudice of individual ratepayers except upon the basis of due compensation, and that "unless Parliament otherwise decrees, public works must be so executed as not to interfere with private rights of individuals."[9]

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Mynott v. British Columbia (Minister of Transportation), (2011), 199 A.C.W.S. (3d) 327, 2011 BCSC 258, [2011] B.C.J. No. 336.

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Canada Paper Co. v. Brown (1922), 63 S.C.R. 243, at p. 248, 66 D.L.R. 287. Note that, while this view was not shared by all members of the panel, Mr. Justice Sharpe states that Idington J.'s view is the prevailing one in Canada: see *Injunctions and Specific Performance* (Aurora: Canada Law Book Inc., 2005) (looseleaf ed.), at para. 4.180.

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Groat v. Edmonton (City), [1928] S.C.R. 522, [1928] 3 D.L.R. 725.

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Groat v. Edmonton (City), [1928] S.C.R. 522, [1928] 3 D.L.R. 725, at pp. 8-9, citing Attorney

The principle that citizens should not be deprived of property absent due compensation except as expressly provided by statute has been recognized in Canada since the earliest times.[10] It has been more recently observed that this is a "long tradition in our legal system" said to be traceable to Magna Carta.[11]

The defence of statutory authority clearly has its origins in these notions.[12] Just as clearly, the executive branch of government is not exempted from the application of these principles. In this light, it is difficult to conceive that government could deprive a person of their use or enjoyment of private property through the construction of public works or other land uses that constitute a nuisance without due compensation, even where the land use in question reflects a government policy decision.

Nor is the rationale for such an immunity as strong in nuisance law as it is in the case of negligence. In the negligence context, the policy "defence" does not really act as a "defence" at all, but rather as a threshold limitation on the extent of Crown's duties to take care for others. As a "neighbour" in negligence law, the Crown is massively exposed to potential liability for the consequences of its policies absent this limitation because spending decisions and other policies can foreseeably have an immense impact on the incidence of accidents and injuries within the given jurisdiction and on the economic fortunes of others. Yet as a "neighbour" in nuisance law, the Crown does not suffer from a potential exposure of similar scope and its ability to govern is not jeopardized by holding it to the same "duty" as binds every landowner, that is to use its land reasonably so as not to unreasonably interfere with the use and enjoyment of the land of its neighbours.

However, nuisance cases involving "special damage" occasioned during the pursuit of a public right (for example, passage on a highway) do not involve rights of private property. The cases involving such injuries are largely indistinguishable from cases of negligence. Indeed, as is argued elsewhere in this chapter, *Just v. British Columbia*[13] could conceivably have been argued as a public nuisance case. However, a plea of nuisance would not have justified a more direct route to liability; the "policy defence" would and should have remained as an obstacle for the plaintiff to overcome.

General v. Birmingham (1858), 4 K. & J. 528.

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Canada v. Robertson (1882), 6 S.C.R. 52.

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Longmire v. Canada (1993), 69 F.T.R. 1, 43 A.C.W.S. (3d) 307, [1993] F.C.J. No. 977 (T.D.), at para. 23.

12

B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 94.

13

Just v. British Columbia, [1989] 2 S.C.R. 1228, 64 D.L.R. (4th) 689, [1990] 1 W.W.R. 385, 41 B.C.L.R. (2d) 350, 41 Admin. L.R. 161, 1 C.C.L.T. (2d) 1, [1989] I.L.R. &p;93-042, 18 M.V.R. (2d) 1, 103 N.R. 1, 18 A.C.W.S. (3d) 527.

Likewise, in cases involving natural hazards upon land, the policy defence should apply. In such cases, the Crown is not making a *use* of its land which deprives others of their interest in property. Rather, such cases involve the response of the Crown to a hazard not of its making where the goal of any responsive action is the *protection* of citizens and property from harm. Such cases are virtually indistinguishable from cases of negligence in the Crown context, again such as *Just*, and the rationale for the policy defence exists with equal force.[14]

7:25. Contributory Negligence

Notwithstanding academic commentary to the contrary,[1] it is suggested that contributory negligence is a proper defence to a claim of nuisance. However, a distinction must be drawn between cases in which the defendant seeks to fault the plaintiff for "coming to the nuisance" versus cases in which the fault alleged is some act which facilitated the event which caused the harm or which exacerbated the damage. In the former cases, contributory negligence is no defence. This has long been the law[2] and, were it otherwise, the character of neighbourhoods could be quickly eroded as perpetrators of nuisances would have a free hand to conduct themselves in an antisocial manner so long as their neighbours were newcomers. In the latter class of cases, however, contributory negligence is, and should be, a defence.

Fleming argues that, in cases of competing uses of land, contributory negligence has little role, while in cases of personal injury caused by a public nuisance the defence is readily available, the law not wishing to afford a plaintiff an advantage in this respect by pleading nuisance instead of negligence.[3] As to the latter proposition, there is ample support in the Canadian caselaw.[4]

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An example would be policy decisions concerning the purchase or allocation of forest firefighting resources, which decisions clearly impact upon the risk of harm to the Crown's neighbours.

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See discussion in B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 113, citing McLaren, "Nuisance in Canada" in A.M. Linden (ed.), *Studies in Canadian Tort Law* (Toronto: Butterworths, 1968), at p. 372.

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For example, Sturges v. Bridgman (1879), 11 Ch. D. 852 (C.A.), and Fanshawe v. London and Provincial Dairy Co. (1888), 4 T.L.R. 694 (Ch. D.), and more recently Ward v. Magna International Inc. (1994), 21 C.C.L.T. (2d) 178, 28 C.P.C. (3d) 327, 49 A.C.W.S. (3d) 414 (Ont. Ct. (Gen. Div.)), at p. 346.

3

Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 492.

4

Belliveau v. Keddy (1962), 33 D.L.R. (2d) 750 (N.S.S.C.); Olausen v. Gravelbourg Credit Union Ltd. (1996), 151 Sask. R. 177, 68 A.C.W.S. (3d) 775, [1996] S.J. No. 845 (Q.B.); Albion v. Cochrane (1969), 4 D.L.R. (3d) 667, [1969] 2 O.R. 184 (Co. Ct.); Baty v. Parkdale Farms Ltd. (1986), 38 Man. R. (2d) 242, 87 C.C.L.T. 9, 37 A.C.W.S. (2d) 349, [1986] M.J. No. 86 (Q.B.).

The former proposition, however, can be challenged. Contributory negligence has been described as the "omission on the part of the plaintiff to use the ordinary care for the protection of himself or his property that is used by the ordinary reasonable man in those circumstances".[5] One can think of many instances in "property" cases in which a plaintiff might fail to take reasonable measures to protect his or her property against a known risk and it is suggested such are proper cases for the application of the defence of contributory negligence.

Indeed, there a number of Canadian cases which support this position. One example is *Schultz v. Rycks*,[6] in which the plaintiff was aware of fire on his neighbour's land but failed to advise his neighbour, failed to take any measures to protect his own land, and then put himself further at risk of loss by coiling his hay and leaving it in an adjacent field only to have it destroyed.[7]

In another case, one property owner was found liable in nuisance for allowing water to flow from its system of eaves and downspouts onto the land of a neighbour. Prior to the event, however, the parties had been advised by a representative of the municipality that it would be sensible to build a swale along the edge of the properties to redirect water to the municipal storm sewer. The plaintiff, whose basements were flooded, was found contributorily negligent for failing to agree to the construction of the swale at the joint expense of the parties.[8]

In a British Columbia case,[9] a municipality gave public notice that it intended to increase

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Note also that the availability of contributory negligence in this context was assumed in Ryan v. Victoria (City) (1996), 22 M.V.R. (3d) 1, 36 M.P.L.R. (2d) 35, 133 W.A.C. 40, 66 A.C.W.S. (3d) 173, [1996] B.C.J. No. 2083 (B.C. C.A.), revd [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191 W.A.C. 103, 85 A.C.W.S. (3d) 208, and though the Supreme Court of Canada held that the Court of Appeal should not have interfered with the decision of the trial judge on this point, the availability of the defence was not questioned: at para. 57 (S.C.C.).

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Ryan v. Victoria (City) (1996), 22 M.V.R. (3d) 1, 36 M.P.L.R. (2d) 35, 133 W.A.C. 40, 66 A.C.W.S. (3d) 173, [1996] B.C.J. No. 2083 (B.C. C.A.), revd [1999] 1 S.C.R. 201, 168 D.L.R. (4th) 513, [1999] 6 W.W.R. 61, 59 B.C.L.R. (3d) 81, 4 C.C.L.T. (2d) 1, 40 M.V.R. (3d) 1, 50 M.P.L.R. (2d) 1, 234 N.R. 201, 191 W.A.C. 103, 85 A.C.W.S. (3d) 208 (C.A.), citing Caswell v. Powell Duffryn Associated Collieries, Ltd., [1940] A.C. 152 (H.L.), at p. 164.

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Schultz v. Rycks (1964), 48 W.W.R. 150 (Alta. Dist. Ct.).

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The court cited New Brunswick Railway Co. v. Robinson (1884), 11 S.C.R. 688, in support of the proposition that exposing one's hay to fire by way of locomotive spark is an act of contributory negligence.

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Jaremko v. Moro, [2003] O.J. No. 2028, 127 A.C.W.S. (3d) 580 (S.C.J. (Sm. Cl. Ct.)).

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the water pressure throughout its water distribution system and advised property owners to install pressure reducing valves. The plaintiffs received notice of this change but left their home for an extended period without taking any remedial steps. In their absence, the pressure valve on their hot water tank blew off causing flooding of their basement. The court found the plaintiffs contributorily negligent for failing to install a pressure-reducing valve, failing to meet the local Plumbing Code by not having a drain in their basement floor, and failing to shut off the main water valve to their house before going on holiday.

Finally, in another British Columbia decision, the plaintiff hotel owner complained of noise caused by traffic driving over a steel grating which formed part of the road surface of a draw bridge. The noise allegedly kept guests awake at night and was said to be impairing the income stream of the hotel. The court held that the noise was "there to be heard" at the time the plaintiff bought the hotel and that the plaintiff had failed to undertake due diligence prior to purchase.[10]

A contrary approach was taken in a recent Saskatchewan case in which it was held that contributory negligence has no application to the law of nuisance.[11] A more recent Nova Scotia decision went the other way.[12]

7:26. Other Defences

Acquiescence or consent is a defence to nuisance. Thus, in a case in which the plaintiff knew and approved of certain proposed ditch works, including their location, the plaintiff was held to be without remedy for flooding which later ensued.[1] Linden argues that acquiescence must be overt to ground the defence; merely standing idly by is not enough.[2]

Tareta v. Invermere (Village), [1981] B.C.J. No. 1565 (Co. Ct.).

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Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.), at paras. 243-244.

11

Nasby v. Spruce Lake (Village) (2009), 336 Sask. R. 175, 46 C.E.L.R. (3d) 48, 61 M.P.L.R. (4th) 65, 178 A.C.W.S. (3d) 1063, 2009 SKQB 288, [2009] S.J. No. 392 (Q.B.), at para. 60.

12

Little v. Jost Mission Day Care Society, 2014 CarswellNS 172, 2014 NSSC 86, [2014] N.S.J. No. 114 (N.S. S.C.), at paras. 62-66.

1

McCallum v. Kent (Corp. of District of), [1943] 3 W.W.R. 489 (B.C. C.A.). See also Pattison v. Ontario (Prince Edward Conservation Authority) (1984), 23 D.L.R. (4th) 201, 53 O.R. (2d) 23, 30 C.C.L.T. 305, 26 A.C.W.S. (2d) 208 (H.C.J.), affd 27 O.A.C. 174, 45 C.C.L.T. 162, 3 C.E.L.R. (N.S.) 212, 10 A.C.W.S. (3d) 149 (C.A.); and Sum Kum Wo v. New Westminster (City) (1910), 15 W.W.R. 512 (B.C. Co. Ct.).

2

A.M. Linden, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997), at p. 549.

Act of God or *force majeure* is a defence. This defence has been held to excuse a municipality from liability to a flooded neighbour when its drainage infrastructure was unable to accommodate an extreme rain event.[3] There is some authority for the proposition that one's immunity from suit depends on one's ability to avert the effects of the *force majeur*,[4] though it would seem that, if the event was not foreseeable, as is typically the case with Acts of God, one's ability to avert it would be entirely irrelevant.

Prescription may be a defence in some jurisdictions. If conduct resulting in an actionable nuisance has been carried on continuously for 20 years,[5] a right by prescription may arise at common law.[6] The defence has been a contentious one and has been judicially constrained in a variety of ways.[7] Prescriptive rights have been abolished or constrained by statute in many jurisdictions including in many Canadian provinces.[8] No privilege to commit a public nuisance may be acquired by prescription.

As with any civil action, the defendant may plead a limitations defence in a nuisance action. Some plaintiffs have attempted to avoid the passage of limitation periods by arguing that the nuisance is 'continuing' leading to fresh harms which continually extend the limitation period. In ML Plaza Holdings Ltd. v. Imperial Oil Limited, 2006 BCCA 564, leave to appeal to SCC refused, soil contamination was caused by underground gasoline storage tanks. The tanks were removed in 1992, but the claim was not commenced until 1999 following the passage of the limitation period. The plaintiff alleged that the nuisance was continuing because, despite the prior removal of the tanks, the area of underground contamination was expanding as a result of subsurface movement of the contaminants. The court accepted that a continuing nuisance extends a limitation period, but not on these facts. In this case, the nuisance-causing activity

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Tomchak v. Ste. Anne (Rural Municipality) (1962), 33 D.L.R. (2d) 481, 39 W.W.R. 186 (Man. C.A.). See also Romanica v. Greater Winnipeg Water District (1921), 60 D.L.R. 58, [1921] 2 W.W.R. 399 (Man. C.A.).

4

Marchyshyn v. Fane Auto Works, Ltd., [1932] 1 W.W.R. 689 (Alta. S.C.), citing Nugent v. Smith (1876), 1 C.P.D. 423.

5

Bilson suggests other duration requirements. See B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 110.

6

Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 490.

7

B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 110, at p. 111.

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For a discussion of their effect, see B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 110~~, at pp. 111~~-12.

ceased with the removal of the tanks and was not continuing thereafter. It was not a sufficient answer to the limitation defence to say that the consequences were continuing.[3]

VIII. Remedies

7:27. Introduction

The law of remedies is discussed at length elsewhere in this book and is addressed in the context of nuisance law in at least several Canadian texts.[1] Accordingly, the treatment of the subject is very brief here.

7:28. No Injunctive Relief Against the Crown

The most typical relief in nuisance actions is injunctive relief.[1] Mr. Justice Sharpe has described the injunction as the "ordinary remedy" in nuisance.[2] This is because the injury in cases of nuisance is typically to an interest in property, the exception being public nuisance "accident" cases. When property rights are invaded, damages will rarely be a sufficient remedy. Were it otherwise, parties with deep pockets or significant economic incentives could choose to pay to "re-zone" neighbourhoods. The commission of the tort would be "legalized" for any defendant willing to pay the damages.[3]

If the nuisance is not continuing, however, there will be no need for injunctive relief unless there is an ongoing threat or likelihood of a repeat incident. Accordingly, most cases of physical injury to land resulting from isolated accidents can be adequately remedied with an award of damages, whereas a "state of affairs" case demands injunctive relief.

In Canada, the various provincial and federal Crown Proceedings statutes prohibit

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[3] ML Plaza Holdings Ltd. v. Imperial Oil Limited, 2006 BCCA 564, leave to appeal to SCC refused, at para. 13. See also Thomas v. Rio Tinto Alcan Inc., 2024 BCCA 62 at paras. 144 to 149.

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991); Hon. R.J. Sharpe, *Injunctions and Specific Performance* (Aurora: Canada Law Book Inc., 2005) (looseleaf), at para. 4.60; and A.M. Linden, *Canadian Tort Law*, 6th ed. (Toronto: Butterworths, 1997).

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Krieser v. Garber, 2020 ONCA 699, 70 C.C.L.T. (4th) 40 (Ont. C.A.), at para. 73.

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Hon. R.J. Sharpe, *Injunctions and Specific Performance* (Aurora: Canada Law Book Inc., 2005) (looseleaf), at para. 4.60.
See also *Hill v. Herd,* 2025 BCCA 173 at paras. 33 to 56 for a comprehensive discussion of how the discretion to award damages in lieu of an injunction is generally to be exercised.

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Hon. R.J. Sharpe, *Injunctions and Specific Performance* (Aurora: Canada Law Book Inc., 2005) (looseleaf), at para. 4.190, citing a long list of cases in which this concern has been voiced.

injunctive relief against the Crown,[4] and for the most part against servants of the Crown.[5] These statutes typically provide, however, that declaratory orders may be made against the Crown.

On account of the statutory prohibitions against injunctive relief, plaintiff's counsel must caution clients considering suing the Crown that the law does not give full protection to their property rights if the interference therewith is the result of the government's works and undertakings.[6] In a recent British Columbia case, the court used a novel remedy to get around its inability to order injunctive relief against the Crown, by adjourning the award of damages until after the Crown had the 'opportunity' to abate the nuisance. The court suggested that the nature of the damage award would depend on the extent of the abatement.[7]

7:29. Damages

The law of damages in nuisance is no different in the Crown context than in cases between individual property owners. Typically, in cases of nuisance, the damage occasioned is an injury to real property or to the use and enjoyment thereof. However, damages can also be awarded for damage to chattels and, in some cases, personal injuries.[1]

Outside the Crown context, the circumstances in which damages have been viewed as appropriate instead of an injunction in a nuisance case were set out in the classic case *Shelfer v. City of London Electric Lighting Co.*,[2] in which it was stated, *per* Smith L.J.:

> In my opinion, it may be stated as a good working ruled that --

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For example, *Crown Liability and Proceedings Act*, R.S.C. 1985, c. C-50, s. 22; *Proceedings Against the Crown Act*, R.S.O. 1990, c. P.27, s. 14; *Crown Proceeding Act*, R.S.B.C. 1996, c. 89, s. 11; *Proceedings Against the Crown Act*, R.S.A. 2000, c. P-25, s. 17; *Proceedings against the Crown Act*, R.S.N.S. 1989, c. 360, s. 16.

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The Federal Act provides that the court may not grant relief against a servant that it is not competent to make against the Crown. Most provincial acts provide that injunctions are not to be ordered against Crown servants where the "effect" of the injunction would be to grant the injunction against the Crown.

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For a recent example, see Osler Developments Ltd. v. British Columbia, ~~[2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453,~~ 2001 BCSC 129 (S.C.)~~,~~ at para. 275, though in that case no nuisance was found.

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See Mynott v. British Columbia (Minister of Transportation), ~~(2011), 199 A.C.W.S. (3d) 327,~~ 2011 BCSC 258~~, [2011] B.C.J. No. 336~~.

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See Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 494.

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Shelfer v. City of London Electric Lighting Co., [1895] 1 Ch. 287 (C.A.).

(1.) If the injury to the plaintiff's legal rights is small,
(2.) And is one which is capable of being estimated in money,
(3.) And is one which can be adequately compensated by a small money payment,
(4.) And the case is one in which it would be oppressive to the defendant to grant an injunction: --
then damages in substitution for an injunction may be given.

Bilson[3] describes how *Shelfer* has received a mixed reception in Canada, some courts keen to follow it and others expressing reservations. In any event, it seems clear that the court is free to consider all the circumstances of the case in determining whether damages would be an appropriate substitute for an injunction.[4]

Damages may be awarded both in cases of physical injury to property[5] and in cases in which the plaintiff's "use and enjoyment" of property is impaired by an intangible ill such as noise or odours.[6] In respect of the latter class of cases, Fleming suggests that damages should "not exceed the customary scale for loss of amenities in personal injury".[7] However, it is not

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 148-9.

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See cases cited by B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 149.

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For example, see Royal Anne Hotel Co. v. Ashcroft (Village) (1979), 95 D.L.R. (3d) 756, [1979] 2 W.W.R. 462, 8 C.C.L.T. 179, 9 M.P.L.R. 176 (B.C. C.A.), and Schenck v. Ontario (1981), 131 D.L.R. (3d) 310, 34 O.R. (2d) 595, 20 C.C.L.T. 128 (H.C.J.), supp. reasons 142 D.L.R. (3d) 261, 40 O.R. (2d) 410, 23 C.C.L.T. 147 (H.C.J.), affd 15 D.L.R. (4th) 320*n*, 49 O.R. (2d) 556*n* (C.A.), affd [1987] 2 S.C.R. 289, 50 D.L.R. (4th) 384, 23 O.A.C. 82*n*, 79 N.R. 317.

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For example, see Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.), supp. reasons 212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.), revd on other grounds 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279 W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*; Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.); 340909 Ontario Ltd. v. Huron Steel Products (Windsor) Ltd. (1990), 73 O.R. (2d) 641, 21 A.C.W.S. (3d) 1242, [1990] O.J. No. 997 (H.C.J.), affd 9 O.R. (3d) 305*n*, 35 A.C.W.S. (3d) 309 (C.A.); Kerr v. Revelstoke Building Materials Ltd. (1976), 71 D.L.R. (3d) 134 (Alta. S.C.).

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 493, fn 318, citing Bone v. Seale, [1975] 1 W.L.R. 797 (C.A.); and Oldham v. Lawson (No. 1), [1976] V.R. 654, at pp. 658-9.

clear that such a limitation is sound. The loss of amenity suffered in consequence of an invasion of property may bear little resemblance to the loss of amenity suffered in consequence of an injury. The loss of use of one's home, as for example if it is invaded by toxic emissions, is not a loss often associated with personal injury. While in such cases outside the Crown context an injunction will be the primary relief, damages can and should be awarded for the period of injury prior to the issuance of the injunction.[8] And just as the law of defamation has followed its own path in the law of damages,[9] there is no reason why the law of nuisance should not do the same.[10]

Courts have further recognized that liability for nuisance that results in injury to land may warrant additional monetary damages for remediation of the property or an order that the defendant remediate as an alternative to monetary damages. Typically, there must be some evidence regarding the cost of remediation before the court grants additional damages on this basis.[10.10]

In her text, Bilson[11] describes how the alleged harm must be “real” and objectively

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This is the norm. See for example, 340909 Ontario Ltd. v. Huron Steel Products (Windsor) Ltd. (1990), 73 O.R. (2d) 641, 21 A.C.W.S. (3d) 1242, [1990] O.J. No. 997 (H.C.J.), affd 9 O.R. (3d) 305*n*, 35 A.C.W.S. (3d) 309 (C.A.), and Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.). For a more recent example, see Gokey v. Usher, 2024 BCCA 344 (B.C. C.A.), in which the court upheld the trial judge's order granting a permanent injunction, general damages, aggravated damages, and punitive damages in relation to a neighbour's nuisance, which included producing excessive smoke through burning.

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Hill v. Church of Scientology of Toronto, [1995] 2 S.C.R. 1130, 126 D.L.R. (4th) 129, 84 O.A.C. 1, 25 C.C.L.T. (2d) 89, 30 C.R.R. (2d) 189, 184 N.R. 1, 24 O.R. (3d) 865*n*, 56 A.C.W.S. (3d) 495, at paras. 167-170.

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In Hill v. Church of Scientology of Toronto, [1995] 2 S.C.R. 1130, 126 D.L.R. (4th) 129, 84 O.A.C. 1, 25 C.C.L.T. (2d) 89, 30 C.R.R. (2d) 189, 184 N.R. 1, 24 O.R. (3d) 865*n*, 56 A.C.W.S. (3d) 495, Cory J. observed that, if it were known in advance what amount the defamer would have to pay in damages (as in the personal injury context), a defendant might look upon that sum as the maximum cost of a licence to defame (see para. 170). There is a similar concern in the context of nuisance as some defendants might look upon that sum as the maximum cost of a licence to alter the character of a neighbourhood or, for example, a licence to pollute. The analogy is inexact, however, in the sense that injunctive relief is the primary protection to victims of nuisance but is more exceptional in cases of defamation owing to the competing interest in freedom of expression.

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Warren v. Gluppe, 2023 ONSC 6301 (Ont. S.C.J.) at paras. 118-119.

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 123.

detectable, and that evidence of the plaintiff's subjective views of the interference may not be enough to ground a claim for damages. She cites *Shuttleworth v. Vancouver General Hospital*[12] for the proposition that "anxiety" and a subjective "sentiment of danger and dislike" is an insufficient basis to award damages.

Further, the damage must not be too remote. Accordingly, damages were not available to a plaintiff who claimed that the pollution of his well caused him to suffer a heart attack.[13] Similarly, there must be evidence of causation before a court will entertain such a claim. For example, the plaintiffs in a noise case who complained of high blood pressure and angina were denied compensation for these injuries in the absence of expert medical evidence.[14]

The requirement of foreseeability, discussed above, places the same limitation on recovery, though, as indicated, the issue of foreseeability of loss would not likely arise in cases involving competing uses of land where some "state of affairs" is interfering with the plaintiff's use and enjoyment of its property.

Where the court finds that an injunction is not an appropriate remedy in the case of a continuing nuisance, a difficulty arises as to how to compensate the plaintiff in damages for future losses. Some authorities stand for the proposition that only past loss can be compensated and future actions must be brought to recover for future losses,[15] though this approach has been criticized.[16] It would appear that the better position is that the court has an equitable jurisdiction to award damages for future loss in lieu of an injunction.[17]

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Shuttleworth v. Vancouver General Hospital [1927] 2 D.L.R. 573, [1927] 1 W.W.R. 476 (B.C. S.C.).

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Connery v. Manitoba (1971), 21 D.L.R. (3d) 234, [1971] 4 W.W.R. 156 (Man. C.A.).

14

Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.).

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See discussion in B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 129, citing Woolner v. Dyck, [1950] 4 D.L.R. 745 (Ont. C.A.).

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See discussion in B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at pp. 129-30.

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See Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.), at paras. 312-313, supp. reasons 212 D.L.R. (4th) 378, 113 A.C.W.S. (3d) 334 (B.C. S.C.), revd on other grounds 215 D.L.R. (4th) 1, [2002] 10 W.W.R. 1, 4 B.C.L.R. (4th) 205, 12 C.C.L.T. (3d) 106, 46 C.E.L.R. (N.S.) 163, 279

Loss of value of real property can be one measure of damages in nuisance.[18] Difficulties can arise, however, where the value of the property in question is measured by regard to the stream of income it produces. First, if damages are to be awarded for loss of the value of a business, which value is a measure of the income stream, there would seem no basis to consider future loss as this will be duplicative.[19] Second, where a plaintiff "comes to the nuisance" and purchases a business property which he later alleges suffers an income loss due to the nuisance, damages for the income loss may be irrecoverable, not because nuisance is pre-existing *per se*, but because the income stream of the business at the time of purchase would have reflected the nuisance. To the extent that the value of the business is simply a reflection of the income stream, the purchaser will have obtained the business at a price which already takes the nuisance into account.[20]

Where the business in question was owned and operated by the plaintiff prior to the advent of the nuisance, business losses subsequently occasioned as a result of the nuisance are recoverable.[21]

7:30. Abatement

Abatement is not technically a remedy, but a privilege. It is a privilege to protect one's property by self-help through physical measures taken upon the land of one's neighbour and is

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W.A.C. 233, 114 A.C.W.S. (3d) 982, [2002] B.C.J. No. 1479, 2002 BCCA 416 (B.C. C.A.), leave to appeal to S.C.C. refused [2003] 1 S.C.R. xi, 224 D.L.R. (4th) vii, 319 N.R. 199*n*, 323 W.A.C. 159*n*, citing Rombough v. Crestbook Timber Ltd. (1966), 57 D.L.R. (2d) 49, 55 W.W.R. 577 (B.C. C.A.).

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Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.). ~~And see~~ See also 340909 Ontario Ltd. v. Huron Steel Products (Windsor) Ltd. (1990), 73 O.R. (2d) 641, 21 A.C.W.S. (3d) 1242, [1990] O.J. No. 997 (H.C.J.), affd 9 O.R. (3d) 305*n*, 35 A.C.W.S. (3d) 309 (C.A.).

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Sutherland v. Canada (Attorney General) (2001), 202 D.L.R. (4th) 310, [2001] 10 W.W.R. 328, 93 B.C.L.R. (3d) 82, 39 C.E.L.R. (N.S.) 236, 43 R.P.R. (3d) 159, 106 A.C.W.S. (3d) 769, [2001] B.C.J. No. 1450, 2001 BCSC 1024 (B.C. S.C.).

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See Osler Developments Ltd. v. British Columbia, [2001] B.C.J. No. 111, 102 A.C.W.S. (3d) 453, 2001 BCSC 129 (S.C.), at para. 252, citing several American authorities on this point.

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Banfai v. Formula Fun Centre Inc. (1984), 19 D.L.R. (4th) 683, 51 O.R. (2d) 361, 34 C.C.L.T. 171, 31 A.C.W.S. (2d) 72 (H.C.J.); Susan Heyes Inc. v. Vancouver (City) (2009), 43 C.E.L.R. (3d) 94, 58 M.P.L.R. (4th) 191, 178 A.C.W.S. (3d) 888, 2009 BCSC 651 (B.C. S.C.) at para. 136, revd but not on this point 329 D.L.R. (4th) 92, 102 L.C.R. 81, 2011 BCCA 77 (B.C. C.A), leave to appeal to S.C.C. refused 336 D.L.R. (4th) iv, [2011] S.C.C.A. No. 175 (S.C.C.).

exercised extra-judicially. Fleming notes, however, that abatement has "fallen out of favour with the progressive assertion of legal control through the judicial process, and is today much more closely harnessed than of yore".[1] In the same vein, Bilson observes that abatement has "nearly disappeared" as a remedy in nuisance with the possible exception of cases involving the trimming of tree branches overhanging the abater's property.[2]

Notwithstanding such pronouncements, it is suggested that abatement remains an important remedy to public authorities including the Crown. One can imagine all manner of circumstances in which governments may wish to take action to abate hazardous conditions which threaten Crown land or public interests. A fire spreading from private land; a spill of toxic waste, and a dead tree overhanging a highway all seem like good candidates for swift abatement. And of course the Crown, unlike most of Her citizens, has the means to engage in most any kind of abatement action which the circumstances may warrant.

Municipalities frequently use abatement measures in the public interest and, while these are mostly taken pursuant to bylaws, themselves enacted pursuant to provincial statues which expressly provide abatement powers to municipalities,[3] there is no reason why, absent legislative authority, a municipality as an owner of streets, parks and other public spaces could not exercise its common law right of abatement to remedy a nuisance.

At least one case has recognized the benefits of abatement in the Crown context. In *Canada v. "Sun Diamond" (The)*,[4] the federal Crown brought an action to recover the cost of cleaning up a marine fuel oil spill. The defendants, relying on old English cases, contended unsuccessfully that, having elected the remedy of abatement, no other remedy (*i.e.* damages) was available to the Crown. This was not a typical case of abatement in the sense that the Crown had not entered upon the defendants' land to abate the nuisance. Nevertheless, the court aptly recognized the special position of the Crown with respect to abatement in the public interest:

> Here we are dealing with the Crown which, through agents, took steps to abate the nuisance, and under contemporary conditions of increasing danger of serious ecological damage from oil spills, it is indisputable that this should be done immediately and is not an alternative remedy to claiming compensation for the damages caused by the spill.
>
> To decide otherwise would constitute an unjust enrichment for defendants who were admittedly incapable of cleaning up the spill themselves, but whose vessel created the nuisance, whether the action can be based on negligence for which they are responsible or not.

Any party engaging in acts of abatement upon the land of another must do no more than

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 496.

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B. Bilson, *The Canadian Law of Nuisance* (Toronto: Butterworths, 1991), at p. 150.

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See for example Nanaimo (City) v. Rascal Trucking Ltd., [2000] 1 S.C.R. 342, 183 D.L.R. (4th) 1, [2000] 6 W.W.R. 403, 76 B.C.L.R. (3d) 201, 20 Admin. L.R. (3d) 1, 9 M.P.L.R. (3d) 1, 251 N.R. 42, 215 W.A.C. 298, 95 A.C.W.S. (3d) 372, 2000 SCC 13.

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Canada v. "Sun Diamond" (The), [1984] 1 F.C. 3, 25 C.C.L.T. 19, [1983] F.C.J. No. 309 (T.D.).

is necessary to remedy the nuisance.[5] Further, before destroying something which is causing a nuisance, notice must be given to the owner of the property unless the matter is urgent.[6] There is no reason to exempt the Crown from these rules.

IX. Practice and Pleadings Considerations

7:31. Generally

Although, as discussed, it is not always clear who may sue and be sued in private nuisance, the elements that must be pleaded are relatively clear and may be stated in general terms as follows:

- that the injury sued for is to land, or is an unreasonable interference with the use and enjoyment of land;
- that the plaintiff has a sufficient interest in the affected land, typically through occupation, to confer standing to sue for the injury or interference;
- that the origin of the injury or interference is some activity or state of affairs on neighbouring land (or at least land nearby); and
- that the defendant has sufficient responsibility for the activity or state of affairs on the neighbouring land, by creating it, continuing it, adopting it or approving it, that he may be sued.

Further, if the plaintiff has suffered special damage, personal injury, business interruption, loss of profit or has incurred expense in mitigation of the loss, these matters must be pleaded. Outside the Crown context, the plaintiff will also typically plead facts to support a plea of injunctive relief.

The most typical defence to a nuisance action will be a denial of the nuisance. However, counsel for the defendant must consider all available defences, including statutory authority, consent, Act of God, and contributory negligence. In cases of injury to land caused by accident, the defendant may also want to plead an absence of foreseeability, though this is not strictly a defence. If the nuisance was caused by the conduct of a third party and was neither adopted nor approved nor continued by the defendant, this will be a full answer to the claim and knowledge of the nuisance should be expressly denied. Counsel for both the plaintiff and defendant will want to carefully review any statutes which may be applicable to determine if there are any statutory limitations on actions in nuisance.

Defendants will want to scrutinize carefully any damage claim of the plaintiff and be ready to plead remoteness. Defendants will also want to ensure that particulars of alleged damages are provided, particularly if the claim extends beyond general damages for interference with the use and enjoyment of land.

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Fleming, *The Law of Torts*, 8th ed. (Sydney: The Law Book Co., 1992), at p. 496. And see Watson v. Charlton, 2016 BCSC 664, 27 C.C.L.T. (4th) 183, 64 R.P.R. (5th) 121, 2016 CarswellBC 1033, 265 A.C.W.S. (3d) 807 (B.C. S.C.), at paras. 232-238; and Bourgeois v. Losier (1975), 11 N.B.R. (2d) 541, [1975] N.B.J. No. 131 (C.A.), at para. 32.

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Watson v. Charlton, 2016 BCSC 664, 27 C.C.L.T. (4th) 183, 64 R.P.R. (5th) 121, 2016 CarswellBC 1033, 265 A.C.W.S. (3d) 807 (B.C. S.C.) at paras. 232-238.

If the harm suffered by one's client is an injury to land, the tort of nuisance will, in most cases, be a more powerful weapon than the tort of negligence. For example, in cases involving flooding from drainage systems or sewers, liability in nuisance is near strict, whereas establishing that the design, construction or maintenance of the sewer or drainage system fell below industry standard may prove very difficult. Nevertheless, plaintiffs will often want to plead negligence alongside nuisance.

If the harm suffered is an interference with the use and enjoyment of land, the tort of negligence will rarely be available because the annoyance in question will, in most cases, originate from some enterprise which is operating exactly as intended and not in violation of any industry standard. The utmost care may have been taken in the design, construction and operation of a factory, but it may still emit fumes which are so offensive and out of character with the neighbourhood as to constitute a nuisance.

As discussed elsewhere, if the contemplated defendant is the Crown, plaintiff's counsel must warn his or her client of the special position occupied by the Crown in cases of nuisance. First, injunctive relief in not attainable against the Crown. Second, the Crown is the most likely litigant to successfully invoke the defence of statutory authority. Third, in cases not involving physical injury to land, the "social utility" of the defendant's conduct is an important factor in deciding whether the impugned activity is a nuisance at all, and undertakings of the Crown will almost always be found to have great "social utility". Finally, counsel should consider that the applicability of the so-called "policy defence" to cases of nuisance has not yet been resolved.

7:32. Class Proceedings

Additional considerations arise when seeking to litigate nuisance claims through class proceedings. The BC Court of Appeal confirmed that:

> Class actions in nuisance will generally be certified only where there is a clear universal question. ... In contrast, where a universal issue cannot be shown, a claim in nuisance may not be suitable for a class action because it will turn on the assessment of damage to each individual class member.[1]

As the impacts of an alleged nuisance can vary significantly from claimant to claimant, whether there are common issues and whether a class proceeding is preferable are issues that often arise in certification hearings for proposed class actions in nuisance.

Where the proposed common issues centre on the defendant's conduct but individualized inquiries into the effect of such conduct on the proposed class members would nonetheless be required, the court has found that resolving the common issues would only negligibly advance the litigation, such that a class proceeding is not preferable.[2] In contrast, courts have certified

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Kirk v. Executive Flight Centre Fuel Services Ltd., 2019 BCCA 111 (B.C. C.A.) at paras. 78, 80, leave to appeal refused *Robert George Kirk, as Representative Plaintiff v. Executive Flight Centre Fuel Services Ltd., et al.*, 2019 CarswellBC 3036 (S.C.C.).

2

Baker v. Rendle, 2017 BCCA 72 (B.C. C.A.); MacQueen v. Sydney Steel Corp., 2013 NSCA 143 (N.S. C.A.), reconsideration / rehearing refused *Canada (Attorney General) v. MacQueen*, 2014 NSCA 73 (N.S. C.A.), additional reasons 2014 NSCA 96 (N.S. C.A.), leave to appeal refused *MacQueen v. Canada (Attorney General)*, 2015 CarswellNS 259 (S.C.C.), leave to appeal refused *Canada (Attorney General) v. MacQueen*, 2015 CarswellNS 17 (S.C.C.).

nuisance claims where the question of whether there was substantial interference could be determined on a common basis.

For example, the BC Court of Appeal in *Gautam v. Canada Line Rapid Transit Inc.*[3] upheld the certification of a class action in nuisance. The class members in *Gautam* owned and leased properties along Cambie Sstreet in Vancouver. The class asserted that the "cut and cover" method of construction for a SkyTrain line along the street severely restricted access to their properties. The court certified the claim, finding that the question of whether restricted access was so significant as to cause the ordinary person to find it intolerable could be determined as a common issue. The court observed that to consider the individual effects on each owner or lessor was not necessary to determine whether the construction caused substantial interference. The court also found that whether there was statutory authority for the interference could be determined as a common issue, along with issues relating to waiver of tort and injurious affection. Accordingly, the class proceeding could advance the litigation in a meaningful way and was therefore preferable.

The class proceeding in *LaSante v. Kirk* was also certified.[4] The claim arose from a spill of a truck supplying fuel to a helicopter company engaged by British Columbia to fight wildfires. The Province, the helicopter company, the driver and the employer/fuel provider were all sued in nuisance. The claim was founded, not on the direct effect of the spill, but the interference with property that resulted from the evacuation and water use orders issued by government bodies as a result of the spill.[5] It is important to note that, unlike the claim in *Latham* in which the Province's alleged liability was founded upon its regulatory action (addressed in greater detail in §7:7.5), the claim in *Kirk* alleged the Province's liability arose from its contribution to the spill that caused the orders to be issued, and therefore did involve a pleaded use of land by the defendant Province.[6]

The class members included a variety of owners of residential and commercial properties,

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Gautam v. Canada Line Rapid Transit Inc., 2011 BCCA 275 (B.C. C.A.).

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LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.). See also Kirk v. Executive Flight Centre Fuel Services Ltd., 2019 BCCA 111 (B.C. C.A.), leave to appeal refused *Robert George Kirk, as Representative Plaintiff v. Executive Flight Centre Fuel Services Ltd., et al.*, 2019 CarswellBC 3036 (S.C.C.).

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LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.) at para. 9.

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LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.) at para. 23. See also British Columbia (Minister of Public Safety) v. Latham, 2023 BCCA 104 (B.C. C.A.) at para. 88, leave to appeal refused *Joanna Moradian, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3762 (S.C.C.), leave to appeal refused *Carole Rosewall, et al. v. His Majesty the King in Right of the Province of British Columbia (Minister of Public Safety)*, 2023 CarswellBC 3793 (S.C.C.).

some of whom lived on the properties, some who leased or rented them out, and some of whom left their properties empty. Accordingly, the defendants argued that the class members' rights of use and enjoyment were not common and that ~~the impact of~~ the evacuation and water use orders could not have had a common impact on all the class members. The court disagreed, finding that it was open to certify common issues in nuisance "based on the mere fact of the evacuation and water advisory orders".[7] Despite the variations among the class members' respective uses of their properties, the court found that since the orders for evacuation and water use covered the entire class on penalty of imprisonment and fines, the ability of all class members' to use and enjoy their property was affected. This was a common experience amongst class members that could constitute an interference with their use or enjoyment of land. In upholding this as a common issue, the court recognized that the class may ultimately fail to establish "that the law of nuisance extends to an interference with the right to use the property, as opposed to an interference with the property itself", but that this was not sufficiently clear so that it can be said the claim is bound to fail.[8]

~~———~~Based on this analysis, the court found that the issue of unreasonable interference could also be determined as a common issue. Unlike cases where there is public benefit from the interference, which requires a balancing of the competing interests, in *Kirk*, the court observed there was "nothing to balance".[9]

Ultimately, the *Kirk* class proceeding, which sought compensation for damage to property, and a class proceeding arising from the same underlying events, which sought compensation for personal injuries on behalf of those who were present at the time of the spill and suffered bodily injury, resulted in a settlement of approximately $4.5 million.[10]

~~The BC Supreme Court certified a claim alleging private and public nuisance against a city that alleged the city's failure to close floodboxes at a pump station caused flooding and resulting damge.[11] As a result of the flooding, certain areas were also evacuated. The proposed class consisted of those who suffered personal injury, displacement or property damage. Without discussing the special damage requirement in any detail, the court accepted the claim disclosed causes of action in public and private nuisance.[12] The court found the issue underlying the claim~~

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7 LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.) at para. 66.

8 LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.) at para. 67.

9 LaSante v. Kirk, 2023 BCCA 28 (B.C. C.A.) at para. 71.

10 Kirk v. Executive Flight Centre Fuel Services Ltd., 2025 BCSC 448 (B.C. S.C.).

~~11 Mostertman v. Abbotsford (City) v. Mosterman, 2026 BCCA 119 (B.C. C.A.), aff'ing 2024 BCSC 906 (B.C. S.C.).~~

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~~as a whole was whether the city's acts or omissions caused or contributed to the flooding. This issue could be determined on a class-wide basis.[13] Though not possible to assess the impact of the flood without individual proceedings, the court found that whether the evacuation amounted to a private nuisance was also a common issue that would advance the litigation.[14] Other liability and damages issues were also found to be sufficiently common. Accordingly, a class proceeding was preferable.~~

The BC Supreme Court refused to certify a proposed class action alleging private and public nuisance related to alleged disorderly conduct by the users of an overdose prevention site against the City of Vancouver, as landlord, the Vancouver Coastal Health Authority, as lessee, and the non-profit society contracted to operate the site.[15] The conduct at issue included loitering, camping, erecting structures, defecating, and engaging in criminal activity such as the sale of drugs, vandalism, and assault. The claim alleged the defendants knew or ought to have known about the impugned conduct and failed to take any or sufficient steps to abate it. The court accepted that the claim "set out acts which could be viewed as substantial and unreasonable interference with the use and enjoyment of the plaintiffs' property, as there is impeded access to homes and businesses and interference with privacy, sufficient for the tort of private nuisance".[16] The claim also pleaded special damage on the basis that the plaintiffs lived and worked in the area, therein experiencing greater harm, sufficient to support a claim in public nuisance.[17] However, the court found that there was no clear, universal question that could be addressed on a class-wide basis, observing that, unlike in *Kirk,* there was no single event that could be the focus of a common issue. The impugned conduct consisted of a variety of actions committed by different individuals at different locations and at different times, such that it was not possible to group these different actions together to ask whether the defendants caused or contributed to it.[18] Further, the court found there was no factual basis to conclude the impugned

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~~Mostertman v. Abbotsford (City), 2024 BCSC 906 (B.C. S.C.), at paras. 55-61.~~

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~~Mostertman v. Abbotsford (City), 2024 BCSC 906 (B.C. S.C.), at para. 104.~~

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~~Mostertman v. Abbotsford (City), 2024 BCSC 906 (B.C. S.C.), at paras. 122-123.~~

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1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at para. 27.

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1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at para. 27.

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1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at para. 27.

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1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at paras. 53-59.

conduct was completely and solely engaged in by users of the overdose prevention site.[19] The court was also critical of the proposed class definition of those who owned and occupied or rented property or who operated a business within a specific neighbourhood. The court found there was no objective, factual basis supporting the proposed geographic boundaries, which the court concluded were both unnecessarily broad and arbitrarily narrow.[20]

With respect to proposed class claims of public nuisance, one must carefully consider the requirement for claimants to have suffered "special damage". The BC Supreme Court in *O'Connor v. Canadian Pacific Railway Limited* dismissed a public nuisance claim advanced in a proposed class proceeding arising from a wildfire that destroyed 90% of Lytton, British Columbia.[21] The proposed class definition was broad enough to capture all persons in Lytton. In respect of the public nuisance claim, the court observed that the "public" was arguably the community of Lytton, such that it was "incongruent" to argue that the class, being everyone in the community, suffered damage over and above that suffered by the "public". Accordingly, the public nuisance claim, as pleaded, was bound to fail the "special damage" requirement.[22] ~~Ultimately, t~~The court granted the plaintiffs leave to amend the claim to address this and other problems identified in the decision~~.~~[23], which amendments were considered in a subsequent certification decision, *Moiseiwitsch v. Canadian National Railway Company*.[4]

In *Moiseiwitsch,* the court again struck the public nuisance claim. The court observed that the class was "effectively the entire community", which it held highlighted the "tension inherent in attempting to use a class proceeding to seek a public nuisance remedy".[5] The court rejected an argument that the class's claims were "special" because other communities were not damaged in

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19 1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at para. 57.

20 1111 Seymour Residences Ltd. v. Vancouver (City), 2024 BCSC 2304 (B.C. S.C.), at para. 43.

21 O'Connor v. Canadian Pacific Railway Limited, 2023 BCSC 1371 (B.C. S.C.).

22 O'Connor v. Canadian Pacific Railway Limited, 2023 BCSC 1371 (B.C. S.C.), at paras. 171-174.

23 O'Connor v. Canadian Pacific Railway Limited, 2023 BCSC 1371 (B.C. S.C.), at para. 199. The overly broad class definition was also an issue for the private nuisance claim, as not all proposed class members had any interest in land that could be alleged to have been interfered with (para. 179); and for the claim pursuant to the rule in *Rylands v. Fletcher*, as not all proposed class members had any interest in real property in and around Lytton (para. 187).

[4] Moiseiwitsch v Canadian National Railway Company, 2025 BCSC 2377 (B.C. S.C.).

[5] Moiseiwitsch v Canadian National Railway Company, 2025 BCSC 2377 (B.C. S.C.) at para. 151.

the same way. The court found that such submission would impermissibly expand the law of public nuisance in that the question is not whether the plaintiff suffered damage that is special when compared to all Canadians, but rather whether the damages differ from that of others "affected by the alleged nuisance".[6]

The plaintiffs in *Abbotsford (City) v. Mosterman*[7] successfully avoided the problem identified in connection with the public nuisance pleading in *O'Connor* (and *Moiseiwitsch*). In *Mosterman,* the BC Court of Appeal upheld the certification of claims in private and public nuisance against a city for the city's failure to close floodboxes when the river's height rose above a critical level.[8] The pleadings included an allegation that the City unreasonably interfered with public rights, including access to infrastructure, utilities, and emergency services, and thereby caused members of the public nuisance subclass to experience personal injury and damage to personal or real property that exceeded the harms suffered by the public at large. The "public" was identified as persons who experienced interference with public rights generally, while the public nuisance subclass included only persons claiming to have suffered personal injury and/or damage to personal and/or real property in the area as a result of the flooding. The Court found this satisfied the "special damage" requirement at the certification stage. That the alleged "special damage" of personal injury and property damage may have occurred entirely apart from the city's alleged interference with a public right did not mean the public nuisance claim was bound to fail. Rather, the Court found that the specific link between the damage sustained by individuals and the alleged public nuisance was a matter for resolution on a case-by-case basis after trial.[9]

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[6] Moiseiwitsch v Canadian National Railway Company, 2025 BCSC 2377 (B.C. S.C.) at para. 154.

[7] Abbotsford (City) v. Mosterman, 2026 BCCA 119 (B.C. C.A.).

[8] In respect of the private nuisance claim, the Court rejected the city's argument the claim sought to impose liability in private nuisance based on the city's alleged failure to prevent or mitigate the flooding. Reaffirming that a finding of nuisance in relation to overland flooding requires a positive act by the defendant that increased or changed the flow of water entering the plaintiff's property, the court observed that the pleadings could be read as alleging positive acts on the part of the City that increased or changed the flow of water entering their properties.

[9] Abbotsford (City) v. Mosterman, 2026 BCCA 119 (B.C. C.A.) at paras. 55-62.